



STANDING ORDER NO. Lic.& Leg./37/2022

GRANT OF ARMS LICENSES AND SERVICES UNDER THE ARMS ACT, 1959 AND THE ARMS RULES, 2016

1. INTRODUCTION:

The procedure for grant of a fresh arms license and its allied services was lastly streamlined in 2009 through existing Standing Order No. 264/2009. The entire process related to arms license services was being carried out manually/offline under the provisions of the Arms Act, 1959 and The Arms Rule, 1962. In the year 2016, the Arms Rule, 1962 were amended by the Government and introduced as the Arms Rule, 2016. Likewise, The Arms Act, 1959 was also amended by the Government in 2019 and notified as The Arms (Amendment) Act, 2019 which came into effect in Dec, 2019. As a part of Delhi Police digital initiatives for Digital India, "E-Arms License Module" was launched on 31.01.2019 for rendering services online. The provisions of the existing MHA Notification No. S.O. 1988 (E), dated 04.08.2014 concerning various categories of shooters have been amended by the government. Hence, in view of amendments in the Act, Rules, Notifications, and the launch of E-Arms License Module, the required amendments in existing Standing Order have been made.

DERIVATION OF POWERS

The Arms Act, 1959 and the Arms Rules, 2016 provides legal framework for acquisition, possession, manufacture, sale, import, export and transport of arms and ammunition in India. Section 146 of the Delhi Police Act, 1978 empowers Commissioner of Police to exercise all powers and discharge all functions which may be exercised or discharged by a District Magistrate under the Arms Act, 1959 including the rules made there under. The Additional Commissioner/Joint Commissioner of Police has been designated as the Licensing Authority for various services relating to Arms licenses. While in certain categories of Arms License (e.g. Arms & Ammunition Dealership License, License for manufacturing of certain category of Arms), Additional Commissioner/Joint Commissioner of Police is not the Licensing Authority. In such cases, the applications are received and processed in the Licensing Unit and forwarded to Home Deptt., GNCTD

for processing and obtaining formal approval of the Competent Authority i.e. Hon'ble L.G. Delhi for grant of License.

2. POWERS OF AUTHORITIES TO GRANT ARMS LICENSE

Legal Provision	Category of weapon	Licensing authority for initial grant	Renewal authority
Under section 3 of the Arms Act 1959 read with section 146 (2) and Schedule-I of the Delhi Police Act	Prohibited/ Restricted Bore weapons. (See Schedule-I, Category-I (a) (b) (c).	Ministry of Home Affairs	Additional C.P./Joint C.P., Licensing, as the case may be or any officer authorized by him.
	Permissible Bore weapons. (See Schedule-I, Category-III (a) to (k).	Additional C.P./Joint C.P., Licensing, as the case may be.	Additional C.P./Joint C.P., Licensing, as the case may be or any officer authorized by him.
	Arms and Ammunition Dealership license for PB/Restricted Category of weapons.	L.G./Delhi	L.G. Delhi
	Arms and Ammunition Dealership license for Permissible Category of weapons.	L.G./Delhi	Licensing Authority Delhi. (i.e. Joint/Addl. CP/Lic).

	License for Manufacturing of Air weapons mentioned at Category-III (f) of Schedule-I.	L.G./Delhi	Licensing Authority Delhi. (i.e. Joint/Addl. CP/Lic). See Item No, 6(a) of Schedule-II.
	Arms and Ammunition Dealership license for Air weapons having bore less than or equal to 0.177 or 4.5 mm. (See Schedule-II, Item No. 7(c).	Licensing Authority Delhi. (i.e. Joint/Addl. CP/Lic)	Licensing Authority Delhi. (i.e. Joint/Addl. CP/Lic)
Under section 4 of the Arms Act 1959, read with Rule 4 of Arms Rules 2016.	Arms other than Fire Arms: Swords, daggers, Bayonets, Spears, lances, Javelins, Battle-axes, Knives (including Kirpans and Khukries) and other such weapons with blades longer than 9 " or wider than 2" etc. (See Schedule-I, Category-V.	Additional/Joint Commissioner of Police, Licensing, as the case may be.	Additional C.P./Joint C.P., Licensing, as the case may be or any officer authorized by him.

3. IMPORTANT DEFINITIONS

- (i) **District Magistrate:** In relation to any area for which a Commissioner of Police has been appointed, means the Commissioner of Police thereof and includes any such Deputy Commissioner of Police, exercising jurisdiction over the whole or any part of such area, as may be specified by the State Government in this behalf in relation to such area or part. (Section 2 (d) of Arms Act, 1959).

- (ii) **License:** Means a license issued in accordance with the provisions of the Arms Act, 1959 and Rules made thereunder and includes a license issued in the electronic form. (Section 2 (f) of Arms Act, 1959).
- (iii) **Caliber:** Means the internal diameter or bore of the barrel of a fire-arm measured in inches or millimetres or geometric circumference. (Rule, 2 (10) of Arms Rules, 2016).
- (iv) **Air weapon:** Means a device that discharges a projectile from a barrel under the pressure of compressed air or other gas but that does not employ an explosive charge to do so. (Rule, 2 (2) of Arms Rules, 2016).
- (v) **Antique Small Arms:** Means firearms which has been in existence for not less than one hundred years. (Rule, 2 (3) of Arms Rules, 2016).
- (vi) **Curio:** Means a small arm manufactured at least fifty years prior to the current date or certified by the curator of a Government regulated museum or that derives at least half of its monetary value from the fact that it is novel, rare, bizarre, or associated with some historical figure, period, or event and includes an antique small arm. (Rule, 2 (17) of Arms Rules, 2016).
- (vii) **De-activation:** Means to render a small arm or light weapon incapable of expelling or launching a shot , bullet, missile or other projectile by the action of an explosive, and which cannot be readily restored to its original capability, and that has been certified and marked as de-activated by an accredited gunsmith or a competent State Authority. (Rule, 2 (18) of Arms Rules, 2016).
- (viii) **Fire-arm replica:** Means an object designed to resemble a fire-arm which has an appearance that is so realistic as to make it indistinguishable, for all practical purposes, from a real fire-arm and which has been rendered innocuous. (Rule, 2 (26) of Arms Rules, 2016).
- (ix) **National Database of Arms Licenses (NDAL):** Every Licensing Authority and Renewing Authority shall also enter such data in the NDAL system which shall generate a Unique Identification Number (UIN). Any arms license without UIN shall be considered invalid. (Rule, 15 (2) of Arms Rules, 2016).
- (x) **Arms License Issuance System (ALIS):** The NDAL has been renamed as ALIS.
- (xi) **Unique Identification Number (UIN):** Means a Unique Identification Number generated in NDAL for a license under Arms Rule, 2016. (Rule, 2 (57) of Arms Rules, 2016). If a licensee is having two arms license with multiple UIN, both the arms licenses shall be brought under a single UIN as defined in Rule, 15 of Arms Rule, 2016, irrespective of their category i.e. Restricted or Permissible.

- (xii) **Handgun:** Means a small arm with a short stock at an angle to and extending below the line of the barrel, that is designed to be held and fired with one hand and includes pistols and revolvers. (Rule, 2 (24) of Arms Rules, 2016).
- (xiii) **Rifle:** Means a small arm designed to expel, through the action of an explosive, a single projectile through a rifled barrel, while supporting against the shoulder and held with both hands. (Rule, 2 (45) of Arms Rules, 2016).
- (xiv) **Shotgun:** Means a small arm designed to expel, through the action of an explosive, shot or a single projectile through a smooth-bored barrel, while supported against the shoulder and held with both hands. (Rule, 2 (50) of Arms Rules, 2016).
- (xv) **Small Arm:** Means any man-portable lethal weapon designed for individual use (of caliber up to 12.7mm) that expels or launches , is designed to expel or launch, or may be readily converted to expel or launch a shot, bullet or projectile by the action of an explosive and includes inter alia, revolvers and self-loading pistol, rifles and carbines, sub-machine guns, assault rifles and light machine guns, as well as their parts, components and ammunition but does not include antique small arms and fire-arms replica.

Note: Shotguns, sporting rifles and muzzle loading black powder fire-arms, though of caliber of more than 12.7 mm are also covered under small arms.

- (xvi) **Non-Service Pattern Firearm:** These arms are allotted by the office of Director General of Ordnance Services (DGOS) to the members of Armed Forces and Para Military Forces with due process as per Army Rules. These weapons cannot be sold to any person or Gun Dealers. These weapons can be disposed off in the following manner only:
 - a) Transfer of weapon to Another Entitled Personnel.
 - b) Return the Weapon to the Ordnance Depot.
 - (c) On Demise of a NSP Weapon Holder, the legal heirs may apply for retention as family heirloom on sentimental reasons in the office of DGOS, if the applicant is having a valid arms license granted by Licensing Authority.
- (xvii) **Additional Licenses for individual:** The holder of a license in Form-III, for permissible category of fire-arms, as specified in Schedule-I, may apply for grant of additional license for any two of his close relatives who are not in possession of any license in Form-III and who are residing with him at the address given in the license, to possess, carry or use any of the arms or ammunitions covered by his license and the licensing authority

shall grant a license to such additional licensee if the eligibility conditions under the Act and the Arms Rule, 2016 are fulfilled by the said additional licensee and there are no adverse remarks in the police report.

3 (A) IMPORTANT AMENDEMENTS IN ARMS ACT, 1959

- (1) **Section-3:** No person shall acquire, have in possession or carry, at any time, more than two firearms.(Even any member of rifle club or rifle association cannot possess firearms more than two as clarified by MHA vide letter No F. No. V-11026/29/202-Arms dated 11.08.2021, in respect of section 3(3) of the Arms Act, 1959).
- (2) **Section-15:**A license under section 3 shall, unless revoked earlier, continue in force for a period of five years from the date on which it is granted.
- (3) **Section-25 (9):** Whoever uses fire-arm in a rash or negligent manner or in celebratory gunfire so as to endanger human life or personal safety of others shall be punishable with an imprisonment for a term which may extend to two years, or with fine which may extend to rupees one lakh, or with both.

4. E-ARMS LICENSE MODULE

E-Arms License Module was launched on 31.01.2019 to ensure time bound service delivery and streamline the processes for issuance of new arms licenses, renewal of existing arms license and other related services. The E-Arms License Module provides an online platform for the applicants to register and submit online applications to avail various services. These applications are scrutinized at the backend office and the applicants are informed of deficiencies, if any through the module. Besides, it has provision for digital payment of fee also. The applications complete in all respect are accepted for processing and forwarded to the districts for antecedent verification reports. All the districts are also the stake holders of this E-Arms License Module.

Software has also been developed on the Local Area Network (LAN) for digital processing and tracking of files. All applications should be processed in digital form to ensure proper tracking of the file.

With the launch of E-Arms License Module on 31.01.2019, all kind of applications related to arms licenses are accepted online on the website of Licensing Unit i.e. (<http://www.delhipolicelicensing.gov.in>)

- 5. SERVICES RELATED TO ARMS LICENSE:** All the services being provided to the applicants/license holders have been divided into following three

broad categories:

(A) GRANT OF ARMS LICENSE

(B) RENEWAL OF ARMS LICENSE.

(C) ALLIED SERVICES RELATED TO ALL KINDS OF ARMS LICENSES:

5(A) GRANT OF ARMS LICENSE: Following category of Licenses are granted by the Licensing Authorities (as defined in Schedule-II of Arms Act, 1959) to the individual/Shooters/Arms & Ammunition Dealers:

- I. Grant of Arms License to individuals for Permissible Category of Arms.
- II. Grant of Arms License for Prohibited/Restricted Category of Arms.
- III. Grant of Arms License to Arms & Ammunition Dealers.
- IV. Grant of License to Shooters/Sports Persons.
- V. Grant of License to Museums.
- VI. Grant of Additional License for individuals.
- VII. Grant of Arms License to Bank/Institutions/Organizations.
- VIII. Grant of Permit for Retainers for Companies and Addition/Deletion of name of Retainers in arms license.
- IX. Grant of Transport License.
- X. Grant of NOC for bringing weapon from outside Delhi.
- XI. Grant of Addition/Conversion of weapons on existing Arms License.
- XII. Grant of Extension of Area Validity.

5(A) (I) GRANT OF ARMS LICENSE TO INDIVIDUALS FOR PERMISSIBLE CATEGORY OF ARMS:

5 (A) (I) (a) SUBMISSION OF APPLICATION

E-Arms License Module was launched on 31.01.2019. Applicant will register online for the required service on the Licensing Unit's website (<http://www.delhipolicelicensing.gov.in>) for obtaining Login ID and Password. Applicant will login with Login ID & Password, fill the online application form (Form A-1, **Annexure-I**) and upload all self-attested copies of the following prescribed scanned documents as per Arms Rules, 2016.

DOCUMENTS:

- (1) Photograph.
- (2) Signature.
- (3) Under taking for safe storage of firearms (**Annexure-II**).

- (4) Medical certificate issued by a registered medical practitioner on prescribed form. (Form S-3 at **Annexure-III**).
- (5) Self-attested copy of Date of Birth proof (e.g. Matriculation certificate or School leaving Certificate, Passport etc).
- (6) Identification proof:-
 - (i) Aadhar Card; or
 - (ii) in case the applicant does not have Aadhar Card, a written declaration in the form of an Affidavit to be submitted in this regard along with an alternative identification proof which may include Passport, or Voter's Identification Card or Permanent Account Number (PAN) card or Identity Card issued to the employees;
 - (iii) in case of exempted sports persons, shooters identification card issued by the National Rifle Association of India.
 - (iv) residence proof in case the applicant does not possess Aadhar Card or Passport, which may include-
 - (a) voter's identification card; or
 - (b) electricity bill, water bill, driving license, Income tax return; or
 - (c) landline telephone bill; or
 - (d) rent deed or lease deed or property documents, property/house tax; or
 - (e) Copy of PAN card would be accepted only with a copy of Income Tax Return depicting the address; or
 - (f) any other document to the satisfaction of the licensing authority.
- (7) Posting-cum-residence certificate / recommendation from the Commanding / supervisory Gazetted Officer which is mandatory in case of all applicants who are government employees.
- (8) Documents to support financial/business worth like income tax return (ITR), salary slip, form 16, bank statements, balance sheet, profit & loss statement, GST return, daily cash transaction statement, etc.
- (9) In case of threat to life being a ground for seeking an arms license copy of FIR/Complaints to justify the threat, if any.
- (10) Weapon Handling Certificate (not required for Armed Forces Personnel, Police and Paramilitary Forces, who have proof to show their weapon handling capacity).
- (11) Documents required in case of death, transfer of weapon on inheritance/heirloom basis under rule 25 of the Arms Rules 2016:-

(A) INHERITANCE CASE DUE TO DEATH OF THE LICENSEE;

- a) Death certificate of the licensee in case of death only.
- b) Weapon deposit permission, if the firearm has been deposited after obtaining permission from the Licensing Authority, in case of death of the licensee. This document is not required, If the firearm has been deposited without the permission of Licensing Authority.
- c) Weapon deposit receipt issued by the authorized arms dealer or the police station as the case may be.
- d) Indemnity Bond duly notarized (**Annexure-IV**).
- e) NOC given by other legal heirs, duly notarized, that they have no objection, if weapon is transferred to the applicant. (**Annexure-V**)
- f) Copy of permission to deposit the weapon with the police station/arms dealer obtained from Licensing Unit.
- g) Copy of the arms license of the deceased licensee

(B) HEIRLOOM CASE WHEN LICENSEE WANTS TO TRANSFER HIS LICENSE TO HIS FAMILY MEMBERS:

- a) If the licensee is attaining the age of seventy years or on holding the firearm for twenty five years, whichever is earlier.
- b) Copy of Arms license of the transferor.
- c) In case of transfer of weapon the consent/affidavit of licensee, duly notarized, who intends to transfer his weapon to his legal heir- affidavit from the licensee to the effect that he/she has no objection to the transfer of the arm in the name of applicant and he/she shall not apply in future (**Annexure-VI**)

(12) IN CASE OF GOVERNMENT EMPLOYEES:-

- a) NOC from department (**Annexure-VII**).
- b) Proof of Official address, if any.
- c) Date of retirement (Copy of order issued by the office in case of Govt. Servant / Army/CPO's/Police/DHG personnel).
- d) The security guard should submit an undertaking from his employer regarding the requirement and his training (**Annexure-VIII**).

(13) IN CASE OF BUSINESSMEN/WOMEN:-

- a) Papers like MCD / NDMC / Delhi Cantonment Registration Certificate / Sales Tax receipt / Service Tax Receipt / VAT receipt.
- b) Yearly Income.
- c) Yearly Turn over.
- d) Daily cash transaction.
- e) Number of employees.
- f) Threat perception.

(14) SHOOTERS/RENOWNED SHOOTERS:

- a) Certificates of participation/achievements.
- b) Recommendation letter from the National Rifle Association of India /Delhi State Rifle Association, whichever applies.

(15) ALLOTMENT OF NSP WEAPON:

- a) NSP weapon allotment letter
- b) NSP weapon issue voucher

5(A) (I) (b) PROCESSING OF APPLICATIONS FOR FRESH ARMS LICENSE:

PART-A: PROCESSING OF APPLICATION IN “ELECTRONIC DATA PROCESSING (EDP) SECTION”:

On receipt of online application, File Processing Officer (FPO) in Electronic Data Processing (EDP) Section will scrutinize the application form and the documents uploaded by the applicant and ensure that the documents are as per the check list and legible.

- a) Shortcomings noticed in the documents will be communicated to the applicant for rectification of the same within 15 days, through the communication box provided in the module.
- b) The applicant may either provide the deficient documents on the Arms online portal or on the email ID of Licensing Unit.
- c) In case deficient documents are sent through email, FPO, EDP Section will upload the same in the online module through ‘RECTIFY DEFICIENT DOCUMENTS’.
- d) If the deficient documents are not uploaded/rectified by the applicant **within 15 days** of the communication to the applicant, EDP section shall send a reminder to the applicant to upload the deficient document **within next 15 days** with a warning that if the documents are not uploaded within 15 days, the application shall be summarily rejected.

- e) Applications complete in all respect along with scanned documents shall be accepted by the File Processing Officer and sent to concerned District online for Police Antecedent Verification Report on Form S-4, **Annexure-IX**.
- f) The Licensing Authority may also seek police antecedents' verification report from the SSP/DCP where the permanent residence of the applicant is situated. (Order, circulated vide No 624-29/Joint CP/Lic (Arms Sec) dated 21.04.2022).
- g) On receipt of police verification report, FPO in EDP section will sync the police report with the application, transfer it to Local Area Network (LAN) of Licensing Unit and forward to Fresh Arms Section for further processing on LAN.

PART-B: PROCESSING OF APPLICATION ON LAN BY THE FILE PROCESSING OFFICER IN "FRESH ARMS SECTION":

The online application synced on the LAN shall be processed by FPO in Arms Section in the following manner:-

1. The FPO, Arms Section shall scrutinize the application form and documents on record and ensure that the documents are in order. He/she shall analyze the available information, documents, antecedent verification report received from the district and check SCRB record, etc. and submit his/her report on the prescribed template (available on the LAN) for further processing.
2. Inspector/Arms will carefully examine the application form, documents on record and report of the FPO. He/she will give his/her comments/observations in the LAN and forward the same to senior officers in digital form.
3. The certificates and recommendation letter etc. in respect of shooters shall be verified from the NRAI through e-mail by the Arms Section.
4. Every application for grant of new Arms License should be placed before Additional Commissioner of Police/Joint Commissioner of Police **within 15 days** of receipt of police verification report.
5. The FPO, EDP Section will send an email/SMS to the applicant for attending the interview with Licensing Authority on the scheduled date and time as approved by the competent authority.
6. EDP section shall update the decision of the Licensing Authority in LAN and ALIS.
7. EDP Section will inform the applicant through an email/SMS, if the application is denied.

8. EDP Section will inform the applicant to pay the applicable license fee online through payment gateway or by POS at the licensing unit, if the license is granted.
9. EDP section shall also inform the applicant to attend the mandatory training on scheduled date and time beside collection of Smart Card in respect of Permissible Arms and Arms License Booklet in case of Restricted Arms, as the case may be, **on the same day** through e-mail and SMS in consultation with Inspector Arms and Armourer. However, shooters and personnel of Defence Forces, CAPFs and State Police Force may not be called for the arms and ammunition safety training as they are already trained in weapon handling.
10. Inspector Arms shall ensure that the Arms License in form of SMART CARD for the applicants who have been called for the training are prepared in advance. He/she shall hand over the arms license SMART CARD to the applicants immediately after the training is over at the training hall. Similarly, the Arms License SMART CARD in respect of the applicants who are not required to undergo the said training should also be prepared in advance for issuance on the scheduled date and time.
11. The Digital file and physical file will be sent to Record Room for validation. If any deficiency is noticed, I/C Record Room will consult Arms Section/EDP Section for rectification.
12. File tracking system has been introduced to track the movement of each file at every stage.

5(A)(I)(c) GUIDELINES FOR FIELD ENQUIRY/ANTECEDENT VERIFICATION REPORT BY THE DISTRICTS

1. The field enquiry/police verification of the applicant shall be conducted by an officer of and above the rank of SI in case of an application for grant of a new license and an officer of and above the rank of ASI in case of an application for renewal of an existing license. He shall submit his report on the prescribed proforma for field officer.

PROCEDURE OF FIELD ENQUIRY BY POLICE OFFICER AT POLICE STATION:

- a) Enquiry officer shall check whether the applicant has ever been convicted or not.
- b) Enquiry officer shall obtain the relied upon documents from the applicant in order to verify his status of domicile.
- c) Enquiry officer shall check whether any order to execute a bond under Chapter VII of Code of Criminal Procedure, 1973 (2 of 1974)

for keeping the peace or for good behaviour has been issued against the applicant or otherwise.

- d) Whether applicant has any serious enmity or quarrel which is likely to lead to a breach of peace?
 - e) Whether the applicant has been arrested in any criminal case.
 - f) Whether applicant is a Bad Character of Police station.
 - g) Whether the applicant is facing any enquiry, criminal/civil proceedings in any court or by any investigating agency.
 - h) Whether the applicant has filed a complaint in Police Station regarding threat to his life.
 - i) Whether the applicant has been a witness or victim in any heinous crime.
 - j) Enquiry officer shall mention the grounds for seeking arms license and remarks thereof.
 - k) Enquiry officer shall mention in his report whether the applicant has any association with any political or communal organization.
2. The police verification/enquiry report shall be submitted in textual form by the designated officer who shall write his full name, rank, PIS number while submitting the report.
 3. Reference should be made to Register Number 9, Kalandara Register, Ruff Register etc besides referring to SCRB website while checking the criminal history or background of the applicant.
 4. District DCP shall send his specific comments with justifying reasons.
 5. Comments of the District DCP shall be based on police enquiry report and police station record certified by the SHO while sending the antecedent verification report (Form S-4, Annexure-IX) online..
 6. The two complete sets of reports (Form- S-4 & EO report) generated by local police shall be scanned and uploaded while forwarding the antecedents verification report as per the prescribed format.

The district DCP shall forward the ORIGINAL police verification/enquiry report to the Licensing Authority.

7. The police verification/enquiry report shall be a permanent record and it shall be uploaded in the database by the Licensing Unit.
8. There shall be only two physical interfaces with the applicant during the entire process of grant/renewal, first with the enquiry officer (EO) and second with the Licensing Authority at the time of formal

interview. At no point of time the applicant shall be called by SHO/ACP/DCP at their office for personal interaction.

9. The Officer incharge of the Police Station (SHO) will send verification/enquiry report to the Licensing Authority **within 30 days** of the receipt of application, as mentioned in Rule, 14 of the Arms Rule, 2016.

BROAD PRINCIPLES:

It shall be our avowed policy to check proliferation of firearms in the Union Territory of Delhi to ensure that firearms and ammunition do not pass into wrong hands and are not misused. The applications for grant of arms licenses and subsequent services shall be decided in accordance with the provisions of the statutes in force. The following broad principles shall be kept in mind while processing and deciding such applications: -

1. The applicant should be a resident of the Union Territory of Delhi, meets the age criteria (21 years except shooters) laid down in Arms Rule, 2016.
2. Medical certificate about mental health and physical fitness of the applicant with specific mention that the applicant is not dependent on intoxicating or narcotic substance, in Form-S-3. **(reference Rule 11(4) (g) of the Arms Rules, 2016.)**
3. The applications for grant of license for arms should be assessed objectively to ascertain the genuineness of the need to possess a firearm in view of guidelines given at Rule-12 of Arms Rule, 2016:

5(A)(I)(d) GUIDELINES FOR LICENSING AUTHORITY FOR GRANT OF ARMS LICENSE IN CERTAIN CASES:

RULE-12:(1) Save as otherwise provided in the Act, every licensing authority granting a license in Form-III to an individual for the restricted or permissible arms or ammunition as specified in category I(b) and I(c) or category III respectively in Schedule-I, shall have due regard to the application of norms specified in sub-rules (2) and (3):-

Sub-rule-(2): RESTRICTED ARMS, For grant of a license for the restricted arms or ammunition specified in category I (b) and I(c) in Schedule-I, the licensing authority, may consider the application of-

- (a) any person who faces grave and anticipated threat to his life by reason of:-
 - (i) being resident of a geographical area or areas where militants, terrorists or extremists are most active; or
 - (ii) being the prime target in the eyes of militants, terrorists or extremists; or

- (iii) facing danger to his life for being inimical to the aims and objectives of the militants, terrorists or extremists; or
- (b) any Government official who by virtue of the office occupied by him or by the nature of duty performed by him and/or in due discharge of his official duty is exposed to anticipated risk to his life; or
- (c) any Member of Parliament or Member of Legislative Assembly, who by virtue of having close or active association with anti-militant, anti-terrorist or anti-extremist programmes and policies of the Government or by mere reason of holding, views, political or otherwise, exposed himself to anticipated risk to his life; or
- (d) any family member or kith and kin of a person who by the very nature of his duty or performance (past or present) or position occupied in the Government (past or present) or even otherwise for known or unknown reasons exposed himself to anticipated risk to his life; or
- (e) any other person, for any legitimate and genuine reason, to the satisfaction of the licensing authority, by passing a speaking order in this regard.

Provided that before granting license under this sub-rule, the licensing authority based on the recommendations of the district magistrate and of the State Government concerned and on examination of the police report and after conducting a separate verification from its own source, shall satisfy itself that the applicant requires such license.

(3) **PERMISSIBLE ARMS:** For grant of a license for the permissible arms or ammunition specified in category III in Schedule-I and without prejudice to the provisions contained in clause (a) of sub-section (3) of section 13, the licensing authority, based on the police report and on his own assessment may consider the applications of :-

- (a) any person who by the very nature of his business, profession, job or otherwise has genuine requirement to protect his life and/or property; or
- (b) any dedicated sports person being active member for the last two years, of a shooting club or a rifle association, licensed under these rules and who wants to pursue sport shooting for target practice in a structured learning process; or
- (c) any person in service or having served in the defence forces, Central Armed Police Forces or the State Police Force and has genuine requirement to protect his life and/or property.
- d) License for smooth bore gun having a barrel of not less than twenty inches in length may be granted for crop protection. (Section 13 (3) of Arms Act, 1959).

- e) The applications received from the personnel of the Defence Forces on the allotment of NSP (Non-Service Pattern) weapons which are seized during Army Operation etc. be considered as the NSP weapon is allotted once in the entire service and can be issued by the DGOS only after production of a valid arm license.
- f) Number of fire arms to be issued: As per Arms (Amendment) Act, 2019 the number of fire arms to be granted to an individual has been restricted to two only. An individual shall normally be granted license for one firearm. Though, Licensing Authority may grant two firearms on case-to-case basis viewing the need of second weapon to the licensee. The sports persons shall be allowed firearms as per provisions of Notification dated 12.02.2020 issued by MHA as amended time to time.
- g) In cases where the licenses have been issued in the names of bank managers and caretakers of the factories, warehouses etc., the names of the gunmen/ guard shall ordinarily be entered on the license as retainer after due verification. If the retainer is not the permanent resident of Delhi, the main licensee shall obtain the Police Clearance Certificate (PCC) of the retainer from the authority in whose jurisdiction, retainer's permanent residence is situated and submit to Licensing authority.
- h) While processing an application for grant of license, it shall be ascertained whether the applicant has mentioned in application about his involvement/conviction in any criminal case or otherwise and about his previous application for arm license which was rejected earlier. The facts should be mentioned both in the application (Form No. A-1) and the police verification form (Form No. S-4). The concealment of such information should be viewed seriously and may result in the rejection of the application.
- i) Personnel of the Defence Forces, Central Armed Police Forces or State Police Force primarily seeking a license for purpose of reemployment with private security agencies after retirement, may be considered. However, only those applicants who are on the verge of retirement – i.e. with less than six months to retire or in cases of voluntary retirement, where they have already put in their papers and the same have been accepted by the competent authority by issuance of a Discharge Certificate. The retiring defence personnel, who has been offered a job by any organization/bank may be considered for grant of licenses for appropriate firearms. Weightage shall be given to those who are facing threat because of having done sensitive government work. This should, however, be supported by a letter from the department.
- j) The categories like housewives, senior citizens living alone, who want the weapon for self-protection, their physical fitness should also be a criteria. Economically backward persons, for whom a license is required for employment, may be considered provided they have a certificate of

appointment.

- k) Notwithstanding any of the above, inheritance cases should be duly considered except in instances where the person who is to inherit the weapon is of a dubious character as brought out by the local police verification or the SCRB/NCRB/ICJS/ check.
- l) The applications for grant of license on heirloom/inheritance basis under rule 25 of the Arms Rules, 2016, may be considered subject to fulfilment of other conditions. However, the weapon being inherited should be inspected before hand to ascertain whether it is a NSP weapon or not? If it is a NSP weapon, whether the applicant is eligible to hold the same as per Army Rules? If the legal heir is a civilian, has he obtained due permission from the Army Headquarter.
- m) The Licensing Authority shall approve the interview and that too only if found necessary. The date of interview shall be given strictly on first come first served basis as per the date of initial application.
- n) Senior Officers of Armed forces, Paramilitary Forces, Central & State Govt., PUC or equivalent may be exempted from personal appearance as per the discretion of Licensing Authority.
- o) Due diligence and caution should be exercised while deciding applications in respect of persons working or intending to work as bouncers or private PSOs. Licenses for such purposes should not be granted unless there are other compelling reasons and the same should be recorded in writing.
- p) After the interview, the Licensing Authority will approve / grant or reject the application, by making speaking orders on LAN/file.
- q) In case of approval, the applicants will be issued Arms License/Smart Card under proper receipt after depositing the requisite fees.
- r) Weapon Handling Certificate (not required in case of Armed Forces Personnel, police and paramilitary forces) will be required within one month of the grant of the fresh arms license and an entry will be made in the Arms License Smart Card for the same. The weapon-handling certificate can also be obtained from the following institution:

National Rifle Association of India

(An autonomous body), Any National Sports Federation recognized by Ministry of Youth Affairs & Sports 51, Industrial Area, Tuglaqabad (near Batra Hospital), Ph.:29964091, 29964092, 29964093

5 (A) (II) GRANT OF ARMS LICENSE FOR PROHIBITED/RESTRICTED CATEGORY OF ARMS

Application for grant of new arms license of prohibited/restricted category shall be forwarded to the GNCT of

Delhi for onward transmission to MHA. The procedure and documentary requirements shall be same as those for Permissible Category.

ARMS & AND AMMUNITION DEALERSHIP LICENSE

- 5 (A)(III) GRANTING AUTHORITY:** As per Item No. 7(a) and 7(b) of Schedule-II of Arms Rule, 2016, the Licensing Authority to grant an Arms and Ammunition Dealership License is 'State' whereas in case of NCT of Delhi the Licensing Authority is Lieutenant Governor of Delhi.

The applications seeking Grant/Renewal/Cancellation/v Surrender/ Closure of business shall be processed as per Standard Operating Procedure circulated by GNCT of Delhi vide letter No. F.13/53/2021/HG/1466-1467 dated 20.05.2022 (**Annexure-X**). The applications seeking Arms and Ammunition Dealership License will be received and processed at Licensing Unit. After completion of requisite documents, application will be forwarded to GNCT of Delhi for grant of Arms and Ammunition Dealership License by the Competent Authority.

5(A)(IV) SERVICES RELATED TO ARMS & AND AMMUNITION DEALERSHIP LICENSE:

- (i) Processing of applications for grant of Arms and Ammunition Dealership License.
- (ii) Renewal of Arms and Ammunition Dealership License.
- (iii) Surrender/Closure of Arms and Ammunition Dealership License.
- (iv) Cancellation of Arms and Ammunition Dealership License.
- (v) Supply of daily inventory online at real time by arms & ammunition dealers:
- (vi) Grant of License for manufacturing of Air Weapons defined at Category-I of Schedule-I of Arms Rule.
- (vii) Grant of Permission for inspection of Imported firearms.

5(A)(IV)(i) PROCESSING OF APPLICATIONS FOR GRANT OF ARMS AND AMMUNITION DEALERSHIP LICENSE:

SUBMISSION OF APPLICATION

The services related to Arms and Ammunition Dealers are currently being provided off line. Applicant will submit application offline on Form A-8/A-9, as provided in Arms Rule, 2016, along with following documents as required in Rule, 73 of Arms Rules, 2016.

DOCUMENTS:

- (1) A written declaration confirming availability of strong room for the safe custody of the firearms and ammunitions.
- (2) A written undertaking with specific reference to:
 - a) Safe custody of the firearms and ammunition.
 - b) Provision of access control.
 - c) Close circuit television system.
 - d) Security Guards.
 - e) Fire-fighting devices etc.
- (3) Verification Forms containing name and address of every person authorized to trade on behalf of the applicant at the premises, who must possess the requisite training for safe handling of fire-arms.
- (4) Apart from documents mentioned at serial number (1) to (3), applicant will also submit other documents as mentioned in SOP for Arms and Ammunition Dealers.

PROCESSING OF APPLICATIONS:

PART-A: PROCESSING OF APPLICATION AT LICENSING UNIT:

After receipt of application, Police Antecedent Report and Area Suitability Report will be called from District DCsP by the Licensing Unit. As per Rule-14 (1) of Arms Rule, 2016, officer-in-charge of the police station shall send his report within a period of thirty days from the date of receipt of application by him. The report on the prescribed format (Form S-4 Annexure-IX) will be sent to Licensing Unit through the office of district DCP. On completion of all the requisite documents, Police Antecedent Report & Area Suitability Report, Joint Inspection by officers of GNCTD/Licensing Unit, the application along with recommendation (positive or negative as the case may be) of Licensing Unit will be forwarded to Home Department of GNCT of Delhi for decision of the Competent Authority i.e., Hon'ble L.G./Delhi, as per timelines issued by GNCTD time to time.

PART-B: PROCESSING OF APPLICATION AT HOME DEPARTMENT/GNCT OF DELHI:

After receipt of application from Licensing Unit, Home Department of GNCT of Delhi will scrutinize the documents and put up the case before the (Hon'ble L.G./Delhi) Licensing Authority for his decision, as per timelines appended with SOP for Arms and Ammunition Dealership License.

APPEAL AGAINST THE ORDER OF THE LICENSING AUTHORITY: As per Section 18 of Arm Act, 1959, any person aggrieved by an order of the Licensing Authority refusing to grant a license or varying the conditions of a license or an order of the Licensing Authority or the authority to whom the Licensing Authority is subordinate, suspending or revoking a license may prefer an appeal against that order to such Appellate Authority. As per Rule, 107 (ii) of Arms Rule, 2016, the Appeal will be filed within 30 days from the date of issue of the order.

5(A)(IV)(ii) RENEWAL OF ARMS AND AMMUNITION DEALERSHIP LICENSE:

Arms and Ammunition Dealership License is granted for a period of five years. As per Rule 73(2), an application for renewal of license shall be made at least sixty days prior to the expiry of the said license along with the same documents those were submitted with the application at the time of grant of License. After receipt of application for renewal at Licensing Unit, the same procedure will be followed as was adopted at the time of processing application for grant of license. As per written direction of the GNCTD, vide letter No F. No. 13/35/2022/HG/1218 dated 28.04.22 the application for renewal of Arms and Ammunition dealership license for PB/Restricted category of firearms shall be forwarded to GNCTD for the approval of competent authority i.e. L.G./Delhi. GNCTD further directed that the applications for renewal of Arms and Ammunition dealership license for Permissible category of firearms shall be decided by the Joint C.P./Licensing Unit who is the competent authority to renew Permissible category of firearms as per Arms Rule, 2016. The timelines for renewal, appended with the SOP for Arms and Ammunition Dealership License, will be adhered to.

5(A)(IV)(iii) SURRENDER/CLOSURE OF ARMS AND AMMUNITION DEALERSHIP LICENSE

There are no specific provisions in Arms Act. 1959 and Arms Rule, 2016 regarding surrender of Arms and Ammunition Dealership License in Form-VIII and Gun Smith License in Form-IX. However, in order to regulate the Surrender/closure of Arms and Ammunition Dealership License, procedure shall be adopted as directions issued by Home Department, GNCT of Delhi time to time.

PROCEDURE:

- (I) The applicant shall submit the request letter for surrender of Dealership and /or Gunsmith License duly signed by Proprietor/Partner (s)/Director (s) of the Firm/Company along with the documents as mentioned in SOP for Arms and Ammunition Dealership License.
- (II) After receipt of formal application and requisite documents, the case

for Surrender/Closure shall be scrutinized by the Licensing Unit, Delhi Police.

- (III) The case shall be forwarded to Home Department, GNCTD along with recommendation of the Licensing Unit, Delhi police to obtain necessary approval of the Licensing Authority i.e. Hon'ble L.G. Delhi, as per timelines issued by the GNCTD time to time.

5(A)(IV)(iv) CANCELLATION OF ARMS AND AMMUNITION DEALERSHIP LICENSE

Section 17 (3) of Arms Act, 1959, provides that the licensing Authority may by order in writing suspend a license for such period as it thinks fit or revoke a license for the reasons mentioned in this section. Further, proposal for cancellation of Arms and Ammunition Dealership License may also be initiated in the following circumstances as mentioned in SOP:

- a) On the death of Sole Proprietor (Sub Rule-1 of Rule, 61 of Arms Rule, 2016 and point iv of GNCT Policy dated 30.08.2007 or any further provision in prevailing policy.
- b) If the licensee fails to submit application for renewal of license along with requisite documents within stipulated time.
- c) During inspection, if the records of transactions not found in conformity with and Arms Act, 1959 and /or Arms Rule, 2016 as amended from time to time.
- d) There is no business /transaction discovered during the last 6 months (Condition 1 (c) at Form VIII).
- e) Any other irregularity/violation of condition of the license noticed by the Licensing Unit, Delhi Police during inspection.
- f) On violation of GNCT Policy, dated 30.08.2007 or any further provision in prevailing policy, for addition of partner to an existing partnership firm.
- g) Not recommended by Local Police due to justifiable reasons.
- h) In case of any irregularity/violation of condition of the license observed during the annual audit.

PROCEDURE:

- (I) In case of any violation mentioned above is noticed, the case for cancellation of Dealership and/or Gunsmith License shall be processed by Licensing Unit.
- (II) Apart from reasons of cancellation, the draft recommendation of Licensing Unit, Delhi Police shall mention that the Firearms and Ammunition in stock, kept in Safe Custody and kept for repair shall

be transferred to 'District Nazir'.

- (III) The case, duly recommended by the Licensing Unit shall be forwarded to Home Department, GNCT for decision of the Licensing Authority i.e. Hon'ble L.G./Delhi.

5(A)(IV)(v) SUPPLY OF DAILY INVENTORY ONLINE, AT REAL TIME, BY ARMS & AMMUNITION DEALERS:

Arms & Ammunition dealers registered with Licensing Authority Delhi, shall provide daily inventory with respect to sale purchase of arms and ammunitions online to Licensing Unit on the portal prepared for this purpose. All the Arms & Ammunition dealers have been provided Login I.D. and password for access to the portal.

5(A)(IV)(vi) GRANT OF LICENSE FOR MANUFACTURING OF AIR WEAPONS DEFINED AT CATEGORY-III (F) OF SCHEDULE-I OF ARMS RULE

On receipt of an application seeking License for Manufacturing of Air weapons mentioned at Category-III (f) of Schedule-I, the application shall be processed at Licensing Unit. After completion of requisite documents, the application with appropriate recommendation of the Joint C.P./Licensing Unit shall be forwarded to GNCTD for the approval of the competent authority i.e. L. G. Delhi. As per Item No, 6(a) of Schedule-II of the Arms Rule, 2016, the renewing authority of such type of Arms License is Joint C. P./Addl. C.P. Licensing as the case may be.

5(A)(IV)(vii) INSPECTION OF IMPORTED FIREARMS

IMPORT AUTHORIZATION: Import authorization (i.e. Import License) is granted to Arms & Ammunition Dealer by the office of Director General of Foreign Trade (DGFT) under the provisions of the Foreign Trade (Development and Regulation) Act, 1972. As per Rule-87 of Arms Rule, 2016 the persons bringing into India the arms and ammunition as a part of their personal baggage shall be governed by the Custom Act, 1962 (52 of 1962) and the rules made thereunder.

PROVISIONS RELATED TO INSPECTION OF IMPORTED FIREARMS AND AMMUNITION BY LICNSING AUTHROITY:

RULE-88 (4): On arrival of the shipment of fire-arms or parts of fire-arms or ammunition in India. The dealer or manufacturer shall immediately notify the Licensing Authority as well as the Licensing Authority for the port of entry where the shipment has arrived.

RULE-88(5) (a): The dealer or manufacturer shall within 72 hours of the arrival of the fire-arms or ammunition in India arrange with the Licensing Authority of the port of entry to physically inspect the fire-arms or ammunition.

RULE-88(6): Any delay in carrying out the inspection referred to in sub-rule (5) within 72 hours resulting in any additional charges or demurrage shall be attributed to the licensing authority at the port of entry and the custom authority and not the importer licensee.

PROCEDURE:

- (i) On receipt of application from any arms and ammunition dealer for inspection of any consignment of imported firearms, FPO shall send an email to DGFT immediately for verification of Import License, after approval of the competent authority.
- (ii) FPO shall also send an email to the applicant intimating that inspection shall be carried out only after the authentication of Import License by the DGFT. It shall also be mentioned clearly that if a negative report is received from DGFT or any discrepancy is noticed during inspection, the inspection shall be withheld and no additional charge or demurrage shall be borne by Licensing Unit on account of delay in inspection due to negative report from DGFT or discrepancy noticed during inspection.
- (iii) On receipt of authentication report from DGFT, FPO shall take approval from the competent authority for inspection of consignment.
- (iv) ACP Arms Section shall nominate one or more FPOs and Armourer of Licensing Unit for carrying out inspection.
- (v) The inspection team shall carryout inspection and carefully match the description of imported firearms with the Import License and other documents.
- (vi) In case of any discrepancy is noticed, the inspection shall be withheld and same shall be conveyed through a letter to the Custom Authority and the applicant in writing immediately at the port. It shall categorically be mentioned in the letter that no additional charge or demurrage shall be borne by Licensing Unit on account of delay due to discrepancy.
- (vii) The FPO shall submit the report of inspection on the same day to the Licensing Authority, in detail.
- (viii) If it is not possible to submit inspection report on the same day, FPO shall convey inspection report to ACP/Arms telephonically or digitally and shall submit the same next day.
- (ix) A report shall also be sent to DGFT next day, after the approval of the Licensing Authority, if some discrepancies were noticed by the inspection team and inspection was put on hold.

5 (A)(V) GRANT OF LICENSE TO SHOOTERS/SPORTS PERSONS ETC.

5(A)(V)(i) PROVISIONS FOR SHOOTERS / SPORT SHOOTING ASSOCIATION/SHOOTING RANGE INCLUDING QUANTITY OF AMMUNITION PERMITTED TO DIFFERENT CATEGORIES

LICENSE FOR TRAINING AND TARGET PRACTICE: As per Rule, 36 (1) of arms Rule, 2016, any person below the age of twenty-one years but not below the age of twelve years may be allowed to use permissible category of arms for the purposes of training in the use of such arms in the immediate presence, or, under the direct supervision and guidance, of an adult instructor or the licensee:

Rule 36(2) :Any person who applies for a license to possess permissible category of arms in Form-III in order to practice sport shooting shall be required to show evidence that he participates in such activities or that he is in a structured learning process.

Rule 36(3) :The use of arms that are licensed for the purpose of sport shooting shall be limited to practice and competition at sport shooting clubs or at shooting ranges.

RENOWNED SHOOTER:Means a person who has participated in a National Shooting Championship in an Open Men's or Open Women's Event or Open Civilian's Event whether through qualifying tournament or wild card entry conducted in accordance with the rules of International Shooting Sports Federation (ISSF) and has attained the Minimum Qualifying Score prescribed by the National Rifle Association. (Rule, 40(2) (c) of Arms Rule, 2016).

JUNIOR TARGET SHOOTER: Means a person who has completed the age of twelve years but is below the age of twenty-one years and has taken part in at least one State Championship (held once a year) or in the Zonal Championship or National Level Shooting Competition recognized by National Rifle Association and/or by respective State Rifle Association. (Rule, 40(2) (d) of Arms Rule, 2016).

ASPIRING SHOOTER: Means a person who has taken part in at least one State Championship (held once a year) or in the Zonal Championship or National Level Shooting Competition recognized by National Rifle Association and/or by respective State Rifle Association and attained the prescribed Minimum Qualifying Score specified by the National Rifle Association of India. (Rule, 40(2) (e) of Arms Rule, 2016).

5(A)(IV)(ii) LICENSE FOR SPORT SHOOTING ASSOCIATION: Sport shooting association or a club or a military mess affiliated to the respective State Rifle Association or National Rifle Association of India, shall be eligible to apply for a license in Form-V and to acquire and possess arms and

ammunition that are used and /or stored at their premises. (Rule, 37 of Arms Rule, 2016).

5(A)(IV)(iii) LICENSE FOR SHOOTING RANGES: Any person, applying for a license for an indoor or an outdoor private shooting range shall be required to meet the technical and security standards as may be specified by the Central Government in this regard by passing a general or special order. (Rule, 38 of Arms Rule, 2016).

IMPORTANT PROVISIONS RELATED TO SHOOTERS:

1. Special provisions related to possession of arms etc. for shooters have been made vide MHA notification no. S.O. dated 12.02.2020 which are enumerated below:
 - (a) The Junior target Shooter claiming exemption under the above notification should have completed the age of twelve years.
 - (b) Area validity of licenses issued to Arjuna Awardees, International Medallist / Renowned Shooters, Junior Target Shooters, Aspiring Shooters will be for All India and the issuing licensing authority shall be authorized to grant the same without referring it to the Central or State Government for approval.
 - (c) For Arjuna Awardees and International Medallist/ Renowned Shooters, a weapon with spare or conversion barrels is to be treated as one weapon only at the time of endorsement on the license and full details of the said weapon and such spare or conversion barrel shall be endorsed on the respective Arms License.
2. The exemptions related to possession of arms of various categories of shooters as per Notification dated 12.02.2020 issued by MHA are at **Annexure-XI**.
3. As per Rule, 40 of Arms Rule, 2016, the Quantity of ammunition permitted to different categories of shooters/NRAI/Shooting Clubs/Sport Shooting Association is at **Annexure-XII**.
4. Certifying bodies, certification contents in respect of shooters have been specified in rule 40(2) of the Arms Rule, 2016 while renowned/aspiring/junior target shooters have been defined in the explanation thereof.
5. DGFT vide public notice No 14(RE 2013)/2009-2014 has informed about the amendment in Para 2.43.2(C) of Handbook of Procedure Vol.I0, 2009-2014 which reads as " Prior permission of DGFT shall not be required for transfer of weapon/s (firearm/s) imported by a renowned shooter for the purpose his/her pursuing shooting as a sport to any upcoming shooter as certified either by the NRAI or Department of Sports, Ministry of Youth affairs & Sports after two years from the date of import. The transferee can subsequently

transfer/resell to any buyer as certified by the NRAI or Department of Sport for the sole purpose of pursuing shooting as a sport after one year from the date of its first sale”.

6. The members of National Rifle Association of India including the renowned shooters at different levels are exempted from the restriction imposed about depositing of arms and ammunition during elections.

5 (A)(VI) GRANT OF LICENSE TO MUSEUMS:

As per Rule, 41 (1) of Arms Rule, 2016, any museum applying for a license for display of arms and ammunition must possess due accreditation with the Ministry of Culture and registration under any of the Central or State Acts. The requisite documents and other conditions have been enumerated in Rule- 41 of Arms Rule, 2016.

5 (A)(VII) GRANT OF ADDITIONAL LICENSE FOR INDIVIDUALS

Rule-20 of Arms Rule, 2016:

Additional licenses for individuals.-(1) The holder of a license in Form III, for permissible category of fire-arms, as specified in schedule I, may apply for grant of additional license for any two of his close relatives who are not in possession of any license in Form B-4 (Annexure-XIII) and who are residing with him at the address given in the license, to possess, carry or use any of the arms or ammunition covered by his license and the licensing authority shall grant a license to such additional licensee if the eligibility conditions under the Act and these rules are fulfilled by the said additional licensee and there are no adverse remarks in the police report.

- (2) The additional licensee under his UIN shall be granted a separate license, with the arms and ammunition of the parent license endorsed thereupon: Provided that the additional licensee shall not be permitted to, acquire any arms or ammunition on his license.
- (3) The additional licensee shall not obtain a license in his individual capacity during the period he holds an additional license under this rule.
- (4) The licensing authority shall ensure that the details of additional licensees are endorsed on the parent license and the period of validity and the area validity of the additional license are *pari passu* with that of the parent license and if the parent license is suspended, revoked or cancelled, the additional licenses shall also be subject to the same consequence.

- (5) The additional licensee shall not sell or transfer the arms and ammunition endorsed on his license.
- (6) In case the holder of an additional license shifts temporarily or permanently from the premises of the parent licensee, such additional license shall automatically lapse and the person to whom such additional license was issued, shall return his license to the licensing authority by whom the license was issued and the responsibility for furnishing such intimation to the licensing authority shall be that of the parent licensee.
- (7) The parent licensee may request the licensing authority to revoke or cancel the license of any of his additional licensees by submitting an application along with the original license and in all such cases, the licensing authority shall revoke or cancel the license of the additional licensee.

CLOSE RELATIVES: For the purposes of this rule, "close relatives" mean spouse, son, daughter, brother, sister, daughter-in-law and son-in-law.

5 (A)(VIII) GRANT OF ARMS LICENSE TO BANK/ INSTITUTIONS/ ORGANIZATIONS

SUBMISSION OF APPLICATION

A responsible person (as defined under clause (44) of Rule-2 of Arms Rule, 2016) will register online for the required service on the Licensing Unit's website (<http://www.delhipolicelicensing.gov.in>) for obtaining Login ID and Password. Applicant will login with Login ID & Password, fill the online application form (Form A-2, **Annexure-XIV**) for the grant of a license in form-II or Form-III and upload all self-attested copies of the following prescribed scanned documents as per Rule-11(5) of Arms Rules, 2016.

DOCUMENTS:

- a) Written undertaking on the letter head of the applicant duly signed by the responsible person defined under clause (44) of rule 2.
- b) Original copy of the board resolution passed or an authority letter confirming the appointment of responsible referred to in clause (a);
- c) Certified copies of the founding documents of the company including Memorandum and Articles of Association;
- d) Safe use and storage of firearms undertaking referred to in sub-rule (4) of rule 10 as given at **Annexure-II**.

PROCESSING OF APPLICATIONS:

The application seeking grant of an arms license in form-II or Form-III by an Institution/Organization shall be processed in the same manner as is processed for an individual arms license.

BROAD PRINCIPLES

1. The grant of such license will depend upon the number of licenses already held by that company/institution. Further record of all the licenses issued to the company/institution shall be kept in one file consolidating all the licenses of its various branches, so that the overview is not lost sight of.
2. The License shall be issued in the name (with designation) of the responsible person who shall be accountable and responsible for the custody of the arms and ammunition.
3. As per MHA order SO 954 dated 08.12.1987, licensing authority shall after taking into account the size, nature and location of the establishment and such other factors as such licensing authority may consider relevant and after considering the views of the establishment determine the number of firearms that may be acquired or possessed by such establishment. This order is an exemption to Section 3(2) of the Arms Act, 1959.

5 (A)(IX) GRANT OF PERMIT FOR RETAINERS FOR COMPANIES

- (1) Rule 22, of the Arms rules, 2016 provides that (1) A license in Form II or Form III granted to a company for the protection of its premises or property shall be in the name (with designation) of the responsible person who shall be accountable and responsible for the custody of the arms and ammunition.
- (2) The name of a servant or any other employee entrusted with the arms and ammunition for guarding the premises or property of the company shall be entered as a retainer in the license. (Rule 22 (2) of Arms Rule, 2016).
- (3) The licensing authority shall issue a permit to the licensee in Form III-B for each of such retainers shown in the license and such permit shall remain in the personal custody of the responsible person of the company and shall be handed over to the retainers when they are entrusted with the arms and ammunition covered by the license. (Rule 22 (3) of Arms Rule, 2016).

Provided that at the time of making application for retainer the licensee shall submit along with the application in Form B-3 (**Annexure-XV**), four recent passport size photographs of the retainer to be appointed and the proof of his employment with the company:

Provided further that the licensing authority, shall obtain a report from the Police about the antecedents of the retainer and take into consideration such report before admitting him as a retainer.

ADDITION/ DELETION OF NAME OF RETAINERS

On an application from a company, holding a license in Form II or Form III, for a change of the responsible person of the company in whose name the license has been granted or of a retainer included in the license, the necessary amendments may be made in the license by the licensing authority. (Rule 22 (4) of Arms Rule, 2016).

PROCEDURE:

Every application in Form B-3 submitted by a company for addition/deletion of name of a retainer in arms license shall be accompanied by the following documents, namely;- (the applications shall be dealt with in offline mode till the online service is commissioned)

1. Application on Form B-3.
2. Four recent passport size photographs.
3. Appointment/Transfer order issued by the competent authority.
4. Copy of the license issued to the company.
5. Proof of identity of the retainer; Aadhar Card; or in case the applicant does not have Aadhar Card, a written declaration to be submitted in the form of an Affidavit along with an alternative identification proof which may include — Passport; Voter Identification Card, PAN Card or Identity Card issued to the employees;
6. Proof of residence of the retainer; in case the applicant does not possess Aadhar Card or Passport, which may include- voter's identification card; or electricity bill; or landline telephone bill; or rent deed or lease deed, or property documents; or any other document to the satisfaction of the licensing authority.
7. Police verification/PCC of the person to be added as retainer (not older than one year).

5 (A) (X) GRANT OF JOURNEY/ TRANSPORT LICENSE

JOURNEY LICENSE: Journey License to individual and Gun Dealers is issued as per Rule 96 & 97 of the Arms Rules, 2016. Journey License is issued in Form XI (**Annexure-XVI**), when the subject weapon is endorsed upon the arms license of the applicant.

TRANSPORT LICENSE: Transport License to individual and Gun Dealers is issued as per Rule 96 & 97 of the Arms Rules, 2016. Transport License in Form XII (**Annexure-XVII**), is issued when the subject weapon is not endorsed upon the arms license.

BROAD PRINCIPLES: The T.L. should be granted for a period not longer than twice the predicted journey time for individual licensees and not more than 1 month in any case which may be extended as per the request of the licensee in genuine cases. However, the period of such T.L. may be for a period not exceeding 3 months for industrial purposes for transporting ingredients of ammunition.

TRANSPORT/JOURNEY LICENSES ARE ISSUED TO:

1. Individual arms license holders holding arms license issued by outside Licensing authority (not valid in Delhi), intending to purchase/carry the weapon from/in jurisdiction of Delhi Licensing Authority are issued Journey License in Form XI, if the weapon is endorsed on A/L of the applicant and Transport License in form XII, if the weapon is not endorsed on A/L, after obtaining application in FORM A11 and A12 respectively.

Requisite documents are: -

- i) Application in FORM A-11 or A-12 whichever is applicable, as provided in Arms Rule, 2016.
 - ii) NOC from the destination Licensing Authority.
 - iii) Self-certified copy of relevant pages of Arms License Booklet.
2. Arms and ammunition dealers holding dealership license granted by outside Licensing Authority, intending to purchase and carry weapons/consignment of weapons from the jurisdiction of Delhi Licensing Authority are issued Transport License in FORM XII after obtaining application in FORM A12.

Requisite Documents are:

- i) Application in FORM A12.

- ii) NOC from the destination Licensing Authority.
- 3. The individual arms licensee holding arms license registered in Delhi and seeking registration with some other Licensing Authority due to change of address is issued Journey License in FORM XI after obtaining application in A11.

Requisite documents are:

- i) Application in FORM A11.
 - ii) Transfer Order (in case of government servant)
 - iii) Outside address proof.
4. A licensee intending to get his weapon repaired from outside the jurisdiction of Delhi Licensing authority whereas he holds arms license issued by Delhi licensing authority (not valid for destination State/City) is issued Journey License in FORM XI after obtaining application in FORM A11.
- i) Copy of Arms License.
 - ii) Consent of licensed gunsmith.
 - iii) Copy of arms license for repair etc.
5. The Transport License is issued in FORM X after obtaining application in FORM A10 for release of weapons arrived at/departing from IGIA as import/export consignment.
- i) Application in FORM A10 of the Arms Rules, 2016.
 - ii) Self-certified copy of Foreign Trade License (applicable for dealers only).
 - iii) Copy of Invoice.
 - iv) Copy of arms license.
 - v) Copy of import license issued by NRAI (applicable in case of shooters).

5 (A)(XI) GRANT OF NOC FOR BRINGING WEAPON FROM OUTSIDE DELHI

The NOC is granted on the prescribed format (**Annexure-XVIII**) for bringing the weapon from outside Delhi in the following two cases:

- i. **To a Delhi based licensee for bringing the weapon from outside Delhi :**

Documents required

- a) Application on the prescribed proforma.

- b) In case the weapon is to be brought from any authorized factory – the proof of weapon allotment by the authorized factory.
 - c) In case the weapon is to be brought from any individual arms licensee – the photocopy of the arms license booklet of the individual depicting the 45 days' notice on the arms license booklet of the transferor.
- ii. **For investigating officers for bringing in arms or ammunition (other than service weapon) for necessary enquiry into Delhi :**

Documents required

Letter of SHO or senior officer regarding the requirement citing the case number.

PROCEDURE

The application seeking Grant of NOC for bringing the weapon from outside Delhi shall be processed on e-office immediately/L shall be issued after obtaining approval from the Licensing Authority or from any officer authorized by him on his behalf on receipt of the required documents on the prescribed form.

5 (A)(XII) GRANT OF ADDITION/CONVERSION OF WEAPONS ON EXISTING ARMS LICENSE:

CONVERSION:

Rule 18, Arms Rule, 2016 defines the power of Licensing Authority to convert the existing category of granted firearms into different description of firearms on the request of the licensee. The relevant portion of Rule, 18 is reproduce below:

“Provided further that if during the period of two years or the extended period of one year, as the case may be the licensee wishes to acquire and possess any arms or arms of a different description and the licensing authority has no objection to allow the acquisition and possession of such arm or arms, he may amend the license accordingly.

SUBMISSION OF APPLICATION

Applicant will register online for the required service on the Licensing Unit's website (<http://www.delhipolicelicensing.gov.in>) for obtaining Login ID and Password. Applicant will login with Login ID & Password, fill the online application for Addition/Conversion of firearms in prescribed format given at **Annexure-XIX** and upload all self-attested copies of the following prescribed scanned documents as per Arms Rules, 2016.

DOCUMENTS:

1. Application for addition/conversion to be filled online on the prescribed format.
2. Copy of Arms License booklet/Smart Card mentioning clearly the numbers and type of weapons already held by the applicant.
3. Prescribed affidavit to be uploaded online.
4. Documents pertaining to addition in case of death/transfer of weapon on inheritance basis to be uploaded online-
 - (a) Death certificate of licensee whose weapon to be added, in case of death only
 - (b) Weapon deposit permission in case of death of the licensee whose weapon is to be added.
 - (c) Weapon deposit receipt, issued by the authorized arms dealer or the Police Station as the case may be.
 - (d) Prescribed Indemnity bond attested by a Notary as given at Annexure-IV.
 - (e) Copy of Arms License of the deceased or the transferor as the case may be.
 - (f) In case of transfer of the weapon the NOC/consent of licensee who intends to transfer his weapon to his legal heir. Affidavit attested by a Notary from the licensee to the effect that he/she has no objection for the transfer of the arm in the name of applicant and he/she shall not apply in future; as given at Annexure-VI.
5. Following documents shall be uploaded online if any person in service or having served in the Defence Forces, Central Armed Police forces or the State Police Force-
 - (a) NOC from the department.
 - (b) Proof of official address, if any.
 - (c) Date of retirement (copy of order issued by the office in case of Govt. Servant/Army/COP's/Police/DHG personnel)
 - (d) The security guard should submit an undertaking from his employer regarding their requirement and his training.
6. Any person who requires addition/conversion of weapon by nature of his business, profession, job or otherwise shall upload following documents:

- (a) Papers like MCD/NDMC/Delhi Cantonment Registration Certificate/ Sales Tax Receipt/Service Tax Receipt/VAT Receipt.
 - (b) Documents showing yearly income
 - (c) Documents showing yearly turnover
 - (d) Documents showing daily transaction
 - (e) Documents showing number of employees
 - (f) Threat perception, if any
7. In case of renowned shooters/sports activities following documents shall be uploaded online:
- 1. Certificate of participation in State/Zonal/National Level Shooting Competition recognized by National Rifle Association.
 - 2. Certificate/recommendation from NRAI duly attested by Ministry of youth Affairs and Sports, Govt. of India, New Delhi for addition of a weapon for practice and participation in Shooting Competition.

PROCEDURE FOR PROCESSING OF APPLICATIONS FOR ADDITION/ CONVERSION OF THE WEAPON IN ARMS LICENSE.

After completion of requisite documents, application shall be sync on Local Area Network (LAN) by the EDP section. The application synced on the LAN shall be processed internally by the File Processing Officer in the Arms Section in the following manner:-

- 1. The File Processing Officer (FPO) of Arms Section shall scrutinize the application form and documents on record and ensure that the documents are in order. FPO shall analyse the available information, documents, docket, LAN data, SCN record and check SCRB database etc. and submit his/her report on the prescribed template (available on the LAN) for further processing.
- 2. Inspector/Arms will check the report of the FPO. He/she will give his/her comments/observations on the LAN and forward the same to senior officers.
- 3. The applications shall be decided by the Licensing Authority.
- 4. The applicant shall be informed of the decision of Competent Authority through e-mail/SMS and appointment shall be scheduled for endorsement of weapon addition/conversion, if the application is approved by the Competent Authority.
- 5. The Arms Section shall update the decision of the Competent Authority in the LAN and endorse the approved weapon addition/conversion in the

license booklet/Smart Card on scheduled date of appointment. The number and date of the order of the Competent Authority shall be mentioned in the endorsement of weapon due to addition/conversion, as the case may be.

6. Arms Section shall forward the file to EDP Section after endorsement of weapon addition/conversion on the license booklet/Smart Card and updation on LAN. EDP Section shall update the addition/conversion of weapon in ALIS and send the entire file to the record.
7. Fee for addition/conversion shall be charged as per Schedule-IV of the Arms Rules, 2016

5 (A)(XIII) GRANT OF EXTENSION OF AREA VALIDITY OF EXISTING LICENSE

5 (A)(XIII)(i) POWER OF LICENSING AUTHORITY/JOINT C.P./ADDL.C.P: Rule 19 (2) of the Arms Rules, 2016, provides that the application for extending the area validity to whole of India may be granted by the licensing authority as specified in column (5) of Schedule II, in respect of the following category of licensees, namely:-

- (a) Union Ministers/ Members of Parliament;
- (b) Personnel of Defence Forces/ Central Armed Police Forces;
- (c) Officers of All India Services;
- (d) Officers in the Government or Government Sector Undertakings or Public Sector Undertaking with liability to serve anywhere in India;
- (e) Dedicated sports persons and the sports persons specified in serial No (1) to (4) of the table in sub-rule (2) of Rule 40

It inter alia empowers the **Joint Commissioner/Addl. Commissioner of Police**, Licensing to extend the area validity of the license to All India to the above categories of licensees.

5 (A)(XIII)(ii) POWER OF HON'BLE L.G./DELHI: Rule 19 (3) of the Arms Rules, 2016, provides that in other cases, where the licensing authority is satisfied that the nature of business or profession of the applicant requires him to carry arm or arms frequently beyond the existing jurisdiction and such a requirement may not be met by the issuance of a journey license in form XI of Arms Rule, 2016, the application for extending the area validity for whole of India may be granted by the licensing authority specified in column (5) of Schedule II, to the applicant. It inter alia empowers the State Government/ LG, Delhi to extend the area validity beyond Delhi.

Rule 19 (4) of the Arms Rules, 2016, provides that the area validity granted under sub-rule (3) shall not terminate with the validity period of the

license and the renewing authority shall not vary the area validity at the time of renewal of license.

Provided that where in any case, the renewing authority on the basis of some material evidence, is satisfied that area validity for whole of India is not required anymore, it may send the recommendations to the licensing authority concerned for review of the area validity.

The Area validity of the licenses shall automatically be extended concurrently with the renewal of the respective arms licenses, as per order of Hon'ble LG/Delhi vide No. F.13/373/2019/HG/1917 dated 15.12.21.

5 (A)(XIII)(iii) BROAD PRINCIPLES FOR EXTENSION OF AREA VALIDITY:

1. The desirability to extend the area validity should be assessed keeping in view the provisions of the Arms Act, 1959.
2. In case of request for extension of area validity, the Joint C.P./Licensing shall call applicant for interview only in exceptional circumstances.
3. Having property in any state(s) should not be the only criterion for consideration/recommendation of request of applicant for the extension of area validity. The recommendation must be based on overall threat perception to the applicant and need to carry his/her weapon beyond the existing jurisdiction, and this point should also be taken into consideration while recommending any case of extension of area validity.
4. Plea of carrying cash must not be encouraged and cashless transaction needs to be encouraged.
5. While considering extension of area validity on the ground of nature of business/profession of the applicant, the applicant may be requested to furnish all the latest/genuine/authentic documents, issued by the concerned competent authority, so as to ensure that the submissions made by the applicant with regard to his/her profession & nature of business are genuine. If needed, report from the local Police Station may also be obtained so as to ensure/verify the submission made by the applicant.
6. Business persons holding key positions in businesses/professions with substantial turn over and bona fide frequent & daily cash transactions in huge amount, may be considered for extension of area validity. Applicants whose business establishments have already faced some kind of a threat, which is on record may be given due consideration.

7. In cases where applicant has submitted that he/she is having established office in the requisite state(s) then the applicant must be requested to attach all the requisite/authentic/genuine documents, issued by the concerned competent authority, in support of his submissions.
8. While recommending places/states not adjoining NCT of Delhi, the route of journey (shortest) be obtained from the applicant. The on-route states (shortest route) be taken into consideration by the Licensing Authority, Delhi Police, in such recommendations, and in such cases area validity will be granted for destination state/place via enroute state (s) (shortest route).
9. The applications in respect of licenses which are initially issued from other states and subsequently registered in Delhi should be thoroughly scrutinized to guard against the malpractice by some residents who obtain licenses from elsewhere and subsequently apply for other services including extension of area validity.
10. Existing jurisdictional validity shall not be curtailed without obtaining the specific approval of the Addl. Commissioner/Joint commissioner of Police.
11. The jurisdictional validity of arms licenses issued from other jurisdictions shall not be curtailed, if the details match with the data available in the NDAL/ALIS, subject to final decision on the basis of the report confirming the genuineness and the jurisdictional validity of respective arms license.
12. The jurisdictional validity of arms license approved by the competent authorities by virtue of the powers conferred upon Rule 19(2) of Arms Rules, 2016 shall not be curtailed on superannuation.
13. The Area validity of the licenses shall automatically be extended concurrently with the renewal of the respective arms licenses, as per order of Hon'ble LG/Delhi vide No. F.13/373/2019/HG/1917 dated 15.12.21. However, prescribed fee of Rs. 500/- as per schedule shall be charged for renewal of extension of jurisdictional validity.

5 (A)(XIII)(iv) PROCEDURE FOR PROCESSING OF APPLICATIONS FOR EXTENSION OF AREA VALIDITY

The online application synced on the LAN as per the general procedure for online application submission and processing outlined above shall be processed internally in the following manner:-

1. The FPO, Arms Section shall scrutinize the application form and documents on record and ensure that the documents are in order. FPO shall analyse the available information, documents, docket, LAN data and check SCRB record, etc. and submit his/her report on the

prescribed template (available on the LAN) for further processing.

2. Inspector/Arms will carefully examine the application form, documents on record and report of the FPO. He/she will give his/her comments/observations in the LAN and forward the same to senior officers in digital as well as physical form.
3. Arms Section shall forward the applications falling under rule 19 (3) to the GNCT of Delhi for the approval of Hon'ble LG/Delhi with the approval of the Addl. Commissioner/Joint Commissioner of Police.
4. The applications falling under rule 19 (2) shall be decided by the Addl. Commissioner/Joint commissioner of Police.
5. The applicant shall be informed of the decision of Competent Authority through e-mail/SMS and appointment shall be scheduled for endorsement of extension of area validity, if the application is approved by the Competent Authority.
6. Arms Section shall again process the application upon receipt of the file from the GNCT of Delhi. The Arms Section shall update the decision of the Competent Authority (Hon'ble LG, Delhi) in the LAN and endorse the approved area validity in the Arms License Booklet in case of Restricted firearm and Smart Card in case of Permissible firearms on scheduled date of appointment after formal approval of the Addl. Commissioner/Joint Commissioner of Police. The number and date of the order of the Competent Authority shall be mentioned in the area validity endorsement.
7. Arms Section shall forward the file to EDP Section after endorsement of area validity on the license booklet and updation on LAN. EDP Section shall update the area validity in ALIS and send the entire file to the record.

Every online application submitted by an individual for extension of area validity shall be accompanied by the following documents as specified by the GNCT of Delhi vide F. No. 13/59/2017/HG/5867 dated 27.10.2017 for processing the area validity extension cases to GNCTD:-

1. Application form (to be filled online). **(Annexure XX)**
2. Affidavit on the prescribed format explaining the requirement for extension of area validity. **(Annexure- XXI)**
3. Medical certificate about mental health and physical fitness of the applicant with specific mention that the applicant is not dependent on intoxicating or narcotic substances (in Form S-3 of the Arms Rules, 2016); **(Annexure III)**
4. Self attested copy of arms license to be uploaded online.
5. Self attested copies of the proof of identity and proof of residence.

6. Documentary proof justifying area extension, based on which the applicant is seeking extension of the area validity viz certified copies of the property owned by the applicant with name(s), relation(s) of owner(s) in the requisite/concerned state(s) for which extension is sought.
7. If license is registered from outside, then genuineness and Character Verification report.
8. In case of Govt./private service, service certificate issued by his supervisory officer/Employer/Head of Office (with name, Designation and complete office address) containing present posting, present address, permanent address and desirability report that the applicant needs extension of his Arms License in requisite/concerned State (with date of issue of serving certificate).
9. In case of businessmen, copies of ownership documents of property/business) regarding business premises/office/property in the requisite/concerned state(s), required under Law and Regulations including GST be provided. If the applicant has established office in the requisite state(s) then the applicant may attach all the requisite/authentic/genuine documents, issued by the concerned competent authority, in support of his submissions.(Self Attested).
10. Proofs/copies of documents with date(s) regarding frequency/number of visits to the place(s)/concerned State(s) for which extension is sought including copies of fare tickets, petrol pump receipts, toll tax receipts etc.(with check-list/datetime list and Self Attested)
11. The proposed/shortest route journey and Map by/through which the applicant travels to the proposed area of extension (Self Attested).
12. If there is any threat perception, documentary proof be attached with full justification to carry weapon in the requisite/concerned State(s)/beyond the existing jurisdiction. (Self Attested)
13. Undertaking to the effect that all the documents provided by the applicant are correct/genuine/authentic/latest and there is no anomaly in the documents furnished by him. In case of ambiguity in documents, his case may result in rejection.
14. Recommendation Letter From NRAI/ SAI for extension of area validity to all India, copies of certificates (Renowned Shot/Aspiring Shooter/ Participation Certificate) and shooter ID Card issued by of the NRAI, if the applicant is a shooter.

5 (B) RENEWAL OF ARMS LICENSE

SECTION 15 (3): Every license shall, unless the licensing authority for reasons to be recorded in writing otherwise decides in any case, be renewable for the same period for which the license was originally granted

and shall be so renewable from time to time and the provisions of section 13 and 14 shall apply to the renewal of a license as they apply to the grant thereof..

The arms license shall be renewed under provisions of Section-15 of The Arms Act, 1959 and as per procedure prescribed in Rule -24 of The Arms Rules, 2016 for a period of 5 years subject to payment of fee as prescribed in Schedule-IV (Table A, Part-I) and the time limit for the service of renewal is as prescribed in Schedule-V of The Arms Rules, 2016.

5 (B) (I) DOCUMENTS REQUIRED

1. Application for renewal in form A-3 to be filled online. (**Annexure XXII**).
2. Latest photograph of the applicant (in white background) to be uploaded online.
3. Arm shall be inspected at the time of renewal in order to verify that it is still in the possession of the licensee at the time of renewal. (Rule-30 of Arms Rule, 2016).
4. Copy of Arms License (original license to be produced at the time of renewal).
5. PAN Card/Number should be asked only at the time of grant of license and PAN number should be reflected in separate field in license details in LAN for permanent record.
6. Proof of residence; in case the applicant does not possess Aadhar Card or Passport - (election card, or electricity bill, or landline telephone bill, or rent deed or lease deed, or property ownership's documents or any other document to the satisfaction of the licensing authority).
7. Proof of identity; Aadhar Card or in case the applicant does not have Aadhar Card, a written declaration to be submitted in the form of an Affidavit along with and alternative identification proof which may include - Passport, Voter Identification Card, PAN Card or Identity Card issued to the employees.
8. Posting-cum-residence certificate / recommendation from the Commanding / Supervisory Gazetted Officer is mandatory in case of the personnel of Armed Forces Personnel, Paramilitary, Police forces and Personnel of All India Services. (**ANNEXURE- XXIII**).

NOTE: Posting-cum-residence certificate / recommendation from the Commanding / Supervisory Gazetted Officer may be exempted to officials who are presently ENTRUSTED WITH SUCH SERVICES where identity is not disclosed to the public. Some other documents confirming them a government official may be obtained, e.g. Salary Slip, I.D. Card, Land Line Telephone Bill for residence

proof, Water Bill, Electricity Bill or any other documents that satisfy the Licensing Authority.

9. Undertaking on the prescribed format. **(Annexure XXIV).**
10. Declaration on the prescribed format in case of late renewal **(Annexure XXV).**
11. Photograph of firearm showing:
 - (i) Complete weapon, (ii) Weapon bore (iii) Make.

5(B)(II) PROCEDURE FOR RENEWAL OF ARMS LICENSE OF INDIVIDUALS/SHOOTERS

1. Section 15 of the Arms Act, 1959 provides that a license under section 3 shall, unless revoked earlier, continue in force for a period of five years as per The Arms (Amendment) Act, 2019 in section 15 of the principal Act from the date on which it was granted.

An application for renewal of a license for arms or ammunition shall be filed in the form wherein specified at least sixty days prior to the expiry of the said license with the licensing authority along with the documents wherein specified in the Form.

2. The Arms Rules, 2016 mandates antecedent verification at the time of renewal of licenses, therefore, antecedent verification report should invariably be called at the time of renewal of licenses apart from checking against SCRB data, NCRB/ICJS and local database for SCN etc.

Provisions of Rule 24 (5) should be kept in mind while deciding cases of late renewal. If the license has not been renewed for unduly long period without any reasonable explanation for non-renewal, such application may be treated as one for grant of a fresh license. Cases of late renewal shall be forwarded to the senior officers as per the escalation matrix decided by the Licensing Authority.

3. System generated message shall be sent to a licensee if he/she has not applied for renewal of the arms license even after six months of the expiration of the license informing him/her that due to non-renewal his possession of the firearms has become illegal and he/she is directed to deposit the firearm with the jurisdictional police station or an authorized arms dealer immediately and apply for renewal of the license (reference Section 21 of the Arms Act, 1959).
- 4 Existing area validity of the license shall not be curtailed without obtaining the specific approval of the Licensing Authority. The Area validity of the licenses shall automatically be extended concurrently with the renewal of the respective arms licenses, as per order of Hon'ble LG/Delhi vide No. F.13/373/2019/HG/1917 dated 15.12.21. However, prescribed fee of Rs. 500/- as per schedule shall be charged for renewal of extension of jurisdictional validity.
5. Schedule I of the Arms Rules -2016 categorizes various Arms as Prohibited Arms, Restricted, Arms, Permissible Arms and Arms other than Firearms. Scheduled-II of the Rules prescribes the Licensing Authority as well as Renewing Authority for a particular category of Arms. Several cases have been noticed wherein Prohibited Bore (PB) Arms or Restricted Arms as defined in Schedule I of Arms Rules 2016 have been found endorsed upon Non-Prohibited Arms License booklet. Similarly, Non-Service Pattern (NSP) Arms endorsed upon PB Arms license or NPB Arms License booklet possessed by non-entitled persons are presented for the grant of various services like renewal, issuance of Arms License booklet, permission to sell etc. In the light of advisory of Ministry of Home Affair, Director General of Ordnance Services and Arms Rules-2016, the following should be adhered to :-
 - A) Persons in possession of NSP Arms and not satisfying the criteria laid down in the circular No. A/17301/NSP/Gen/OS-15A, dated. 06.04.2018 issued by the Directorate General of Ordnance Services (OS-15A), Master of General Ordnance Branch, Integrated Headquarters of MoD (Army), New Delhi, must immediately be directed to deposit the said Arms with the due permission from DGOS, within 30 days, under intimation to this office. Sample intimation enclosed at **Annexure XXVI**.
 - B) Armed forces personnel in possession of NSP Arms of PB/Restricted Arms category on Permissible Arms License, must immediately be directed to deposit the said Arms with their respective Kot/Unit armoury within 15 days, of such direction, under intimation to this office. If he/she is retired personnel, he/she be permitted to deposit the weapon with his/her jurisdictional police station. Such arms license holders be advised to apply afresh in this office for issuance of

PB/Restricted arms license by MHA, if they want to retain the said Arms. Sample intimation enclosed at **Annexure XXVII**.

- C) Persons in possession of PB category of arms on the arms licenses issued/converted, for such category by the then competent authority, must immediately be forwarded to MHA for further renewals and issuance of PB arms license booklet. Sample intimation enclosed at **Annexure XXVIII**.
- D) Persons in possession of Restricted Arms on the arms licenses issued/converted, for such category (categorized PB at that time) by the then competent authority, be renewed with the direction to apply in this office for issuance of restricted arms license booklet by MHA. Sample intimation enclosed at **Annexure XXIX**.
- E) Persons in possession of PB arms on permissible arms licenses, must immediately be directed to deposit the PB arms with any authorized arm dealer in Delhi or concerned police station within 15 days, of such direction, under intimation to this office. Such arms licenses holders be advised to apply afresh in this office for issuance of PB arms license by MHA. Sample intimation enclosed at **Annexure XXX**.
- F) Persons in possession of Restricted arms on permissible arms licenses issued before the year 1987, be renewed with direction to apply afresh in this office for issuance of Restricted arms license booklet by MHA. Before 1987, D.M. was the Licensing Authority for issuance of PB/NPB category of licenses. Sample intimation enclosed at **Annexure XXXI**.
- G) Persons in possession of Restricted arms on permissible arms licenses issued after 1987, must immediately be directed to deposit the restricted arms with any authorized Arms Dealer in Delhi or concerned police station within 15 days, of such direction, under intimation to this office. Such arms license holders be advised to apply afresh in this office for issuance of Restricted arms license by MHA. Sample intimation enclosed at **Annexure XXXII**.
- H) Persons in possession of PB and permissible arms licenses, be renewed for permissible arms only with the direction to deposit the PB arms with concerned police station or with any authorized Arms Dealer in Delhi within 15 days, of such direction, under intimation to this office. Such arms license holders be advised to apply afresh in this office for restricted category arms license by MHA. Sample intimation enclosed at **Annexure XXXIII**.
- I) Persons in possession of restricted and permissible arms on permissible arms licenses issued before the year 1987, be renewed for both categories of arms with the condition to apply afresh in this

office to possess Restricted arms (LICENSE BOOKLET) by MHA. Sample intimation enclosed at **Annexure XXXIV**.

- J) Persons in possession of restricted and permissible arms on permissible arms licenses issued after 1987, be renewed only for permissible category of arms with the direction to deposit the Restricted arms with concerned police station or with any authorized Arms Dealer in Delhi within 15 days, of such direction, under intimation to this office. Such arms licenses holders be advised to apply afresh in this office for issuance of Restricted arms license by MHA. Sample intimation enclosed at **Annexure XXXV**.
1. Arm licenses in respect of which Show Cause Notices (SCN) have been issued and had not been renewed pending decision on these SCNs for long, may not be charged late renewal fee for the said period after the Licensing Authority vacate the SCN or decide to renew the license conditionally.
 2. The renewal can be done one month before the due date and one month after the due date. In case of late renewal, late fees will be charged.
 3. There have been many instances where the licensee is transferred outside Delhi, in such cases the renewal is done for a limited period i.e. six months (maximum six months) with the direction to the licensee to get the arms license registered at new place of posting or residence. However, in cases where the person is going on a short transfer and is likely to come to Delhi after some time the renewal may be done for an appropriate period but not exceeding 3 years.
 4. Every month renewal reminders shall be sent to the licensees one month before the expiry of their licenses.
 5. The verification and antecedents report in respect of licensee shall be called from local police/districts 60 days in advance from the date of renewal to avoid delay.

5(B)(III) PROCEDURE FOR RENEWAL OF ARMS LICENSE OF COMPANIES/BANKS

Presently, the renewal service is granted offline immediately across the counter on production of following documents by the representative of the applicant company/bank/institution:

1. The renewal request on form A-4 under the signature and seal of the responsible person (Bank Manager/authorised signatory of company/institution). (**Annexure-XXXVI**).

2. Proof of existence of Bank/Company/institution premises, latest water, electricity bill etc.
3. Authority letter issued by head of the Bank/Company/institution authorising its representative to appear before the competent authority in licensing unit for renewal of arms license.
4. Identity proof of the authorised representative including mobile number and email..
5. Written undertaking on the letter head of the applicant duly signed by the responsible person defined under clause (44) of rule 2.
6. Original copy of the board resolution passed or an authority letter confirming the appointment of responsible person referred to in clause (a).
7. Certified copies of the founding documents of the company including memorandum and articles of association.
8. Safe use and storage of firearms undertaking referred to in sub-Rule(4) of rule 10.
9. According to GSR of MHAS.O. 954, dated December 8th, 1987, Exemption has been given from the applicability of Section 3(2) of the Arms Act to a Company, Firm, Bank or Industrial or other establishment. They can keep any number of weapons.

5 (C) ALLIED SERVICES RELATED TO ALL KINDS OF ARMS LICENSES:

- I. Endorsement of weapon
- II. Sale of weapon existing on Arms License
- III. Deletion of weapon
- IV. Extension of time limit for acquisition of firearm/Purchase Period
- V. Revalidation of arms license
- VI. Issue of duplicate booklet of arms license
- VII. Cancellation of Arms License
- VIII. Registration of outside Arm Licenses
- IX. Correction in the information on existing License or any other change
- X. Issue of genuineness/NOC due to shifting of residence of licensee to any state outside Delhi.
- XI. Deposit of Arms in case of death of licensee.
- XII. Increase in quota cartridges.

5 (C)(I) ENDORSEMENT OF FIREARMS ON THE LICENSE

Rule 18 of Arms Rules, 2016, provides for Endorsement of Firearms on the license. After the grant of an arms license, the licensee can purchase the weapon of entitled category for which license is granted, from any authorized Arms Dealer, Ordnance Companies any arms license holder or issuance of firearm/NSP firearms from Central Ordnance Depot (COD). After procuring the weapon, the same shall be endorsed in the arms license by applying on the website of the Licensing Unit on **Form No. B2 Part C, Annexure-XXXVII**) along with Purchase Slip, photo copy of TL/NOC and Issue Voucher/Invoice.

Every online application in form B-1 submitted by an individual for endorsement of Firearms on the license shall be accompanied by the following documents, namely:-

1. Application for endorsement of Firearms on the license in form B-1 to be filled online.
2. Original invoice in case of acquisition from manufacturer or arms dealer.
3. Sale confirmation from the transferor licensee in case of acquisition from another licensee.
4. Coloured photograph of the firearm acquired showing the serial number of the firearm.
5. If the weapon is purchased / procured from outside Delhi or from an area where area extension is not available to the licensee then:-
 - a) Transport License (TL) from the place from where the weapon is to be brought. It is issued by the concerned DM.
 - b) No Objection Certificate (NOC) to purchase firearms from a place not covered under the arms license, issued by Licensing Unit, Delhi).
6. In case of purchase from the arms dealer, stamp on the license booklet indicating the same shall also be checked.
7. In case weapon is allotted by COD, copy of voucher issued by the defence authority.
8. If the weapon is gifted by an individual, then two scenarios arise:
 - a) If transferor license is having a Delhi license, then original arms license for deleting the weapon from his/her records.
 - b) If transferor has an outside Delhi license, then:-

- (i) If outside licensing authority has already deleted the weapon, then self-attested photocopy of the arms license for records is sufficient.
 - (ii) If outside licensing authority has not deleted the weapon, then original arms license for making an entry in the license that weapon has been endorsed by Licensing Unit mentioning the transferee license name and license number and a request shall be sent to concerned DM to delete the weapon from the transferor's license.
- 9 The licensee shall apply for endorsement of firearms within seven days from the date of purchase/transfer of firearms.

PROCEDURE

- (i) Before endorsement, the weapon to be endorsed will be inspected by the Armourer of the Licensing Branch.
- (ii) Antecedents of the Licensee shall be checked through State Crime Record Bureau (SCRB), NCRB and ICJS.
- (iii) SCN (Show Cause Notice issued by the Licensing Branch) and
- (iv) Area Validity (whether the area extended beyond Delhi is matching our records)

It is pertinent to mention that TL/NOC are not required, if the weapon is purchased / procured from Delhi or from an area / state which is endorsed on the booklet of the arms licensee.

5 (C)(II) SALE OF WEAPON EXISTING ON ARMS LICENSE

SECTION 5(2)(a) (b): No fire arm or ammunition shall be sold or transferred by any person unless he/she inform the Licensing Authority about this sale and a period of not less than forty five days has expired after the giving of such information.

Persons seeking permission to sell arms endorsed on their arms licenses with the ultimate intent of surrendering their arms licenses, should not be asked to get their arms licenses renewed, even if the subject arms licenses have ceased to be valid, as the Arms Act 1959 do not envisage any such conditionality for sale of weapon.

DOCUMENTS REQUIRED:

Every online application in Part-D of Form B-2 of Arms Rule submitted by an individual for permission to sell the arms shall be accompanied by the following documents, namely;-

1. Application for permission to sell of arm in form Part-D of B-2 of Arms Rule to be filled online.

2. Original Arms License.
3. Acquisition request of the purchaser/transferee (individual/arms dealer).
4. Copy of arms license of the purchaser/transferee
5. Photograph of the applicant to be uploaded.
6. Signature of the applicant to be uploaded
7. Proof of address of the applicant to be uploaded
8. Self-attested affidavit on prescribed format as available on website of Licensing Unit.
9. In case weapon is to be sold to an authorized arms dealer, the name and address of the authorized arms dealer with consent to buy the weapon on his letterhead with UIN, or
10. In case the weapon is to be sold to an individual, the photocopy of the license, UIN, having valid purchase period on the license and consent of the individual to buy the weapon.
11. In case, the weapon to be sold has been imported by a renowned shooter, the NOC from NRAI/DGFT/SAI in favour of buyer/shooter shall also be required.
12. In case, the arm is an NSP weapon, the Permission issued by the defence authority in favour of the transferee.
13. In case the weapon to be sold is of Prohibited Category, the file will be sent to MHA for approval.

PROCEDURE

- (i) Local Police Report about the involvement of the licensed arm in any criminal case shall be obtained from Local Police.
- (ii) The involvement of firearm in any criminal case shall also be checked through State Crime Record Bureau (SCRB), NCRB and ICJS.
- (iii) SCN, if any (Show Cause Notice issued by the Licensing Branch) and
- (iv) Area Validity (whether the area extended beyond Delhi is matching our records)

After receiving local police report about the involvement of the licensed arm, application shall be processed on LAN. After obtaining approval of the licensing authority or from the officer nominated by him, Sale Permission may be issued subject to inspection of the firearm.

If an adverse local police report is received from the District, the application for sale shall be put on hold and clarification will be sought from the licensee in this respect. The application shall be disposed off according to the reply filed by the licensee.

After sale of the weapon the licensee has to get his weapon deleted within one month period. If he fails to get his arm deleted within one month, an explanation should be sought for the delay. In case he wants to procure a new weapon in lieu of disposed off arm, he shall obtain Purchase Period (PP) permission for that weapon. For cancellation, the licensee shall surrender the arms license after sale.

NOTE: If the licensee wants to surrender his arms license, he does not need to get it renewed. Licensing Authority may cancel his arms license with expired validity, but LPR about the involvement of subject arm shall be obtained before cancellation of arms license. A formal letter for cancellation of arms license shall also be issued.

5 (C)(III) DELETION OF WEAPON

Every online application in Part-E of Form B-2 of Arms Rule submitted by an individual for deletion of weapon(s) from arms license shall be accompanied by the following documents:-

1. Application for deletion of weapon(s) in form B-1 to be filled online. **(Annexure XXXVIII)**
2. Original Arms License/Smart Card.
3. Proof of address of the applicant to be uploaded.
4. Acquisition certificate of the arms dealer to be uploaded or
5. Written confirmation from the purchaser or transferee along with the signed copy of his license.

PROCEDURE

After verification of the following issues, deletion will be done immediately mentioning it on the original arms license:

- (i) SCRB (Crime Records of Delhi Police), NCRB and ICJS checks.
- (ii) SCN, if any, (Show Cause Notice issued by the Licensing Branch) and
- (iii) Area validity (whether the area extended beyond Delhi is matching our records).

5 (C) (IV) EXTENSION OF TIME LIMIT /PURCHASE PERIOD FOR ACQUISITION OF FIREARM

Rule 18 of Arms Rule, 2016 provides that when a license is granted in Form II, Form III, Form IV, or Form V for the possession of arms to be acquired by the licensee subsequent to the grant of the license, the authority granting the license shall at the time of granting the same, direct that the arms covered by the license shall be acquired within a period of two years and that the license or the arms or both shall be produced for his

inspection and if within the said period of two years, the licensee fails to acquire the arms and to produce the license, or the arms or both, as the case may be, the license shall cease to be in force:

Provided that the licensing authority may extend the period of two years by a further period of one year, on the basis of a written representation received from the licensee and after recording the reasons for granting such an extension.

CONVERSION OF WEAPON: Provided further that if during the period of two years or the extended period of one year, as the case may be the licensee wishes to acquire and possess any arm or arms of a different description and the licensing authority has no objection to allow the acquisition and possession of such arm or arms, he may amend the license accordingly:

Provided also that the provisions contained in this rule shall apply *mutatis mutandis* to any acquisition of an additional arm or arms which the licensee may desire to acquire subsequent to grant of license on account of sale or transfer or disposal of the arm or arms already possessed or otherwise as a fresh acquisition subject to the overall limit of two firearms.

BROAD PRINCIPLES

1. Any request for extension of time limit for acquisition of firearm beyond the extended period of one year i.e. 3 year from the issue of the license should be not be entertained as rule 18 of the Arms Rules, 2016 does not provide any further extension of time limit for acquisition of firearm.
2. The time limit of two years and further extension by one year thereafter shall also apply to any acquisition of firearms by the licensee on account of sale or transfer or disposal of arm (s) already possessed or otherwise as a fresh acquisition subject to the overall limit of two firearms or for the shooters as per MHA Notification.

Apart from Purchase Period in a fresh Arms License, there are two more scenarios where extension / grant of purchase period is required:

- a) When the arms licensee is entitled to possess more than one weapon and is currently in possession of at least one weapon which is endorsed on the license but the other weapon has not been purchased, so far, then Purchase Period is required for acquiring a fire arm.
- b) The situation is different when the licensee has no weapon on the license then the arms license stands cancelled after the validity of license expires and in that case the license is required to be revalidated.
- c) If the licensee sold a weapon and got it deleted, the deletion and PP extension can be simultaneously processed by the F.P.O.

DOCUMENTS REQUIRED

- (i) Application form B-2, Part – F of Arms Rules, 2016 at **Annexure – XXXIX**) - stating the reasons for not purchasing the weapon,
- (ii) In case Purchase Period is being sought against the sale of arms, the proof of sale of arms be mentioned and requirement of the new weapon against the permitted weapon.
- (iii) In case Purchase Period is being sought against the deposition of an NSP weapon Ordinance Depot/Defense Authority, the deposit voucher of arms be uploaded.
- (iv) Original Arms License.

PROCEDURE

The licensee will fill up the prescribed form online stating the reasons for not purchasing the weapon.

Computerized checks pertaining to the following will be done:

- (i) SCRB (Crime Records of Delhi Police), NCRB and ICJS.
- (ii) SCN (Show Cause Notice issued by the Licensing Branch) and
- (iii) Area validity (whether the area extended beyond Delhi is matching our records)

The purchase period can be granted / extended for permitted weapon for a period upto the validity of the arms license only. However, the purchase period shall normally be granted for a period not exceeding 1 year at a time.

In 2nd case the deletion of the weapon will be done and purchase period will be granted for the same description of weapon only which may extend up to a maximum period not exceeding the validity of the arms license.

In either case fees will be taken as per the Table-B of Schedule-IV of Arms Rule, 2016.

5(C)(V) REVALIDATION OF ARMS LICENSE

In case, after grant of new Arms License, the licensee does not purchase arms within the stipulated period or has sold all the weapons already endorsed on the Arms License and the validity of license has expired. In both the situations, the licensee has no weapon on the license, in this situation the arms license ceases to be in force after the expiry of the validity date. In this case the license is required to be revalidated instead of renewal. The revalidation of arms license is granted for a period of 1 year at

a time and should not be given as a matter of routine. (The situation is different when the arms licensee is entitled to possess more than one weapon on the same Arms License and is already having at least one weapon on the license but the other added/granted weapon has not been purchased so far, then only extension of **Purchase Period (PP)** for that weapon is required.)

DOCUMENTS REQUIRED:

- (i) Application form on prescribed format (FormB-2, Part – F of Arms Rules, 2016 at **Annexure – XXXIX** Or
- (ii) Form- A-3 (annexure-XXII) in case renewal has been applied.

PROCEDURE

The licensee will fill up revalidation form stating the reasons for not purchasing the weapon along with above documents. FPO shall check the details of the following:

- (i) SCRB (Crime Records of Delhi Police), NCRB & ICJS.
- (ii) SCN, if any (Show Cause Notice issued by the Licensing Branch) and
- (iii) area validity (whether the area extended beyond Delhi is matching our records)

GUIDELINES FOR REVALIDATION OF ARMS LICENSES

All cases of revalidation should be put up to the Licensing Authority for final orders. The weapon shall be acquired within a period of two years and if within a period of two years, the licensee fails to acquire the arm/weapon, the license shall cease to be in force. The Licensing Authority may extend the period of two years by a further period of one year on the basis of a written representation received from the licensee (Rule-18 of Arms Rules, 2016)

Due weightage will be given to the following cases, while deciding the revalidation cases:

- b) Being abroad
- c) due to illness
- d) Due to financial constraints
- e) Pandemic situation in the city/country.
- f) Prolonged curfew/lockdown in the city.

(The licensee shall intimate licensing authority about the circumstances mentioned above in advance by any means of communication before the expiry of validity of license.)

If the revalidation application is rejected, the decision will be conveyed to the applicant with reason of rejection and his arms license booklet/Smart Card shall be deposited with the Licensing Branch with cancellation stamp on each page.

5 (C) (VI) ISSUE OF DUPLICATE BOOKLET FOR RESTRICTED FIREARMS AND SMART CARD FOR PERMISSIBLE FIREARMS

As per Rule 28 of Arms Rule, 2016, If the license is lost or accidentally destroyed, the authority empowered to grant such license may grant a duplicate license on payment of fees with which the original license was chargeable. Duplicate booklet shall be issued in case of Restricted bore Arms License issued by MHA and Smart Card in case of Permissible bore Arms License issued by Licensing Authority/Delhi.

The online application synced on the LAN shall be processed internally as per the general procedure for online application in the following manner:-

1. The FPO, Arms Section shall scrutinize the application form and documents on record and ensure that the documents are in order. FPO shall analyze the available information, documents, docket, LAN data, SCN record and check SCRB database, ALIS data etc. and submit his/her report with discrepancies, if any, on the prescribed template (available on the LAN) for further processing.
2. **If the arms license is issued by MHA for restricted bore weapon the application shall be forwarded to MHA for issuance of duplicate booklet. The application shall also be forwarded to MHA for issuance of duplicate arms license booklet, If the arms license for PB bore weapon was issued by this Licensing Authority or any District Magistrate prior to 1989.**
3. The FPO, Arms Section shall check the area validity of the arms license, endorsement of weapon (s), SCN etc. from the local records and pending proceedings in the Legal Cell before processing the file.
4. Inspector/Arms will check the report of the FPO and shall give his/her comments/observations on the LAN and forward the same to the competent authority on LAN for approval.
5. The applicant shall be informed of the decision of competent authority through e-mail, Mobile and SMS and appointment shall be scheduled for issuance of Duplicate Booklet/Smart Card.

6. The designated desk for issuance of Arms License Smart Card shall prepare issue Smart Card per the SOP issued vide order No92-142/EDP Section/Licensing dated 22.02.2022. Copy of SOP is at **Annexure-XL**.
7. Fee for duplicate arms license booklet shall be charged as per as per Schedule-IV of the Arms Rules, 2016.

If any discrepancy is found, file will be sent to EDP for updation of LAN and ALIS after the approval of the competent authority. Thereafter, EDP shall send the file to the record.

5 (C) (VII) CANCELLATION OF ARMS LICENSE

Cancellation of arms license can be done in the following 3 cases:

- (i) On the request of the licensee as per Section 17(4) of the Arms Act, 1959.
- (ii) On the demise of the licensee.
- (iii) Arms License can be cancelled by the Licensing Authority after giving him an opportunity of hearing, if the licensee is found involved in commission/omission of any provision of Section 17 of Arms Act, 1959.

5 (C) (VIII) REGISTRATION OF ARMS LICENSES ISSUED BY OTHER LICENSING AUTHORITY

- (1) Rule 17 of the Arms Rules 2016 provides that (1) If a person who holds a license in Form III changes his place of residence, permanently, or temporarily for a period of more than six months, and carries with him the arms covered by the license, to a place falling, other than within the jurisdiction of the existing licensing authority indicated in the license, he shall, immediately before the expiry of a period of six months, send intimation about such change to the licensing authority of the place of his new residence and shall on demand, forthwith produce the license and the arm or arms to the new licensing authority by applying in Form B-1 and indicating there in the particulars of his new residence.
- (2) The licensing authority of the new place of residence of the licensee on receiving an application in Form B-1 under sub-rule(1), shall within a period of fifteen days, register the licensee in the NDAL system whereby the UIN of the licensee shall stand activated and transferred to its jurisdiction and de-activated from the records of the original licensing authority or the last renewing authority as the case may be and thereupon a new license book shall be issued to the licensee and

such new authority shall be the licensing or the renewing authority in relation to the said license.

DOCUMENTS REQUIRED

- (i) Online application on prescribed format (Form No. B-1 of Arms Rules, 2016 (**Annexure - XLI**)).
- (ii) In case of security guard, a certificate from his employer should be uploaded about nature of his duties, period of stay in Delhi, along with recommendation for registration.
- (iii) Transportation License (TL) from DM/Concerned, if the area validity of the arm license is only for a state
- (iv) The serving cum address certificate is required from persons serving in Military/Para Military/officers of All India services liability. The same may be verified.
- (v) If, such person is permanent resident of Delhi, then the Arms License shall be registered at his Delhi address.
- (vi) Special scrutiny shall be done in respect of the Arms License transferred from J & K and North Eastern States as per advisory issued by MHA vide letter No. F.13/12/2018/HG/1813 dated 04.06.2020. (Copy of MHA letter is at **Annexure-XLII**).

PROCEDURE

Following information shall be checked while scrutinizing application:

- (i) Arms License should be valid on the day of application.
- (ii) ALIS should have been updated by previous Licensing Authority, while accepting application for outside registration.
- (iii) Arm license must be containing a UIN.
- (iv) Copy of service certificate, if seeking registration on transfer basis.
- (v) SCRB (Crime Records of Delhi Police), NCRB and ICJS.
- (vi) SCN (Show Cause Notice issued by the Licensing Branch) and
- (vii) Area validity (whether the area extended beyond Delhi is matching our records).
- (viii) Genuineness of the arms license will be obtained from the concerned Licensing Authority on the prescribed format as given at annexure – XLI.
- (ix) The fees will be taken as per the table-B of Schedule-IV of the Arms Rule, 2016.

BROAD PRINCIPLES:

1. The Area Validity granted under sub-rule (3) shall not terminate with the validity period of the license and the renewing authority shall not vary the area validity at the time of renewal of license. (Rule, 19(4) of Arms Rule, 2016).
2. The applications for registration of arms licenses issued from other jurisdictions should be meticulously scrutinized in view of instances of acquisition of arms licenses by residents of Delhi from other states by fraudulent means and subsequent registration in Delhi. In such cases, the applicants stay in Delhi at the time of issuance of the license could be ascertained by analysing the applicant's education certificates, date of issue of various documents like voter ID card, PAN card, etc. During this process extra care shall be taken to check any tampering of photographs, overwriting in any of the columns, discrepancy in the common procedures of renewal, suspicion on the authority who allowed extension of the area validity etc.
3. In all cases, the verification / genuineness of the arms license will be obtained from the concerned DM on the prescribed format, followed by a reminder after 15 days. In case, genuineness report does not receive within one month period, a D.O. letter shall be sent to the concerned Licensing Authority under the signature of DCP/licensing.

5 (C) (IX) CORRECTION IN THE INFORMATION ON EXISTING LICENSE

Licensee can seek following correction on his arms license:

- a) Address Change
- b) Addition or deletion of prefix/suffix in the Name of licensee or change of name.
- c) Correction in the spelling of name of the licensee.
- d) Correction in date of birth.

PROCEDURE

a) ADDRESS CHANGE: Every online application submitted by an individual for address change in arms license booklet shall be accompanied by the following documents:

1. Application for change of address in arms license on the prescribed form to be filled online. **Annexure-XLIII**
2. Copy of Arms License to be uploaded online.
3. Proof of new residential address; in case the applicant does not possess Aadhar Card or Passport - (election card, or electricity bill, or landline telephone bill, or rent deed or lease deed, or property

ownership's documents or any other document to the satisfaction of the licensing authority).

4. Posting-cum-residence certificate / recommendation from the Commanding / Supervisory Gazetted Officer is mandatory in case of the personnel of Armed Forces and, Paramilitary forces.

PROCEDURE FOR PROCESSING OF APPLICATIONS FOR CHANGE OF ADDRESS IN ARMS LICENSE

The online application synced on the LAN as per the general procedure for online application shall be processed internally in the following manner:-

1. The application shall be processed in digital form on LAN. Verification report in respect of both new and old address shall be sought from concerned District DCsP.
2. The FPO, Arms Section shall scrutinize the application form and documents on record and ensure that the documents are in order. He/she shall analyze the available information, documents, docket, LAN data and check SCRB record, ALIS data etc. and submit his/her report with discrepancies, if any, on the prescribed template (available on the LAN) for further processing.
3. Inspector/Arms will carefully examine the report of FPO. He/she will give his/her comments/observations on the LAN and forward the same to senior officers on LAN.
4. Arms Section shall forward the applications to senior formation and the applications shall be decided by the competent authority.
5. The applicant shall be informed of the decision of Competent Authority through e-mail, Mobile and SMS and appointment shall be scheduled for issuance of Duplicate Booklet/Smart Card.
6. Fee for address change in arms license shall be charged as per as per Schedule-IV of the Arms Rules, 2016.
7. Arms section shall change address of applicant in arms license booklet/Smart Card and LAN record.
8. The file shall be forwarded to EDP section for updation of address on ALIS. EDP Section shall update the data in ALIS and send the entire file to the record.

5(C) (IX) (b) ADDITION OR DELETION OF PREFIX/SUFFIX IN THE NAME OF LICENSEE OR CORRECTION IN NAME.

Every online application (**Annexure-XLIV**) submitted by an individual for correction in name in arms license booklet shall be accompanied by the following documents:

- (i) Publication in Gazette Notification of India in case of name change and Addition/Removing Surname.
- (ii) Publication in two Newspapers (Hindi and English addition each) in case of name change and Addition/Removing Surname.
- (iii) Affidavit on Rs. 10 stamp paper in case of name change and Addition/Removing Surname.
- (iv) Two Identity proofs of new name (Aadhar, Voter-I-Card, PAN, Driving License or Passport).
- (v) Copy of Arms License.

5(C)(X) ISSUE OF GENUINENESS/ NOC DUE TO SHIFTING OF RESIDENCE OF LICENSEE TO ANY STATE OUTSIDE DELHI

Rule 17(1) of Arms Rules, 2016 provides if a person who holds an Arms License change his place of residence, permanently, or temporarily for a period of more than six months and carries with him the arms covered by the license, to a place falling other than within the jurisdiction of the existing licensing authority indicated in the license , he shall immediately before the expiry of a period of six months, send intimation about such change to the licensing authority of the place of new residence.

Rule 17(2) provides that the licensing authority of the new place or residence of the licensee on receiving an application in Form B-1 under sub-rule (1), shall within a period of fifteen day, register the license in the NDAL system whereby the UIN of the licensee shall stand activated and transferred to its jurisdiction and deactivated from the records of the original licensing authority or the last renewing authority as the case may be.

For a person who has shifted his residence to any state outside Delhi, he shall apply for registration to the concerned Licensing Authority at his new residence. The new licensing authority shall seek genuineness and No Objection certificate (NOC) from the previous licensing authority. There are 4 different situations in this regard.

- (i) Initial arms license granted in Delhi: Genuineness / NOC of such cases will be issued as per format at **Annexure-XLV**

- (ii) Initial arms license granted in Delhi; and the new L.A. refuses to register and asks the licensee to get the Area Extension: Genuineness/ NOC of such cases will be issued as per Annexure – XLV. This letter is same as Annexure-XLIV except that it quotes the relevant Arms Rule suggesting that extension of area validity is not essential for registration of the arms license. Only difference will be that the area validity of Delhi shall be replaced by the new state in the arms license booklet.
- (iii) Initial arms license granted by a licensing authority outside Delhi but registered in Delhi: Genuineness / NOC of such cases will be issued incorporating the additional information about the initial licensing authority, which is other than Delhi.
- (iv) Initial arms license granted by a licensing authority outside Delhi, but registered in Delhi; and the concerned L.A. refuses to register and asks the licensee to get the Area Extension: Genuineness / NOC of such cases will be issued as per **Annexure-XLV**. This letter is same as Annexure-XLV except that it quotes the relevant Arms Rule suggesting that extension of area validity is not essential for registration of the arms license. Only difference will be that the area validity of Delhi shall be replaced by the new state in the arms license booklet.

In all the cases copy of the genuineness / NOC may also be given to the individual to facilitate him.

BROAD PRINCIPLE

1. Record of Arms License i.e.Docket, LAN data, SCN record, SCRB database, ICJS, NCRB, NDAL/ALIS database etc. shall be checked carefully. Discrepancy, if any shall be updated.
2. Extension of area validity is not required for registration of an arms license.
3. It has been observed that a substantial number of arms license holders who were initially issued arms licenses for permissible arm by this licensing authority, are registering their arms licenses with other jurisdictional licensing authorities on account of change of residence and a number of such arms licenses are found endorsed with restricted arms or NSP weapons. Grant of Genuineness/NOC to such arms license holder shall not be withheld, because, now this authority has no jurisdiction over such arms licenses. NOC's confirming the details of respective arms licenses available with the office shall be conveyed to the licensing authorities seeking NOC/Genuineness by

indicating the legal positing contained in Schedule-I of Arms Rules, 2016 and directions of DGOS contained in letter No. A/17301/NSP/2/Gen/OS-15-A, dated 06/04/18 by specifically mentioning that the arms endorsed on the subject arms license prima facie appear to be an arms of restricted category or NSP category.

PROCEDURE FOR PROCESSING OF LETTERS FOR NOC/GENUINENESS OF ARMS LICENSE

1. The letter/request shall be processed by FPO of Arms Section.
2. The FPO, Arms Section shall analyze the available information, documents, docket, LAN data, SCN record, check SCRB/NCRB/ICJS, NDAL/ALIS database etc. and submit his/her report on the prescribed note sheet to senior officers with DFA.
3. Inspector/Arms will examine the report of the FPO. He/she will give his/her comments/observations on LAN.
4. The applications shall be decided by the competent authority.
5. Arms Section shall forward the file to EDP Section, if updation on LAN or NDAL/ALIS record is required. EDP Section shall update database, shall deactivate the arms license and return the file to Arms Section.
6. Arms Section shall issue the NOC/Genuineness to Licensing Authority concerned on prescribed proforma under the signature of Inspector.
7. In all the cases, copy of the genuineness /NOC may also be given to the individual to facilitate him and file be sent to record room

5 (C) (XI) DEPOSIT OF ARMS IN CASE OF DEATH OF LICENSEE

PROCEDURE

As per section 47 (2) of Arms Rules, 2016 the legal heirs of the deceased licensee are entitled to sell his arms or ammunition.

The legal heirs include the spouse, any son or any person in the blood relations (in that order). The relatives of the deceased, who had an arms license, should apply online along with death certificate on the application as at **Annexure-XLVI**.

Weapon deposit permission in case of death of the licensee shall be issued on the prescribed format to them by the Licensing Branch for depositing the weapon belonging to the deceased with any authorized arms dealer or with any police station.

The final outcome of such a case is the cancellation of the arms license and that can only be done when the relatives of the deceased dispose off the weapon (as per any of the five options mentioned below). Till that time, such an arms license is required to be taken out from the list of active licenses so that renewal notices are not generated for them by the computerized database.

The arms license, therefore be deactivated in ALIS/NDAL and LAN with stamp on the arms license booklet/Smart Card and the arms license will be formally cancelled after the weapon is disposed off in the manner mentioned below:

5(C)(XI)(a) DISPOSAL OF WEAPONS BELONGING TO A DECEASED LICENSEE:

There are five options available to the legal heirs of the deceased for the disposal of the licensed weapon of the deceased.

- a) 1st option – Transfer of weapon to any legal heir having no license. In this case, legal heir will have to obtain a new license in his /her name as per provisions of Arms Act, 1959 and Arms Rule, 2016.
- b) 2nd option - There are two scenarios in this option:
 - (i) The legal heir or the transferee has a license but does not have the permission of any additional weapon.

The person will have to obtain addition of weapon in his / her existing license as per provisions of Arms Rule, 2016.
 - (ii) The legal heir or the transferee has a license but does not have the permission for same type of weapon.

The person will have to obtain conversion of weapon in his / her existing license as per provisions of Arms Rule, 2016.

Finally, after due approval of the Licensing Authority, the weapon in 1st or 2nd option will be endorsed in the license of the individual licensee, as per provisions of Arms Rule, 2016.

- c) 3rd option is to sell the weapon to any authorized arms dealer/individual.
- d) 4th option is to gift the weapon to a museum or any agency after getting it deactivated as per Rule 80 of Arms Rule, 2022.
- e) 5th option -Notwithstanding anything in above paras, procedure is different when the weapon is NSP (Non-Service Pattern, which are allotted by defence authorities only). The NSP weapon, for the time

being, shall be deposited in police station or any arms dealer with approval of Licensing Authority. The legal heirs may finally dispose off NSP weapon in following two ways:

- (i) The NSP arms shall be deposited with Ordinance Depot by the legal heirs.
- (ii) The legal heirs may apply for retention as family heirloom on sentimental reasons in the office of DGOS, if the applicant is having a valid arms license granted by Licensing Authority.

DOCUMENTS REQUIRED

In case of death, the legal representative of the deceased will apply online to this office along with the following documents:-

- (i) Photocopy of license of the licensee who intends to purchase the weapon of the deceased licensee.
- (ii) NOC from other legal heirs duly attested by a Notary on prescribed Proforma as given at Annexure-V.
- (iii) Indemnity Bond duly attested by a Notary on prescribed proforma. **(Annexure-XLVII)**
- (iv) In case of 3rd option, the name of any authorized arms and ammunition dealer, or the license photocopy of an individual who wants to buy the weapon.
- (iv) In case of 4th option, a certificate from the authorized arms dealer that the weapon has been deactivated. The weapon in such cases shall be kept in any museum or agency for display purposes only.

On receipt of above documents the weapon release permission is granted immediately. On disposal of the weapon, the weapon is deleted as per procedure and the license of the deceased is cancelled in records.

5 (C) (XII) INCREASE IN QUOTA CARTRIDGES

5 (C) (XII) (i) QUOTA CARTRIDGES TO INDIVIDUAL CATEGORY:

Rule-23 of Arms Rule, 2016: The quantity of ammunition for license granted in Form-II, Form-III or Form-IV for breech loading firearms is restricted to maximum of 200 permitted to be purchased during the calendar year (per firearm) and a maximum of 100 to be possessed at any given time (per firearm).

- (1) In compliance of directions issued by the Ministry of Home Affairs vide letter No. V-11016/16/2009-Arms, dated 06.04.2010 in respect of

reporting on use of ammunition to the Licensing Authority by the licensee, following directions have been issued by the Licensing Authority, Delhi vide order No. 614-20/Joint CP/Lic (Arms Sec.) dated 21.04.22.

Arms licensee shall keep a record of the use of ammunition with him on the following proforma:

Sr. No.	Date of use ammunition	Place where ammunition was used	Number bullet fired	Purpose for which ammunition was used
1				

- i. Licensee shall submit a certificate to the Arms & Ammunition Dealer on prescribed proforma as mentioned at point-1 above, regarding consumption of his existing cartridges, at the time of further purchase of cartridges within the permissible limit of quota cartridges for the year.
 - ii. Arms & Ammunition Dealers shall not sell further cartridges to the licensee within his permissible limit of quota cartridges, unless licensee submits a certificate on prescribed proforma as mentioned at point-1 above, to the Arms & Ammunition Dealer regarding consumption of his existing cartridges during the year.
 - iii. No fresh quota for the current year will be granted/extended if the licensee has not consumed any part of his existing cartridge quota during previous year.
 - iv. The licensee shall submit a certificate to the Licensing Authority on prescribed proforma, as mentioned at serial number 1 above, about use of ammunition during the previous year while applying for enhancement of quota cartridges in the current year.
 - v. Appropriate directions for compliance have already been issued separately to all the arms licensees and Arms & Ammunition Dealers registered with the Licensing Authority, Delhi.
- (2) In compliance of directions issued by the Ministry of Home Affairs vide letter No. V-11016/16/2009-Arms, dated 06.04.2010 in respect of reporting on use of ammunition to the Licensing Authority by the licensee, Following directions have been issued vide order No. 621-23/Joint CP/Lic (Arms Sec) dated 21.04.2022, after approval of CP/Delhi, for compliance by all the Arms and Ammunition Dealers registered with Licensing Authority, Delhi,

- i. A certificate shall be taken by Arms & Ammunition Dealer from every arms license holders on the following proforma regarding consumption of cartridges during the year, at the time of further purchase of cartridges by the licensee within his permissible limit of quota cartridges for the year:

Sr. No.	Date of use of ammunition	Place where ammunition was used	Number of bullet fired	Purpose for which ammunition was used.
1				

- ii. No further cartridges will be sold to the licensee within his permissible limit of quota cartridges, unless licensee submits a certificate on prescribed proforma as mentioned at point-1 above, regarding consumption of his existing cartridges during the year.
- iii. Arms & Ammunition dealer shall send the details of sold cartridges along with copy of certificate submitted by the licensee/purchaser to this authority on the Portal or by other means if any technical problem arises on the portal.
- (3) In compliance of directions issued by the Ministry of Home Affairs vide letter No. V-11016/16/2009-Arms, dated 06.04.2010 in respect of reporting on use of ammunition to the Licensing Authority by the licensee, Following Public Notice (directions) has been uploaded on the website of Licensing Unit for the information and compliance by the Licensees:

PUBLIC NOTICE

Whereas the Ministry of Home Affairs, GOI, has issued directions vide letter No. V-11016/16/2009-Arms, dated 06.04.2010, in respect of reporting on use of ammunition to the Licensing Authority by the licensees. All the arms license holders registered with Licensing Authority, Delhi, are hereby directed to comply with the following directions:

- iv. Licensee shall keep a record of the use of ammunition on the following proforma:

Sr. No.	Date of use of ammunition	Place where ammunition was	Number bullet fired	Purpose for which ammunition was
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		used		used.
1				

- vii. Licensee shall submit a certificate to the Arms & Ammunition Dealer on prescribed proforma as mentioned at point-1 above, regarding consumption of his/her existing cartridges, at the time of further purchase of cartridges within his/her permissible limit of quota cartridges for the year.
- viii. No further cartridges shall be sold to the licensee by the Arms & Ammunition Dealers unless he/she submits above mentioned certificate at the time of purchase of cartridges during the year.
- ix. No fresh quota for the current year will be granted/extended if the licensee has not consumed any part of his/her existing cartridge quota during previous year.
- x. Licensee shall submit a certificate in the office of the Licensing Authority, Delhi on prescribed proforma, as mentioned at serial number 1 above, about use of ammunition during the previous year while applying for enhancement of quota cartridges in the current year.

**LICENSING AUTHORITY
DELHI.**

5(C)(XII)(ii) QUOTA CARTRIDGES TO SPORTS PERSONS, SHOOTING ASSOCIATIONS ETC.: RULE-40 OF ARMS RULE, 2016:

Quantity of ammunition permitted to different categories

SN	Persons or class of persons	Type of firearms	Quantity and description of each kind of ammunition	
			To be possessed any one time	Purchasable during the year
1.	Arjuna Awardee	All	100000 for all types of firearms collectively	200000 for all types of firearms collectively

2.	International medallist/ renowned shooter	Rifle/Pistol .22 LR; Center-fire rifle with caliber up to 8 mm; Revolver/Pistol; Shotguns of caliber up to 12 bore/gauge	50000 for all types of firearms collectively	100000 for all types of firearms collectively
3.	Junior target shooter	Rifle/Pistol .22 LR; Center-fire rifle with caliber up to 8 mm; Revolver/Pistol; Shotguns of caliber up to 12 bore/gauge	10000 for all types of firearms collectively	30000 for all types of firearms collectively
4.	Aspiring shooter	Rifle/Pistol .22 LR; Center-fire rifle with caliber up to 8 mm; Revolver/Pistol; Shotguns of caliber up to 12 bore/gauge	15000 for all types of firearms collectively	30000 for all types of firearms collectively
5.	Other shooters (not failing under S. No. 1 to 4 above) holding valid arms licenses and who are also members of National Rifle Association of India or affiliated State Rifle Association(s) of NRAI or shooting clubs/District Rifle Association affiliated with State Rifle Association	.22 LR Rifle/Pistol Any other Pistol/Revolver caliber Any other Rifle/ Shotgun caliber	500 300 200	1000 600 500

6.	National Rifle Association of India Affiliated State Rifle Association(s) with NRAI. Shooting clubs/District Rifle Association(s) affiliated with State Rifle Association. All shooting clubs affiliated to the State Rifle Association or the National Rifle Association of India. All shooting ranges under the Sports Authority of India or the Sports Authority of the State Governments.	Upper limit on the quantity of ammunition, to be decided by the licensing authority based on the recommendations of the Certifying body.
----	--	--

6. NON SERVICE PATTERN (NSP) WEAPONS:

NSP WEAPON: NSP weapons are allotted by the Directorate General of Ordnance Services only. NSP weapons include Prohibited Bore (PB), Restricted Bore as well as Permissible Bore (PB), weapons.

6(I) ENTITLED PERSON TO POSSESS NSP WEAPON:As per letter No. A/17301/NSP/Gen/OS-15A, dated 06/04/18, issued by Directorate General of Ordnance Services (OS-15A),DGOS, Integrated Headquarters of MoD (Army), New Delhi, Special Army order 4/S/2006 governs the provisions for allotment/transfer of Non-Service Pattern Weapons. Following persons are entitled to be allotted Non Service Pattern (NSP) weapons:-

(a) Serving Army Officers-	All Weapons
(b) Retired Army Officers-	All Weapons less "Prohibited Bore"
(c) JCO's-	Carbine .30, Rif .30 BA, 12 Bore Gun
(d) Civilian Gazetted Officers- (Serving Class-I only)	Pistol/Revolver .32 bore and 12 bore SBBL/DBBL

In case, any NSP weapon endorsed upon Restricted or Permissible Arms License Booklet possessed by non-entitled persons is presented for grant of various services like renewal, issuance of Arms License Booklet, permission to sell etc., must immediately be directed to deposit the said Arms with Ordnance Depot, with due permission from DGOS within 30 days, of such direction, under intimation to Licensing Authority, Delhi.

Armed forces personnel in possession of NSP weapons of PB/Restricted category on permissible Arms License, must immediately be directed to deposit the said Arms with their respective Kot/Unit Armory within 15 days of such directions, under intimation to this office. Such Arms holders be advised to apply afresh in this office for issuance of PB/Restricted Arms License by MHA, if they want to retain the said Arms.

6(II) DISPOSAL OF NSP WEAPON: As per letter No. 17301/Gen/NSP/05-15-A, dated 08/11/2005 received from Directorate General of Ordnance Services, Army Headquarters, the NSP weapon issued by DGOS shall be disposed off as under:

1. Weapon may be deposited back with the Army authorities, if the allottee doesn't want to retain the NSP weapon due to any reason.
2. On the demise of an individual holding an NSP weapon, the legal heirs of the deceased, may approach the Army authorities for retention of the weapon as family heirloom on sentimental grounds. If the sanction for retention is not granted the weapon will be deposited back to the army.
3. The NSP weapon, under no circumstances, can be sold to any Arms Dealer or non-entitled personnel. Infringement of this rule will invite strict action against the licensee/dealer besides confiscation of the NSP weapon. The person other than defence personnel are non-entitled personnel who cannot be given the NSP weapons.

4. The Prohibited Bore (PB) weapons as NSP cannot be allotted even to the Army officers now. It was only prior to 1982 that the PB weapons as NSP had been allotted to Army Officers. As per MHA instructions, PB weapons can be retained by those defence officers who had been allotted such a weapons before 1982.

7. COMPUTER DATABASE

With the launch of Arms License E-module in 2019, all the data of arms licenses are kept digitally in the system. With effect from 2022, the backup of data is stored with the server of the NIC on prescribed format.

Unique Identification Number (UIN): Means a Unique Identification Number generated in NDAL for a license under Arms Rule, 2016. (Rule, 2 (57) of Arms Rules, 2016). If a licensee is having two arms license with multiple UIN, both the arms licenses shall be brought under a single UIN as defined in Rule, 15 of Arms Rule, 2016, irrespective of their category i.e. Restricted or Permissible.

7(I) RECORDS IDENTIFICATION AND TRACEABILITY

The licensing unit shall maintain the identification and traceability of the arms Licenses from 'Receipt of Application' to the 'Delivery of License'. A unique number is given having a prefix ARML which identifies the application and retrieves the status of application at any given time. The process outlined below shall be followed meticulously for the maintenance of records.

If the license is granted, then a new license number is generated after the deposition of fees which in the form of 'District Code' (2 alphabets as per predefined table)/ 'Police Station Code'

(2 alphabets as per pre-defined table)/ 'Month of Birth of Licensee'/ 'Year of Issue of arms license' / 'Running No.'

Example: SWVV/09/2004/457

Running Number

Year of Issue of arms license i.e. 2004

Month of Birth of Licensee – September

South West District, Vasant Vihar P.S. (area of the licensee residence)

The licensing unit shall issue a list on monthly basis about arms license granted to the District police for their information and maintaining records at the Police Station level.

8. ACTION BY POLICE STATIONS IN RESPECT OF FIREARMS:

8(I) The following records shall be maintained at the Police Station:

- a) Diary and dispatch register in respect of all applications received for the grant of arms licenses.
- b) Register number 17 and 18 already being maintained under the PPR will contain full particulars of the licensees, type and number of fire arms, quantity of ammunition and due date of renewal of the arms licenses which shall be completed after checking the records of the Licensing office and contacting the licensees within the jurisdiction of Police Station. A watch shall always be maintained to keep track on the incoming and outgoing licensees. Licensing Authority, Delhi would be informed about any change of the address by the licensees immediately.
- c) As soon as, local police finds that any licensee who is involved in any offence (IPC, Local & Special Laws) or preventive proceedings are initiated against (u/s 107/150 on 107/151 Cr. P.C.) him, then the information shall be given to licensing office immediately.
- d) There are various categories of weapons deposited with Police Stations. The following points must be kept in mind for disposal of these weapons:

8 (II) Action regarding weapons deposited due to elections

These weapons may be released as soon as the restrictions due to elections are removed. However, no licensee should be forced to take the weapon (s) back, if he prefers leaving it in the police station.

8(III) Deposited due to death of licensee.

The rightful legal heir should be asked by the local police to get the weapon released as per procedure laid down in 5 (C) (xi).

8(IV) Deposited due to involvement of licensee in criminal case (s)

If the weapon is deposited by the orders of licensing authority, the same shall be kept deposited till final orders.

In case the weapon is a case property, the weapon can only be released after the finalization of the criminal case or on the direction of the court, which is earlier.

8(V) Deposited due to licensee being out of Delhi:

Such licensees should be asked to collect their weapons, if the stay is temporary (less than 180 days) or should be asked to get their licenses registered at their new place of residence as per Rule 17 of the Arms Rules, 2016.

8(VI) Deposited due to licensee being out of country

In such cases, SHO shall collect their details from their available records and see whether they have got their licenses renewed or otherwise. If the licensees have shifted abroad permanently, then it should be communicated to Licensing Unit. The Licensing Unit shall advise to their relatives either in writing or by e-mail for disposal of weapon.

8 (VII) Deposited due to safety reasons on request of the licensee

Due to paucity of space, the police station may not be able to keep such firearms indefinitely. Therefore, such weapons may be returned to licensee before expiry of the validity of the license. The maximum period of validity is 5 years only.

8(VIII) Deposited due to cancellation of the license

The legal owners of such weapons should dispose of the weapon after observing all the legal formalities as per procedures laid down in section 5 (C) (vii), as the case may be.

8(IX) Quarterly reports

The information of deposited weapon as well as licenses falling in the area of each police station shall be reconciled with the information with the licensing unit. The District DCsP shall submit a quarterly report about the following:-

- a) Weapons deposited with the police stations and arms dealers.
- b) Details of licensees residing in the area of each police station.
- c) List of licensees involved in criminal cases, preventive proceedings (u/s 107/150 or 107/151 CrPC) or any suspicious activities.

Regular exchange of information with the licensing branch is imperative. District DCsP shall ensure periodic check of the physical stock of weapons, with the police station as well as arms dealers' shops.

9. APPEALS IN LG'S COURT

Appeal against suspension/Revocation/Cancellation and rejection of fresh Permissible arms license application lies under section 18 of Arms Act, 1959 to the appellate authority (Hon'ble Lieutenant Governor, Delhi)

against the orders of the Licensing Authority, Delhi. An appeal against the order of Licensing Authority may be filed within 30 days of the receipt of the order of the Licensing Authority.

10. FEEDBACK

Following mechanism to receive feedback of applicants/licensees is being adopted:

- a) Online Feedback Form and Contact Form are available on official website of licensing unit i.e. www.delhipolicelicensing.gov.in
- b) Feedback is also received on Email i.e. adl.cp.lic-dl@nic.in
- c) Feedback and Suggestion boxes are placed in the reception area and Duty Officer room.

11. COMPLAINT AGAINST THE LICENSEE AND FOLLOW UP ACTION

Complaints are received from Public and various authorities against licensees for threatening, extortion, etc, and involvement in criminal cases. After receiving the complaints, verification reports shall be obtained from local police. On receiving of the reports actions are taken on merits. A register shall be maintained in this regard.

Procedure to suspend, vary the condition of the license or revocation of the arms license is done as per Section 17 of the Arms Act, 1959:

- (I) The powers to suspend/cancel the arms license under section 17 of the Arms Act shall rest with the Licensing Authority, Delhi.
- (II) The District DCsP shall furnish the grounds for suspension/cancellation/refusal after due enquiries before any action is suggested.
- (III) The District DCsP shall furnish a report to the Licensing Authority, Delhi about the involvement of the licensee in a criminal case within seven (7) days from the date of detecting such involvement for taking necessary action against the licensee.

12. CRITERIA FOR DEPOSITING ARMS LICENSE AND ISSUE OF SHOW CAUSE NOTICE

If a licensee is found involved in a criminal case, during SCRB/ICJS/NCRB check or local police report of any arms licensee who comes to the licensing unit for any work like renewal, revalidation, PP extension, weapon endorsement, duplicate booklet etc, the decision is to be taken very judiciously.

Based on the rulings of Hon'ble LG Court and other courts, the following criteria shall be adopted before issue of Show Cause Notice and/or suspension order and also to decide whether renewal would be withheld and an arm license needs to be deposited with us or not during the process of renewal as well as during document checking for fresh applications:-

- a) Whether there had been any adverse report of any kind about the appellant's behaviour, which could be termed as, irresponsible rendering him unfit to hold arms license.
- b) Whether the criminal cases had been settled by the competent Courts well before the grant of license or otherwise.
- c) Where the weapon is found misused and the licensees are booked under Arms Act.
- d) Where the licensee is found to have threatened anyone with licensed weapon.
- e) Where the licensee has been arrested and involved in heinous crime under IPC or if he is a PO and a habitual offender in local and special laws.
- f) Where the licensee is convicted in any of the above mentioned categories of criminal case/s by the Hon'ble Court and is undergoing sentence, or he has been convicted by the trial Courts and the matter is in appeal.
- g) Where the licensee is acquitted by giving benefit of doubt, lack of evidence etc. the orders will be passed after examining the judgment on merit and the total circumstances of the case.

In all such cases if the licensee falls under the criteria of issue of Show Cause Notice/Suspension of the license, the services shall be stopped and renewal shall be withheld. The arms license booklet shall be deposited with the office and the licensee will be directed to deposit the weapon with any authorized arms dealer or with any police station. A proper receipt of the arms license booklet as well as the direction to deposit weapon will be issued to the licensee as per format (Form No. F-A-52 at **Annexure - XXXI**).

After following the principles of natural justice, the cancellation order if any, will be issued giving a specific direction for the disposal of weapon(s) to any authorized arms dealer or to lawful entitled individual, provided the weapon is not required in any criminal case / enquiry.

13. IMPORTANT PROVISIONS OF THE ARMS ACT, 1959

1. Seizure and detention under order of the Central Government

As per Section 24 of Arms Act, 1959 the Central Government may at any time order the seizure of any arms or ammunition in the possession of any person, notwithstanding that such person is entitled by virtue of this Act or any other law for the time being in force to have the same in his possession, and may detain the same for such period as it thinks necessary for the public peace and safety.

2 Section-25 (9):Whoever uses fire-arm in a rash or negligent manner or in celebratory gunfire so as to endanger human life or perusal safety of others shall be punishable with an imprisonment for a term which may extend to two years, or with fine which may extend to rupees one lakh, or with both.

3. Power of Police Officers

As per section 19 of Arms Act. 1959)

- (i) Any police officer or any other officer specially empowered in this behalf by the Central Government may demand the production of license from any person who is carrying any arms or ammunition.
- (ii) If the person upon whom a demand is made refuses or fails to produce the license or to show that he is entitled by virtue of this Act or any other law for the time being in force to carry such arms or ammunition without a license, the officer concerned may require him to give his name and address and if such officer considers it necessary, seize from that person the arms or ammunition which he is carrying.
- (iii) If that person refuses to give his name and address or if the officer concerned suspects that person of giving a false name or address or of intending to abscond, such officer may arrest him without warrant.

As per Section 20 of Arms Act. 1959

- (iv) Where any person is found carrying or conveying any arms or ammunition whether covered by a license or not, in such a manner or under such circumstances as to afford just ground of suspicion that the same are or is being carried by him with intent to use them or that the same may be used, for any unlawful purposes, any Magistrate, any police officer or any other public servant or any person employed or working upon a railway aircraft, vessel, vehicle or

any other means or conveyance, may arrest him without warrant and seize from him such arms or ammunition.

14. SUPERSESION CLAUSE:

This standing order supersedes previous Standing Order No. 264/2009 issued vide No. 1601-1750/Record Branch/PHQ dated 27.01.2009.

15. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana
(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI. 13.06.2022

No. 51051-51200 /Record Branch/PHQ dated Delhi, the 13/06/2022

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.

ANNEXURE-I**Form A-1****SCHEDULE-III****Part II**

Passport size
photograph
of the
applicant

(for individuals)

Form of application for an arms license in Form II, III and IV
(See rule 11)

IDENTITY OF THE APPLICANT				
1	Name			
2	Parent/Spouse Name			
3	Sex	Male	Female	
4	Place of birth (Nativity)	Country	State	District
5	Date of birth in Christian era	<i>must be 21 years of age on the date of application</i>		
	in figures	DD/MM/YYYY		
	in words			
6	Permanent Account No. (PAN)			
7	Aadhar Card Number			
8	Present address			
		District	State	
(a)	Since when residing at the present address	DD/MM/YYYY		
(b)	Telephone Number	Office	Residence	
(c)	Mobile Number			
(d)	*Nearest Police Station			
9	Permanent Address			
		District	State	
(a)	*Nearest Police Station			
10	Occupation			
*Note- Nearest Police Station means the police station under whose jurisdiction the place given in the address comes				
11	Office/business address			

12	Additional particulars if the license is required for crop protection under rule 35	Location (village)		
		Area of land under cultivation		
OTHER PARTICULARS OF THE APPLICANT				
13	Whether the applicant has been –			
(a)	Convicted	Y	N	<u>If yes, details thereof –</u> Offence Sentence Date of sentence DD/MM/YYYY
(b)	ordered to execute a bond under Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) for keeping the peace or for good behavior	Y		<u>If yes, details thereof –</u> Date DD/MM/YYYY Period for which
(c)	prohibited under the Arms Act, 1959, or any other law from having the arms or ammunition	Y		<u>If yes, details thereof –</u> Date DD/MM/YYYY Period for which prohibited
14	Whether –			
(a)	the applicant applied for a license before - if so, when, to whom and with what result	Y		<u>If yes, details thereof –</u> Date applied for DD/MM/YYYY Name of the licensing authority Result (pl. specify) Approved//Rejected/ Pending
(b)	the applicant's license was ever suspended or cancelled/ revoked -	Y		<u>If yes, details thereof –</u> Name of the licensing authority Reasons
(c)	any other member of the applicant's family is in possession of any arms license, if so, particulars thereof	Y		<u>If yes, details thereof –</u> Name License No. Weapons endorsed 1.

				2.
				3.
(d)	the applicant has a safe place to keep the arms and ammunition	Y		<u>If yes, details thereof –</u>
(e)	the applicant has undergone training as specified under rule 10(<i>whenever made applicable by the Central Government</i>)	Y		<u>If yes, details thereof –</u>
Particulars of license being applied for				
15	Need for license (<i>see note 1 below</i>)			
16	Description of arms for which license is being			Category - restricted/permissible
(a)	Sought (<i>Tick any one of the options</i>)			Rifle Shot Gun (BL/ML) Hand Gun (Revolver/Pistol) Others
(b)	Description of ammunition or ingredients of ammunition for which license is being sought			
17	Area within which applicant wishes to carry arms (<i>Tick any one of the options</i>)			District ☐ State Throughout India ☐
18	Claims for special consideration for obtaining the license, if any (<i>attach documentary evidence</i>)			
Additional Information				
19	Details for an application for license in Form IV			
(a)	Place or area for which the license is sought			
(b)	Specification of the wild beasts which are permitted to be destroyed as per the permit granted under the Wild life (Protection) Act, 1972 (53 of 1972) to the applicant			

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Place: _____

Date: _____ Signature /Thumb - impression of applicant

Notes:

1. Against column 15, the applicant should clearly mention the purpose(s) for which the license is required – such as use, acquisition, possession, carrying, sport, display, destruction of wild animals which do injury to human beings or cattle and damage to crops etc. as per the category of license applied (Form II, III or IV).
2. The following documents under rule 11 are to be submitted along with the application–
 - (a) four passport size copies of the latest photograph of the applicant (in white background);
 - (b) proof of date of birth;
 - (c) identification proof – Aadhar Card or in case the applicant does not have Aadhar Card, a written declaration to be submitted in the form of an Affidavit along with an alternative identification proof which may include – Passport; Voter Identification Card, PAN Card or Identity card issued to the employees.
 - (d) residence proof in case the applicant does not possess Aadhar Card or Passport – *(Election Card or Electricity Bill or Landline Telephone Bill or Rent Deed or Lease Deed or Property documents or any other document to the satisfaction of the licensing authority);*
 - (e) firearm training certificate in Form S-1 (whenever made applicable by the Central Government by passing a general or special order);
 - (f) safe use and storage of firearms undertaking in Form S-2;
 - (g) self-attested copies of the educational and professional qualification certificates from professional category applicants as specified in clause (a) of sub-rule (3) of rule 12;
 - (h) medical certificates about mental health and physical fitness in Form S-3;
 - (i) in case of protection for destruction of wild animals which do injury to human beings or cattle and damage to crops, permit from the authority empowered under the Wild Life (Protection) Act, 1972 (53 of 1972);
3. Strike off the entries not relevant.

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the application form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Form S-2

Standard format of undertaking for safe storage of firearms

[See rule 10(4)]

Undertaking

This is to solely affirm and declare that –

1. I have applied for grant of a new arms license/renewal of arms license (bearing number _____ and my UIN is _____).
2. I undertake to practice safe storage of the firearm (in knocked down condition) when I am not carrying the firearm(s) with me.
3. I undertake to educate the children about the dangers of interacting with arms and ammunition.
4. I have the capacity to store the firearm safely and securely in a safe or steel almirah in order to minimize the risk that it could be stolen or accessed by someone else.

It is hereby solely affirmed that the declaration made above is true to the best of my knowledge and belief and if at any subsequent date, if any of the said declarations is found false or incorrect, I shall be liable for the same including cancellation or revocation of my license and subject to penal provisions under the Arms Act, 1959.

Place: (Signatures of the Applicant/Licensee)

Date:

Note: Enclose proof of safe storage as mentioned at S. No. 4

ANNEXURE-III

Form S-3

Standard format of medical certificate

[See clause (g) of sub-rule (4) of rule 11]

(On the letter head of the medical practitioner)

This is to certify that I have carefully examined the person whose particulars are furnished below—

1	Name of the person examined	
2	Father's Name/Spouse Name	
3	Residential address	
4	Age and date of birth	
5	Height	
6	Weight (in Kgs)	
7	Blood pressure (please specify)	
8	Deformity, if any (particularly in upper limbs)	
9	Any other observation	

On the basis of examination, it is certified that the person examined as mentioned in column 1 above –

1. is in good physical health and is free from any physical deformity;
2. has been found to be of stable mental condition and is not inclined to violence;
3. has been found not dependent on any substance which has an intoxicating or narcotic effect.

Signature of the person examined *named in column (1)*_____

Signature of the medical practitioner_____

Registration Number _____

SEAL

INDEMNITY BOND

(To be executed by the applicant on non-judicial stamp paper of Rs.100/- duly attested by a Notary in case fresh arms license is being sought on inheritance basis/death of the licensee)

1. This Indemnity Bond is executed at Delhi on day of/20 by Sh./Smt. _____ son/daughter/wife of late Sh. _____ R/o in favour of the President of India /Commissioner of Police/Addl. Commissioner of Police, Licensing Delhi.
2. That Late Sh./Smt. _____ S/o D/o W/o _____ R/o _____ expired on _____, has left the following legal heirs behind:
 - (i) _____
 - (ii) _____
 - (iii) _____
3. That late Sh./Smt. _____ was holder of Arms License No. _____ initially issued on _____ valid upto _____ for _____ weapon(s).
4. That now I want to inherit said weapon/s. in my name.
5. That the other legal heirs have no objection if the said weapon is transferred in my name.
6. That, I _____ son/daughter/wife/husband of late Sh./Smt. _____ do hereby bind myself and execute this bond in favour of Commissioner of Police/Addl. Commissioner of Police, Licensing, Delhi that in case there is any other claimant to the said weapon, I undertake to Indemnify the President of India/Commissioner of Police/Addl. Commissioner of Police, Licensing, Delhi for any loss that may occur on account of the transfer of the said weapon in the name of Sh./Smt. _____.
7. In witness thereof, I have signed this Indemnity bond on _____ day of _____/20 in the presence of the following two witnesses:-

Executants/s

WITNESSES:- (with signature, full name & address) 1. _____

2. _____

Attested

(Signature and official seal of the first class Magistrate)

Delhi that in case there is any other claimant to the said weapon, I undertake to Indemnify the President of India/Commissioner of Police/Addl. Commissioner of Police, Licensing, Delhi for any loss that may occur on account of the transfer of the said weapon in the name of Sh./Smt._____.

8. In witness thereof, I/we have signed this Indemnity bond on_____day of_____/ in the presence of the following two witnesses:-

Executants/s

WITNESSES:- (with signature, full name & address)

1. _____
2. _____

Attested

NO OBJECTION CERTIFICATE
(IN THE FORM OF AFFIDAVIT)

(Specimen of affidavit for NOC to be submitted by other legal heirs of the deceased on non-judicial stamp paper of Rs.10/- duly attested by the Notary, in case the licensed firearm is being sold by one of the legal heirs after the death of the licensee)

I _____ S/o Sh. _____ R/o _____

Do _____ hereby
solemnly affirm and declare as under:-

1. That I am resident of the above stated address.
2. That I am son/daughter of Sh. _____ and Mrs. _____.
3. That I have attained adulthood.
4. That I have no objection for the disposal of the weapon belonging to my _____ relationship with the deceased) by my _____ (relationship with the transferee) for getting the same transferred in his/her name.
5. That I am deposing in fit state of health & mind.
6. That I am deposing voluntarily and without any pressure.
7. That I have read the contents of the affidavit and endorse that to be true and correct.

Deponent

Verification

I _____ do hereby verify that the contents of this affidavit are true to the best of my knowledge and no part of the affidavit is false and nothing has been concealed or misstated therein.

Verified at Delhi this.....day of..... 20

Deponent

Attested

(Signature and official seal of the first class Magistrate)

CONSENT AFFIDAVIT

(Specimen of affidavit of consent to be submitted by applicants on non-judicial stamp paper of Rs.10/- duly attested by a Notary, in case the licensee transfer his weapon to his legal heir on heirloom basis)

I, _____ S/o, Sh. _____ R/o _____ do

hereby solemnly affirm and declare as under:-

1. That I am holder of arms license No. _____ initially issued on _____ for NPB _____ (description of the weapon/s) valid upto _____.
2. That due to old age or long illness I am not capable to handle the weapon/s.
3. That I intend to transfer my weapon to my son/daughter/son-in-law/daughter-in-law/grandson/granddaughter/wife on family heirloom basis.
4. That after issuance of arms license to my son/daughter/son-in-law/daughter-in-law, I will surrender my arms license to the Licensing Authority for cancellation and undertake not to apply for an arms license in future.

Deponent

Verification

I _____ do hereby verify that the contents of this affidavit are true to the best of my knowledge and no part of the affidavit is false and nothing has been concealed or misstated therein.

Verified at Delhi this.....day of..... 20

Deponent

Witness (Name, address and signature).

Attested

(Signature and official seal of the first class Magistrate)

ANNEXURE-VII

FORMAT OF NOC FROM DEPARTMENT

(to be submitted for fresh arms license by employees)

It is certified that Shri_____s/o
Shri_____R/o_____is
a permanent/temporary employee of this department and serving in this
department since.....
.....as..... This office has
no objection if an arm license is granted to him.

Seal with designation
& Signature of the competent Authority

ANNEXURE-VIII

UNDERTAKING
(on letter head of the Firm)

I. _____ Manager/Proprietor of firm
_____-do hereby undertake
that Shri _____ is serving as security
guard in this firm/institution. The character and antecedents verification
has been got conducted through local police and found nothing adverse
against him.

The arms license for Revolver/Pistol/Rifle/Gun* is required by
him for performing duty as _____. The grant of license will hike
his salary from Rs. _____ To Rs. _____. The firm
also undertake that the applicant is a trained security guard and he has
undergone weapon handling course with firing practice training and
obtained certificate from National Rifle Association of India/Directorate of
Home Guards & Civil Defence* (attach copy of certificate).

(Name, designation Signature with stamp& telephone number)

* Please strike off which is not applicable

ANNEXURE-IX**FORM S-4****(Prescribed proforma for Antecedent Verification Report)*****(TO BE FILLED IN BY THE POLICE DEPARTMENT)***

Application No.: Mobile No.:			
1	Name of the applicant		
2	Father/SpouseName		
3	Present address		
	Nearest police station of the present address		
4	A	Whether the applicant has ever been convicted?	
		If so, the offence(s) the sentence and date of sentence	
	B	Ordered to execute a bond under Chapter VII of Code of Criminal Procedure, 1973 (2 to1974) for keeping the peace or for good behavior.	
		If so, when and for what period?	
	C	Prohibited under the Arms Act,1959,or any other law from acquiring, having in his possession or carrying any arms or ammunition	
		If yes, the details thereof	
5	Has the applicant any serious enmity or quarrel which is likely to lead to a breach of peace? If yes, Give details		
6	Has the address and date of birth of the applicant been verified? Give details.		
7	Has the profession/business of the applicant been verified? Give details.		

8	Is any complaint registered against applicant in the Police Station? If so, give details.		
9	Is the applicant involved in any criminal case? If so, give details.		
10	Has applicant been arrested in any criminal case? If so, give details.		
11	Is applicant's name enlisted in police station's bad character register? If so, give details according to the records of police station?		
12	Is applicant's name appears in any case registered by other department of Government of India such as CBI, Narcotics Control Bureau, DRI, Enforcement Directorate etc. which finds mention in the Daily Diary Register of the police station (summons, warrants etc.).If so, give details.		
13	Has the applicant registered a complaint in Police Station Regarding threat to life? If so, give details.		
14	Detail of any political or communal organization of which The applicant is a member.		

Certified that, I have checked the contents of the application form for grant of arms license submitted by the applicant.

**Signatures SHO
Police Station**

Comments of District DCP for grant of Arms License	
Threat perception:	
Fitness:	
Desirability/recommendation of grant of arms license:	

ANNEXURE-X

- A) Draft Standard Operating Procedure (SOP)/Guidelines to be followed for GRANT/RENEWAL of Arms and Ammunition Dealership License in FORM VIII and/or License to Gunsmith in FORM IX,**

The following Standard Operating Procedure (SOP)/Guidelines will be followed for Grant/Renewal of Arms and Ammunition Dealership License/ Air Weapon Dealership License in FORM VIII and/or License to Gunsmith in FORM IX.

1. The applicant shall submit duly filled in application for new license/renewal of license in prescribed form A8 and/or A9 (as applicable), as per Arms Rules, 2016 along with the following documents as prescribed under Rule 73 of arms Rules, 2016:
 - (i) A written declaration along with self-certified copies of drawing of business premises/shop stating that the applicant has facilities available of a strong room for the safe custody of the firearms and ammunition;
 - (ii) A written undertaking with specific reference to the steps taken in connection with the safe custody of the firearms and ammunitions including provision for access control, close circuit television system security guards, fire-fighting devices and chest etc.;
 - (iii) Verification forms containing the name and address of every person authorized to trade on behalf of the applicant at the premises, who must possess the requisite training for safe handling of firearms.

Further, the applicant shall submit the self certified copies of the below mentioned additional supporting documents:

- i) Indemnity Bond duly attested by first class Magistrate incorporating the conditions as mentioned at 1(i), (ii) & 1(iii) in Form VIII/IX (as applicable) and 'that no Legal Action/Show Cause Notice is/ are pending against the dealer concerned in any court of law/ concerned agency/office, and that the submission thus made by the applicant dealer concerned is true to the knowledge and belief of dealer concerned and if the details and declaration furnished by the dealer concerned, later found false, he/she will be responsible for any loss incurred out of this transaction and also liable for Civil & Criminal action in this regard.

- ii) Certificate issued by the concerned bank with regard to existence of Current Account in the name of Proprietorship Firm/ Partnership Firm/ Company.
 - iii) Bank statement of Current Account for the last one year.
 - iv) GST registration/ GSTIN Number.
 - v) (a) Partnership Firm registration documents, if the applicant is a Partnership Firm.
(b) Registration Certificate of Partnership Deed, if applicable.
 - vi) Registration Certificate of Proprietorship Firm issued by Registrar of Firms, in case the applicant is Proprietorship Firm.
 - vii) Registration Certificate of the Company issued by the Registrar of Companies/ Ministry of Corporate Affairs in case the applicant is a Company.
 - viii) List of proposed employees working with / likely to work with the applicant Proprietorship Firm/ Partnership Firm/ Company.
 - ix) Police Clearance Certificate (PCC) of the employees.
 - x) Ownership documents of the proposed business premise; registered lease deed in case the proposed business premise is rented/leased out.
 - xi) Photo Identity documents including Aadhar Card and PAN Card of the applicant Firm of the proprietor/ Partner/ Director of the Firm/ Company and photo identity documents of the employees working with / likely to work with the applicant Proprietorship Firm/ Partnership Firm/ Company.
 - xii) Residential Proof of the proprietor/ Partner/ Director of the Firm/ Company.
 - xiii) Safety Training Course Certificate of Proprietor/ Partner (s)/Director (s) and its employees in FORM S1.
 - xiv) All the relevant details of Proprietor/Partners/ and staff employed and working in the concerned dealership firm must be duly certified by the concerned Proprietor and all the Partners of the dealership firm.
 - xv) Copy of latest annual audit report of Arms Dealer should be attached with the application for renewal of License.
2. The application for renewal of license in FORM VIII shall be made at least 60 days prior to the expiry of the said license to the Licensing Unit/ Delhi Police along with the documents mentioned (Sub Rule 2 of Rule 73 of Arms Rules, 2016).
3. The case shall be examined by the Licensing Unit, Delhi Police, after scrutiny of application and submitted documents; Reports shall be sought from District DCP/local police having jurisdiction over proposed business premises/ shop:
- (i) Whether the proposed place and the premises is suitable for the business of Arms and Ammunition dealership and/or Major/Minor

Repair of firearms or otherwise. The District DCP/ Local Police submit the detailed report with specific recommendation/ recommendation to the Licensing Authority, within 30 days of receipt of such application (as prescribed under Sub Section 2 of Section 13 of Arms Act, 1959 read with Sub Rule 1 Rule 14 of Arms Rules, 2016).

- (ii) Antecedent Verification report (in Form S-4) in respect of applicant (as prescribed under Sub Section 2 of Section 13 of Arms Act, 1959 read with Sub Rule 1 of Rule 14 of Arms Rules, 2016).
4. The Licensing Unit, Delhi Police considering the security and other related aspects, may order an inspection of the premises by the officers of Licensing Unit in order to assess the suitability of the place and proposed business/shop, before forwarding the case to GNCT.
5. After receipt of the Antecedent Verification Report (in Form S-4) and Area Suitability Report from the District DCP/local police and submission of the requisite documents by the applicant, and inspection, if required, the case for grant of license shall be considered by the Licensing Unit, Delhi Police.
6. In case of renewal, if any Arms & Ammunition Dealer is in possession of Arms & Ammunition, (as defined in Schedule-1, where competent authority i.e. Licensing Authority/Renewing Authority is the Central Government in the Ministry of Home Affairs), in such case (s), the Licensing Unit, Delhi Police, shall ensure that such case must be processed for getting the approval of Competent Authority in the Govt. of India, Ministry of Home Affairs, and such cases should be processed in accordance with all the suitable provisions of the Arms Rules, 2016 and Arms Act, 1959.
7. For the purpose of clear-cut categorization of Arms & Ammunition which the dealers are having in their inventories, the Licensing Unit, Delhi Police, should categorically submit the details of such weapons/ammunitions, as defined in Schedule-I of the Arms Rules, 2016 e.g. Prohibited/ Restricted/ Permissible/other category of Arms/ Ammunition, while processing each and every proposal of renewal of their Arms & Ammunition Dealership Licences.
8. The Licensing Unit, Delhi Police will ensure that the dealer has in its inventory only those category of Arms & Ammunition for which State Government is competent authority for renewal, before sending the case to Home Department for obtaining the approval of Licensing authority.
9. Renewal of Gunsmith Licence in Form IX, as per the Arms Rules 2016, shall be carried out at the level of Jt./Addl. C.P. (Licensing), Delhi Police, since the Renewing Authority of this category is District Magistrate i.e. Jt./Addl. C.P. (Licensing), (reference Col. No. 7 of Item

No. 8(a) of Schedule-II of Arms Rules, 2016) subject to fulfilment of requisite provisions of the Arms Rules 2016 and the Arms Act, 1959.

10. In other cases, after completion of the aforesaid process and documentation, the case of the applicant/Company/Partnership Firm/Proprietorship Firm for grant of Arms and Ammunition Dealership license in Form VIII and Form IX and renewal of Arms and Ammunition Dealership Licence in Form VIII (as applicable) with requisite documents as mentioned above and recommendation/non recommendation of Licensing Unit, Delhi Police shall be forwarded to Home Department of GNCTD for decision by the Licensing Authority i.e. Hon'ble Lt. Governor, Delhi, after ensuring the following:

- a. All the pages of the proposal of Licensing Unit, Delhi Police, must be numbered and submitted along with a Check-List of all the requisite documents as prescribed with each of the cases.
- b. All the documents shall be properly verified/checked & re-checked along with the certificate by the Licensing Unit, Delhi Police that all the documents are found to be correct/authentic/genuine/latest and there is no anomaly noticed in the documents furnished by the applicant, which are being forwarded by the Licensing Unit, Delhi Police.

11. The checklist of documents is at page 9 and 10 (Annex-A).

12. Joint/Addl. C.P.(Licensing), Delhi Police will be the empowered officer to sign and issue Form-VIII and Form-IX as per the Arms Rules, 2016 for the purpose of conveying approval of State/Competent Authority to the concerned dealers in all the matters related to the issuance/renewal of Arms & Ammunition Dealership Licenses of Delhi. The Jt/Addl. CP will also make proper entries on the Dealership Licences i.e. Form-VIII & IX, thus issued or renewed (as case may be) with all the other relevant details etc. against the requisite columns of these licences. All the above stated entries shall be made only after the necessary approval of the Licensing Authority is in place.

13. If the application for renewal of License in FORM VIII and/or FORM IX alongwith all the requisite documents is not submitted to the Licensing Unit within stipulated time, the process for cancellation of License will be initiated immediately after expiry of License.

Note: This SOP does not restrict applicability of any provisions in the Arms Act, 1959 or the Arms Rules, 2016, as applicable on this subject.

(B) Draft Standard Operating Procedure (SOP)/Guidelines to be followed for SURRENDER/CLOSURE of Arms and Ammunition Dealership License in FORM VIII and/or License to Gunsmith in FORM IX,

There are no specific provisions found in the Arms Act, 1959 and the Arms Rules, 2016, regarding surrender of Arms and Ammunition Dealership Licence in FORM VIII and Gunsmith License in FORM IX. However, in order to regulate the Surrender/Closure of Arms & Ammunition Dealership License and Gunsmith Licence, following SOP shall be adopted:

1. The applicant licensee shall submit the request letter for surrender of Dealership and/or Gunsmith License duly signed by Proprietor/ Partner(s)/Director (s) of the Firm/Company along with following documents:
 - (i) Original Dealership and/or Gunsmith License.
 - (ii) Detailed list of firearms in Stock, firearms kept in safe custody and firearms kept for repair with mention of category (whether Permissible, Restricted or Prohibited)/type (Pistol, Revolver, Rifle, Gun etc.)/Serial No.
 - (iii) Detailed list of ammunition in stock and kept in safe custody mentioning therein the category and type of firearms for which the ammunition is meant for.
 - (iv) Certified copy of last two pages of Stock register, Sale register, Safe Custody register and Repair register whichever is applicable.
 - (V) Sworn affidavits by the applicant licensee (s) on stamp paper of Rs 10/- stating therein that all the information submitted with regard to status of arms and ammunition is true and all the submitted documents are genuine.
2. After receipt of formal application and the above mentioned documents, the case for Surrender/Closure shall be scrutinized by the Licensing Unit, Delhi Police.
3. The case shall be forwarded to Home Department, GNCTD alongwith recommendation of the Licensing Unit, Delhi Police to obtain necessary approval of the Licensing Authority after ensuring the following:
 - a. All the pages of the proposal of Licensing Unit, Delhi Police, must be numbered and submitted along with a Check-List of all the requisite documents as prescribed with each of the cases.
 - b. All the documents shall be properly verified/checked & re-checked along with the certificate by the Licensing Unit, Delhi Police that all the documents are found to be correct/authentic/genuine/latest and there is no anomaly noticed in the documents furnished by the applicant, which are being forwarded by the Licensing Unit, Delhi Police.
4. The arms and ammunition held by the Arms and Ammunition Dealer shall be dealt with in accordance with the provisions contained in Rule 48 of the Arms Rules 2016.

5. The checklist of documents is attached at Page 11 (**Annex-B**).

Note: This SOP does not restrict applicability of any provisions in the Arms Act, 1959 or the Arms Rules, 2016, as applicable on this subject.

(C) **Standard Operating Procedure (SOP)/Guidelines to be followed for CANCELLATION of Arms and Ammunition Dealership License in FORM VIII and/or License to Gunsmith in FORM IX**

The following Standard Operating Procedure (SOP)/Guidelines will be followed for Cancellation of Arms and Ammunition Dealership License in FORM VIII and/or License to Gunsmith in FORM IX:

1. Section 17(3) of the Arms Act, 1959 provides that the licensing authority may, by order in writing, suspend a licence for such period as it thinks fit or revoke a licence.
 - (a) *if the licensing authority is satisfied that the holder of the licence is prohibited by this Act or by any other law for the time being in force, from acquiring, having in his possession or carrying any arms or ammunition, or is of unsound mind, or is for any reason unfit for a licence under this Act; or*
 - (b) *if the licensing authority deems it necessary for the security of the public peace or for public safety to suspend or revoke the licence; or*
 - (c) *if the licence was obtained by the suppression of material information or on the basis of wrong information provided by the holder of the licence or any other person on his behalf at the time of applying for it, or*
 - (d) *if any of the conditions of the licence has been contravened; or*
 - (e) *if the holder of the licence has failed to comply with a notice under sub-section (1) requiring him to deliver-up the licence.*
2. In addition to the facts/circumstances defined /contained in sub section (3) of Section 17 of Arms Act, 1959, the Arms and Ammunition Dealership Licenses and/or Gunsmith License shall be recommended for cancellation in the following circumstances:
 - a) On death of Sole Proprietor (Sub Rule 1 of Rule 61 of arms Rules, 2016 and point iv of GNCTD Policy dated 30/08/2007 or any further provision in prevailing policy).
 - b) If the Licencee fails to submit application for renewal of license alongwith requisite documents within stipulated time.

- c) During inspection, if the records of transactions are not found in conformity with the Arms Act, 1959 and/ or the Arms Rules, 2016 as amended from time to time.
 - d) There is no business/transaction discovered during the last 6 months (Condition 1 (c) at FORM VIII).
 - e) Any other irregularity/violation of conditions of the license noticed by the Licensing Unit, Delhi Police during inspection.
 - f) On violation of GNCTD Policy, dated 10/08/2007 or any further provision in prevailing policy, for addition of partner to an existing Partnership firm.
 - g) Not recommended by Local Police due to justifiable reasons.
 - h) In case of any irregularity/violation of conditions of the license observed during the annual audit.
3. In case any of the above conditions is violated, the case for cancellation of Dealership and/or Gunsmith License shall be processed and put up by Licensing Unit, Delhi Police with recommendation
 4. The case, duly recommended by the Licensing Unit, Delhi Police shall be forwarded to Home Department, GNCTD for decision of the Licensing Authority after ensuring the following:
 - a. All the pages of the proposal of Licensing Unit, Delhi Police, must be numbered and submitted along with a Check-List of all the requisite documents as prescribed with each of the cases.
 - b. All the documents shall be properly verified/checked & re-checked along with the certificate by the Licensing Unit, Delhi Police that all the documents are found to be correct/authentic/genuine/latest which are being forwarded by the Licensing Unit, Delhi Police.
 5. The arms and ammunition held by the Arms & Ammunition Dealer shall be dealt with in accordance with provisions contained in Rule 48 of the Arms Rules 2016.
 6. The checklist of documents is attached at Page 12 (Annex-'C').

Note: This SOP does not restrict applicability of any provisions in the Arms Act, 1959 or the Arms Rules, 2016, as applicable on this subject.

ANNEX-A**Check List of documents to be submitted for Grant/ Renewal of Arms and Ammunition Dealership License in FORM VIII and/or License to Gunsmith in FORM IX**

S. No.	Name of the document	Whether submitted (Yes/No)	Remarks
1.	Application in prescribed form A8 and/or A9 (as applicable), as per Arms Rules, 2016		
2.	A written declaration as specified in Rule 73 (i) of Arms Rules, 2016.		
3.	A written undertaking as specified in Rule 73 (ii) of Arms Rules, 2016.		
4.	Verification forms as specified in Rule 73 (iii) of arms Rules, 2016.		
5.	Indemnity Bond duly attested by first class magistrate		
6.	Certificate issued by the concerned bank regarding existence of Current Account in the name of Proprietorship Firm/ Partnership Firm/ Company.		
7.	Bank statement of current bank account for the last one year.		
8.	Copy of GST registration/ GSTIN Number.		
9.	Partnership Firm registration documents (if applicable).		
10.	Registration Certificate of Partnership Deed (if applicable).		
11.	Registration Certificate of Proprietorship Firm issued by Registrar of Firms (if applicable).		
12.	Registration Certificate of the Company issued by the Registrar of Companies/ Ministry of Corporate Affairs (if applicable).		
13.	List of proposed employees along with their Police Clearance Certificate (PCC).		

14.	Photo Identity documents of the employees working with / likely to work with the applicant Proprietorship Firm/ Partnership Firm/ Company.		
15.	Ownership documents of the proposed business premise if applicant is owner or registered lease deed in case premise is rented/leased out.		
16.	Photo Identity documents including Aadhar Card and PAN Card of the applicant Firm of the proprietor/ Partner/ Director of the Firm/ Company.		
17.	Residential Proof of the proprietor/ Partner/ Director of the Firm/ Company.		
18.	Area Suitability Report obtained from district DCP/local police having jurisdiction over proposed Business premise/shop.		
19.	Antecedent Verification report (in Form S-4) in respect of applicant (s) and responsible person, if any obtained from the District DCP/Local Police.		
20.	Audit Report of Arms & Ammunition Dealer (in case of Renewal)		
21.	A proposed premise is inspected or otherwise (in case of fresh grant).		
22.	Safety Training Certificate in Form S-1 of Proprietor/ Partner/ Director and their employees (Rule 10 (1) of Arms Rules, 2016)		
23.	In case of License for Gunsmith in Form-IX , whether applicant possesses professional technical expertise to act as a Gunsmith from a National/ International Institute or Body legally recognized for imparting the professional or technical training as required under (Rule 78(3) of Arms Rules, 2016).		

ANNEX-B**Check List of documents for Surrender/Closure of Arms and Ammunition Dealership License in FORM VIII and/or License to Gunsmith in FORM IX**

S. No.	Name of the document	Whether submitted or otherwise (Yes/No)	Remarks
1.	Request letter for cancellation/ Surrender of dealership License and/or Gunsmith License duly signed by Proprietor/ Partners, Directors of the Firm/ Company.		
2.	Original Dealership and/or Gunsmith License.		
3.	Detailed list of firearms in stock (with category/ type/ serial number) kept for sale.		
4.	Detailed list of firearms in stock (with category/ type/ serial number) kept in safe custody.		
5.	Detailed list of firearms in stock (with category/ type/ serial number) kept for repair		
6.	Certified copy of last two pages of stock register, sale register, safe custody register and repair register whichever applicable.		
7.	Sworn affidavit by Licensee on stamp paper of Rs 10/- stating herein that all information submitted is true and submitted documents are genuine.		
8.	Separate undertaking by all partners containing same information as mentioned in sworn affidavit.		
9.	Consent of acceptance of firearms and ammunition kept in Safe Custody/ Repair by any other Licensed Gun House in Delhi		
10.	Detailed list of Ammunition kept in stock alongwith type of Firearms for which the ammunition is meant for.		

11.	Certificate from Licensing Authority, mentioning therein that the stock of firearms/ammunitions has been verified physically and found tallied with the records of stock register/sale and purchase bills.		
12.	In case stock is found nil on verification as specified in above point, certificate from Licensing Authority is required to be placed in file to the effect that sale/purchase bills and stock registers have been verified and all stock has been disposed of/ sold off by the dealer as per arms rules/act. Further, stock is found ' nil ' as on date (mention date of visit) of visit to business premises as also verified physically.		

ANNEX-C**Check List of documents for Cancellation of Arms and Ammunition Dealership License in FORM VIII and/or License to Gunsmith in FORM IX**

S. No.	Name of the document	Whether submitted otherwise (Yes/No)	Remarks
1.	Certified copy of last two pages of stock register, sale register, safe custody register and repair register whichever applicable.		
2.	Non-recommendation received from district DCP/local police having jurisdiction over proposed Business premise/shop.		
3.	Death Certificate of Sole Proprietor of Licensee (in case of death of Sole Proprietor)		
4.	Original Dealership and/or Gunsmith License.		
5.	Detailed list of firearms in stock (with category/ type/ serial number) kept for sale.		
6.	Detailed list of firearms in stock (with category/ type/ serial number) kept in safe custody.		
7.	Detailed list of firearms in stock (with category/ type/ serial number) kept for repair		
8.	Sworn affidavit by Licensee on stamp paper of Rs 10/- stating herein that all information submitted is true and submitted documents are genuine.		
9.	Separate undertaking by all partners containing same information as mentioned in sworn affidavit.		
10.	Consent of acceptance of firearms and ammunition kept in Safe Custody/ Repair by any other Licensed Gun House in Delhi		
11.	Detailed list of Ammunition kept in stock alongwith type of Firearms for which the ammunition is meant for.		

12.	Certificate from Licensing Authority, mentioning therein that the stock of firearms/ammunitions has been verified physically and found tallied with the records of stock register/sale and purchase bills.		
13.	In case stock is found nil on verification as specified in above point, certificate from Licensing Authority is required to be placed in file to the effect that sale/purchase bills and stock registers have been verified and all stock has been disposed of/ sold off by the dealer as per arms rules/act. Further, stock is found ' nil ' as on date (mention date of visit) of visit to business premises as also verified physically.		

ANNEXURE-XI**MHA NOTIFICATION DATED 12.02.2020, EXEMPTIONS TO SHOOTERS**

Sl. No.	Persons or class of persons	Categories/description of arms	Conditions	Certifying Body
1.	Arjuna Awardee	General exemption on the number of arms to be possessed provided that the Arjuna Award is conferred in shooting.	The person must hold a certificate issued by the appropriate certifying body referred to in paragraph 3 of this notification.	The Department of Sports, Ministry of Youth Affairs & Sports, Govt. of India
2.	International Medalist/ Renowned Shooter:	(i) Rifles in caliber .22 Long Rifle (also known as .22 LR) (ii) Center fire Rifles with calibers up to 8mm including all calibers lower than 8mm. (iii) Pistol/Revolvers of caliber up to and including 9mm but excluding 9mm parabellum (9X19mm) (iv) Shotguns of caliber up to 12 bore/gauge including all calibers lower than 12 bore/gauges.	(1)The total number of weapons exempted shall not exceed twelve in addition to the number of weapons he is entitled to possess as a normal citizen as per the provisions of the Act, subject to an overall ceiling of fourteen weapons. (2)The person must hold a certificate issued by the appropriate certifying body referred to in paragraph 3 of this notification. Note: (a)If a shooter is renowned in one event only, the maximum number of weapons he can possess shall be ten (i.e. eight in the exempted category plus two weapons which he can possess as a normal citizen under sub-section 2 of Section 3 of the Act); (b)If a Shooter is	The National Rifle Association of India (NRAI)

			renowned in two events, the maximum number of weapons the maximum number of weapons he can possess shall be twelve (i.e. ten in the exempted category plus two weapons which he can possess as a normal citizen under sub-section 2 of Section 3 of the Act). (c) If a Shooter is renowned in more than two events, the maximum number of weapons he can possess shall be fourteen (i.e. twelve in the exempted category plus two weapons which he can possess as a normal citizen under sub-section 2 of Section 3 of the Act).	
3.	Junior Target Shooter	Type of arms used in the event in which the person is a Junior Target Shooter.	(1) The exemption is restricted to two weapons of any category in which the person is a Junior Target Shooter. (2) The person must hold a certificate issued by the appropriate certifying body referred to in paragraph 3 of this Notification.	The NRAI or approved or affiliated State Rifle Association(s) of NRAI

4.	Aspiring Shooter	Type of arms used in the event in which the person is an Aspiring Shooter.	(1) The exemption is restricted to two weapons of any category in which the person is an Aspiring Shooter. (2) The person must hold a certificate issued by the appropriate certifying body referred to in paragraph 3 of this notification.	The NRAI or approved or affiliated State Rifle Association(s) of NRAI
5.	(i) National Rifle Association of India (NRAI) (ii) Affiliated State Rifle Association(s) with NRAI (iii) District Rifle Association(s) affiliated with State Rifle Association(s) (iv) All Shooting Clubs affiliated with the State Rifle Association or NRAI (v) All Shooting Ranges under the Sports Authority of India or the Sports Authority of the State Governments	(i) Rifles in caliber .22 Long Rifle (also known as .22 LR). (ii) Center fire Rifles with calibers up to 8mm including all calibers lower than 8mm (iii) Pistol/Revolvers of caliber up to and including 9mm but excluding 9 mm parabellum(9X19 mm). (iv) Shotguns of caliber up to 12 bore/gauge including all calibers lower than 12 bore/gauge.	(1) No upper limit on the number of Arms, subject to the discretion of the licensing authority based on the recommendations of the certifying body. (2) The entity must hold a certificate issued by the appropriate certifying body referred to in paragraph 3 of this notification.	(i) Ministry of Youth Affairs Sports, Govt. of India (ii) NRAI (iii) State rifle Association or NRAI (iv) Sports authority of India/Sports Authority of the State/NRAI

ANNEXURE-XII

Quantity of ammunition permitted to shooters and other categories, as per Rule-40 of Arms Rule-2016

Sl. No.	Persons or class of persons	Type of firearms	Quantity and description of each kind ammunition	
			To be possessed at any one time	Purchasable during the year
1.	Arjuna Awardee	All	100000 for all types of firearms collectively	200000 for all types of firearms collectively
2.	International medallist/ renowned shooter	Rifle/Pistol .22 LR; Center-fire rifle with caliber up to 8 mm; Revolver/Pistol; Shotguns of caliber up to 12 bore/gauge	50000 for all types of firearms collectively	100000 for all types of firearms collectively
3.	Junior target shooter	Rifle/Pistol .22 LR; Center-fire rifle with caliber up to 8 mm; Revolver/Pistol; Shotguns of caliber up to 12 bore/gauge	10000 for all types of firearms collectively	30000 for all types of firearms collectively
4.	Aspiring shooter	Rifle/Pistol .22 LR; Center-fire rifle with caliber up to 8 mm; Revolver/Pistol; Shotguns of caliber up to 12 bore/gauge	15000 for all types of firearms collectively	30000 for all types of firearms collectively
5.	Other shooters (not failing under S. No. 1 to 4 above) holding valid arms licenses and who are also members of National Rifle Association of	.22 LR Rifle/Pistol	500	1000
		Any other Pistol/Revolver caliber	300	600
		Any other Rifle/ Shotgun caliber	200	500

	India or affiliated State Rifle Association(s) of NRAI or shooting clubs/District Rifle Association affiliated with State Rifle Association .			
6.	National Rifle Association of India. Affiliated State Rifle Association(s) with NRAI. Shooting clubs/District Rifle Association(s) affiliated with State Rifle Association. All shooting clubs affiliated to the State Rifle Association or the National Rifle Association of India. All shooting ranges under the Sports Authority of India or the Sports Authority of the State Governments.	Upper limit on the quantity of ammunition, to be decided by the licensing authority based on the recommendations of the Certifying body.		

Form B-4**Application for additional licensees under license in Form III***(See rule 20)**(to be filed along with Form A-1)***Part A**

IDENTITY OF THE PARENT LICENSEE				
1.	Name of the licensee			
2.	Parent/Spouse Name			
3.	Present address	District		State
	Telephone Number	Office	Residence	
	Mobile Number			
	Nearest Police Station			
4.	UIN			
5.	License number	DD/MM/YYYY		
	Date of expiry			
6.	Area validity of the license			
7.	Firearms endorsed on the license	Weapon 1	Weapon 2	Weapon 3
	Type (Rifle/Shot Gun/Hand Gun)			
	Bore/Caliber			
	Weapon Number			

Part B

IDENTITY OF THE FIRST ADDITIONAL LICENSEE		
1.	Name of the first additional licensee	

2.	Parent/Spouse Name			
3.	Relationship with parent licensee			
4.	Present Address			
		<i>District</i>	<i>State</i>	
	Telephone Number	<i>Office</i>	<i>Residence</i>	
	Mobile Number			
	Nearest Police Station			
5.	Firearms to be endorsed on the additional license	Weapon 1	Weapon 2	Weapon 3
	Type <i>(Rifle/Shot Gun/Hand Gun)</i>			
	Bore/Caliber			
	Weapon number			

Part C

IDENTITY OF THE SECOND ADDITIONAL LICENSEE				
1.	Name of the second additional licensee			
2.	Parent/Spouse Name			
3.	Relationship with parent licensee			
4.	Present Address			
		<i>District</i>	<i>State</i>	
	Telephone Number	<i>Office</i>	<i>Residence</i>	
	Mobile Number			
	Nearest Police Station			
5.	Firearms to be endorsed on the Additional License	Firearm 1	Firearm 2	Firearm 3
	Type <i>(Rifle/Shot Gun/Hand Gun)</i>			
	Bore/Caliber			

	Number			
--	--------	--	--	--

Declaration -

I, hereby declare that, the person(s) being appointed as additional licensee reside with me at the my registered address as mentioned in my license in Form III and fall within the definition of close relatives as given under rule 20. In case any of the additional licensees shifts temporarily or permanently from my premises, it will be my responsibility to furnish the information to the licensing authority for cancellation of the license of such additional licensee.

Place

Date

(Signature of the parent licensee)

FORM A -2**(For Companies)**

Form of application for an arms license in Form II, III and V

(See rule II)

IDENTITY OF THE APPLICANT		
1.	Name of the applicant company	
2.	Permanent Account Number (P.A.N.)	
3.	Corporate Identification Number (C.I.N.)	
4.	Name of the applicant branch or representative office of the company <i>(if the application is being filed by such branch or representative office)</i>	
5.	Constitution of the applicant company <i>(see Note 1 below)</i>	
6.	Designation of the 'responsible person' who will sign on behalf of the applicant company <i>(duly authorized in writing or by way of a board resolution wherein required)</i>	
	Name of the 'responsible person' signing the application	
7.	Registered office address of the co	
	Telephone No. (Office)	
	Mobile Number of the responsible person	
	E-mail	
	*Nearest Police Station	

8.	Address of the branch or representative office by which the application is being filed	
	Telephone (office/residence)	
	Mobile No.	
	E-mail	
	*Nearest Police Station	

***Note** - Nearest Police Station means the police station under whose jurisdiction the place given in the address comes

OTHER PARTICULARS OF THE APPLICANT				
9.	Whether the applicant or its office bearers or directors has/have ever been –			
(a)	Convicted (attach details in a separate sheet, if the answer is in affirmative)	Y	N	<u>If yes, details thereof –</u> Offence Sentence Date of sentence DD/MM/YYYY
(b)	prohibited under the Arms Act, 1959, or any other law from having the arms or ammunition	Y	N	<u>If yes, details thereof –</u> Date DD/MM/YYYY Period for which prohibited
10.	Whether -			
(a)	the applicant applied for a license before - if so, when, to whom and with what result	Y	N	<u>If yes, details thereof–</u> Date applied for DD/MM/YYYY Name of the licensing authority Result(pl. specify) Approved//Rejected/Pending

(b)	the applicant's license was ever suspended or cancelled or revoked -	Y	N	<u>If yes, details thereof -</u> Name of the licensing authority Reasons
(c)	any other arms license already held by the company or where the applicant is a branch or representative office of such company, held by such branch or representative office	Y	N	<u>If yes, details thereof- Name</u> License No. Weapons endorsed 1. 2. 3. ☐ ☐
(d)	the applicant has a safe place to keep the arms and ammunition	Y	N	<u>If yes, details thereof -</u> ☐
(e)	the retainer or retainers to be employed by the applicant have undergone training as specified in rule 10 (whenever made applicable by the Central Government)			☐

Particulars of license being applied for		
11.	Need for license (see Note 2 below)	
12. (a)	Description of arms for which license is being sought (Tick any one of the options)	Category - Restricted/Permissible Rifle Shot Gun (BL/ML) Hand Gun (Revolver/Pistol) Others
(b)	Description of ammunition or ingredients of ammunition for which license is being sought	

13.	Number of firearms which applicant wishes to apply for	
14.	Area within which applicant wishes to carry arms (Tick any one of the options)	District State Throughout India ☐
15.	Claims for special consideration for obtaining the license, if any (attach documentary evidence)	

Declaration:

I, _____, the responsible person, _____
designation as mentioned in column 3) of _____

(name of the company), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I, personally, as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

(Signature with stamp of the responsible person signing on behalf of the company)

NOTE:

1. Constitution of the company be mentioned—
Private Limited Company; Limited Company; Government Undertaking; Society; Co-operative Society; Institute; University; Partnership Firm; Association of Persons (AOPs) or any other body under any special act or otherwise etc.
2. Against column 9, the applicant should clearly mention the purpose(s) for which the license is required - such as use, acquisition, possession, carrying, protection, display, target practice or shooting, etc.
3. The applicant is required to submit the following documents along with the application—

- (a) written undertaking on the letter head of the company applicant duly signed by the responsible person appointed vide clause (44) of rule 2 for filing an application under the arms rules;
- (b) original copy of the board resolution passed or an authority letter confirming the appointment of responsible person referred to in clause (a) above;
- (c) certified copies of the founding documents of the Company including Memorandum and Articles of Association;
- (d) safe use and storage of firearms undertaking in Form S-2 as specified in rule 10;

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the application form in violation of arms rules will render the applicant company and the responsible person liable for punishment under Section 30 of the Arms Act, 1959.

Form B-3**Application for addition/deletion of retainer***(See rule 22)*

For companies <i>To be filled in separately for every addition or deletion</i>		
1.	Name of the licensee company	
2.	UIN	
3.	License number	
4.	Validity of the license	<i>DD/MM/YYYY</i>
5.	Details of weapons endorsed on The license	1. 2. 3.
6.	Retainer details	
(a)	Name of the retainer	
(b)	Parent/Spouse Name	
(c)	Date of birth	<i>DD/MM/YYYY</i>
(d)	Date since employed with the organization	<i>DD/MM/YYYY</i>
(e)	Present address	
(f)	Nearest Police Station	
(g)	Tele/Mobile Number(s)	
(h)	Permanent address	
(i)	Nearest police station	

Date_____

(Signature the licensee)_____
(Signature the retainer)

Form XI

Journey License

(to be issued if firearms are already endorsed on the license)

UIN _____

License No. _____

1.	Name of the licensee	
2.	Residential address of the licensee as endorsed on his arms license	
3.	Arms and ammunition that the licensee is entitled to carry	
4.	Brief description of each firearm with details, e.g. manufacturer's serial number and other identification marks	
5.	Quantity and description of each kind of ammunition	
6.	Place of departure	
7.	Route of the journey	
8.	Place of destination	
9.	Period which the journey is likely to occupy	
10.	Period for which the journey license is valid	

The of the.....SEAL

(Signature)

Licensing Authority _____

Designation _____

Place _____

Form XII
Transport License

(to be issued when firearms are not endorsed on the license or for transport
by manufacturers or dealers)

UIN _____

License No. _____

1.	Name, description and residence address of licensee and agent (if any) authorized for the purpose of this consignment	
2.	Licensee's place of business (if any)	
3.	Arms and ammunition to be transported	
(a)	Number of packages	
(b)	Brief description of arms and number	
(c)	Brief description of ammunition and weight in kilograms or number	
4.	Place of dispatch	
5.	Route of transport	
6.	Mode of transport	
7.	Place of destination	
8.	Name, description and address of consignee	
9.	Period for which the License is valid <i>[not exceeding three months as provided under rule 97(5)]</i>	

Endorsement 1

Date on which certificate of 'No Objection' (NOC) is obtained vide Rule 98 from		
Authority	Place	Date
State Government		
District Magistrate		

Licensing Authority
Designation
Place

OFFICE OF THE JOINT. COMMISSIONER OF POLICE LICENSING UNIT, 1ST FLOOR,
P.S. DEFENCE COLONY, NEW DELHI

NO OBJECTION CERTIFICATE

Under the provision of Rule 98 (i) of the Arms Rules-2016, N. O.C. is hereby granted to Sh./Smt./Ms. _____ S/o, D/o, W/o _____ holder of Arms License No. _____ valid up to _____ for N.P.B. _____ with area validity Delhi only to purchase/bring the N.P.B. _____ from the date of issue.

The N.O.C. is subject to obtaining Transport License from the DM/SP/DCP/ _____ by the licensee.

For Joint/Addl. Commissioner of Police,
Licensing: Delhi.

No. _____ /Joint/Addl. C.P./Lic. (TL/NOC), dated New Delhi, the _____.

Copy to:

1. DM/SP/DCP _____ for information & necessary action.
2. G.M. _____
3. Sh./Smt. _____ R/o _____

Application for Addition/Conversion in Form II, III and IV

1. Name of the licensee
2. Parent/Spouse Name
3. Present Address
4. UIN(18 digits
5. License Number
6. Date of expiry
7. Area validity of the license
8. Weapons Endorsed:

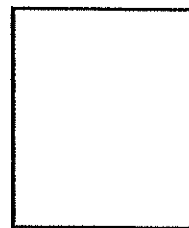
8(a)	Type(Rifle/Shotgun/Handgun) (Rev/Pistol)	
8(b)	Bore/Calibre	
8(c)	Weapon Number	

9.	Acquisition/ Conversion of a Firearm	
1.	Type of firearm to be acquired(Rifle/Shot Gun/Hand Gun/Others)	
2.	Reason for acquisition/Conversion of firearm	
3.	Claims for special consideration for acquisition of additional fire arm/Conversion of fire arm	

Application for extension of area validity of the arms license

1. License No
2. Name (In Capital Letters)
3. Father/Husband Name
4. Local Address
5. Mobile Number
6. Email Id
7. Nearest Police Station
8. Occupation
 - 8(a) If in service Designation & other address
 - 8(b) If business/profession Nature of business/profession
9. Detail(s) of the weapon(s)
10. Whether Applies before for the increase in the VALIDITY if so particulars thereof
11. Area/states/territory within which applicant wishes in carry Arm license
12. Reasons/Need for the extension of the area validity enclosed documents
13. The proposed/shortest route by/through which you travel to the proposed area of extension
14. Justification to carry weapon beyond the existing jurisdiction, if there is any threat perception documentary proof be provided

ANNEXURE-XXI



AFFIDAVIT

FOR EXTENSION OF AREA VALIDITY TO OTHER STATES/ALLINDIA

(Specieman of affidavit to be submitted for extension of area validity beyond Delhi (other States/All India) by applicants on non-judicial stamp paper of worth Rs. 10/- duly attested by a Notary Public)

I, _____ Son/Daughter/Wife of _____ presently residing at _____ do solemnly affirm and declare as follows:-

1. That my date of birth is _____ (in date format as well as in words) and place of birth is _____ (attach proof).
2. That I am already an arms license holder (License No. _____) valid for Delhi only, and that I have a weapon _____, which has also been endorsed in my license.
3. That I am a Govt. Servant and serving as group A/B/C officer of Central/State Govt. _____ (name & address of the department) as _____ (designation).

(i) Nature of the service i.e. Whether All India etc.

or

4. That I am a professional (Lawyer, Doctor/etc.)

or

5. That I am Private Co. Employee.

(i) The address of the branches in India / various states with documentary proof.

(ii) A certificate of MD/Owner/GM of the company certifying the information given in the application form.

or

6. That I am a Businessman. (Attach the documentary proof)

- (i) Details of the branches other than Delhi and their address.
 - (ii) Attested photocopy of proof of financial transaction in the form of Bank Draft or Cheque/Receipts etc.
7. That I am a Farmer (Attach the documentary proof)
- (i) Attested copy of Land Revenue record/Registry.
 - (ii) Attested copy of Khatoni/Khasra.
8. I require an arms license with All India validity/validity for specific states_____. States because_____.
9. I frequently visit my home state/home town_____times in a year for_____.

DEPONENT

ATTESTED

Signature and official seal of notary public

FORM A -3
(Application for renewal for individuals)

Recent
passport size
photograph of
the licensee

Form of application for renewal of arms license(s) granted in Form II, III, IV
(See rule 24)

IDENTITY OF THE LICENSEE				
1.	UIN (16 digit)			
2.	Name			
3.	Parent/Spouse Name			
4.	Date of birth in Christian era			
(a)	in figures	<i>DD/MM/YYYY</i>		
(b)	in words			
5.	Present Address			
(a)	Telephone (Office/Residence)			
(b)	Mobile No.			
(c)	E-mail			
(d)	Nearest Police Station			
6.	Occupation			
7.	Office/Business Address			
License Particulars and Weapon Endorsements				
8.	License Number			
9.	Date of expiry	<i>DD/MM/YYYY</i>		
10.	Area Validity			
11.	Weapons Endorsed	Weapon 1	Weapon 2	Weapon 3
(a)	Type (Rifle/Shotgun/			

	Handgun (Rev/Pistol)			
(b)	Bore/Caliber			
(c)	Weapon Number			
12.	Ammunition allowed	Cartridges Gun Powder/ Percussion Caps		
OTHER PARTICULARS OF THE APPLICANT				
13.	Whether the applicant since last renewal or issuance of license has been –			
(a)	convicted	Y	N	<i>If yes, details thereof – Offence Sentence Date of sentence DD/MM/YYYY</i>
(b)	ordered to execute a bond under Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) for keeping the peace or for good behavior	Y	N	<i>If yes, details thereof – Date DD/MM/YYYY Period for which bound</i>
(c)	prohibited under the Arms Act, 1959, or any other law from having the arms or ammunition	Y	N	<i>If yes, details thereof – Date DD/MM/YYYY Period for which prohibited</i>
14.	Whether -			
(a)	the applicant's license since last renewal or issuance of license was ever suspended or cancelled/ revoked	Y	N	<i>If yes, details thereof – Name of the licensing authority Reasons</i>

(b)	any other member of the applicant's family is in possession of any arms license, if so, particulars thereof	Y	N	<i>If yes, details thereof– Name License No. Weapons endorsed 1. 2. 3.</i>
(c)	the applicant has a safe place to keep the arms and ammunition	Y	N	<i>If yes, details thereof –</i>
(d)	the applicant has undergone prescribed training as specified under rule 10 <i>(whenever made applicable by the Central Government)</i>	Y	N	<i>If yes, details thereof –</i>

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature /Thumb-impression of applicant

Place

Date

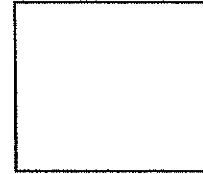
Note:-

The exemptee sports persons shall attach a list of the arms and ammunition held by them in a separate sheet against columns 11 and 12.

Warning:-

Suppression of any factual information or furnishing of any false or wrong information in the application form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

SERVICE CERTIFICATE



1. It is certified that Shri.....is posted in the office
of.....
in the rank/designation
of.....w.e.f.....
His services are transferable to (All India/other states (mention specific states)
.....His date of superannuation
is.....
2. His present office Address is:
3. His local Residential Address is:
4. His permanent Residential Address is:

This certificate is being issue for the purpose of Registration/Renewal of his Arm
License in Delhi and to seek allied services related thereto.

Signature.....

(Name in capital letters).....

Designation.....

Office Address.....

Date.....

Office Seal/Rubber Stamp

UNDERTAKING

I _____ holder of arms license No. _____ furnish the following information about:

- (a) criminal cases registered against me or
- (b) myself being arrested or prosecuted by any law enforcing agency or
- (c) any proceedings initiated against me in any Criminal Court
- (d) or proceedings initiated against me under Chapter VIII of the Criminal Procedure Code 1973 (Section 106 to 124, Security for keeping the peace and Good Behaviour)

1. Complete details - Details of All above instances even if previously intimated to the Licensing Authority:

Sl. No.	FIR No./ DD No.	Date	Under Section	Police Station	Status like pending investigation, pending trial, convicted, acquitted etc.

2. All Details of above instances since the last date of renewal

Sl. No.	FIR No./ DD No.	Date	Under Section	Police Station	Status like pending investigation, pending trial, convicted, acquitted etc.

Note: (a) Attach separate sheets if necessary (b) Please attach the copies of FIR and final decision of the court.

I, hereby declare that the above information is true and correct to the best of my knowledge. I know that suppression of any factual information or furnishing of any false or wrong information will render me liable for punishment under Section 30 of the Arms Act, 1959 in addition to the revocation/suspension of arm license.

Signature_____

Date: _____

Note: Don't leave the above columns blank. Either fill details or write nil.

(उपर दिएगये कॉलम को खाली ना छोड़े, या तो भरें या शून्य लिखें)



DECLARATION

I, _____ Son/Daughter/wife _____ presently
residing at _____ since do solemnly
affirm and declare as follows:

1. I am holding Arms License No _____
2. My above said arm license expired on _____. I could not renew it in time
because (Give full justification with supporting documents) _____

I, hereby declare that the above information is true and correct to the best of my knowledge. I know that suppression of any factual information or furnishing of any false or wrong information will render me liable for punishment under Section 30 of the Arms Act, 1959 in addition to the revocation/suspension of arm license.

Signature of Applicant

Date.....

Annexure-XXVI

OFFICE OF THE JOINT COMMISSIONER OF POLICE: LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....
To

Subject: - Regarding deposition of Non-Service Pattern (NSP) weapon.

Sir/Madam,

This is to inform you that _____ bore _____ No. _____ endorsed on your Arms License bearing No. _____ is a Non-Service Pattern Arms. Such Arms are owned by Director General of Ordinance Services, Ministry of Defence; and as per their circular No. A/17301/NSP/2/Gen/OS-15A, dated 06.04.2018, such weapons are issued by Director General of Ordinance Services only to the authorized persons and any person in possession of such weapons without authorization from DGOS may invite penal action under Arms Act, 1959.

It is therefore directed to seek approval from DGOS to deposit the aforesaid, as per directions, within 30 days, under intimation to this office.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi

No. /Addl. C.P./Lic.(Arms) dated Delhi, the 2020

Copy to: The Director General of Ordinance Services, Ministry of Defence (OS-15A), IHQ, MOD, Sena Bhawan, Delhi-110011, for information and necessary action w.r.t. circular No. A/17301/NSP/2/Gen/OS-15A, dated 06.04.2018.

ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi.

OFFICE OF THE JOINT COMMISSIONER OF POLICE: LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20....

To

**Subject: - Regarding deposit of weapon and application for issuance of
PB/restricted category fire arm license.**

Sir/Madam,

This is to inform you that _____ bore (NSP/PB/Restricted) _____
No. _____ is endorsed on your permissible fire arms license bearing No. _____
_____ is categorized as arms falling under the category of PB/Restricted
Arms as per Schedule I, Rule 3 of Arms Rules, 2016. At present the competent
authority for granting license for such category of weapon as per Schedule II, Rule 5 of
the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

You are therefore directed to deposit the weapon in your respective
Kot/Unit armoury within 15 days, under intimation to this office and apply afresh in
this office for PB/restricted fire arms license by MHA.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi.

OFFICE OF THE JOINT COMMISSIONER OF POLICE:LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. _____ /Joint C.P./Lic.(Arms) dated Delhi, the 20.....

To

Subject: - Regarding issuance of PB fire arms license booklet and further renewals.

Sir/Madam,

I am directed to state that Sh. _____ s/o,d/o,w/o Sh. _____ r/o _____ holder of Arms License No. _____ renewed upto _____ which was issued by _____ on _____ for _____ endorsed on the above said license is/are categorized as arms falling under the category of Prohibited Bore Arms as per Schedule1, Rule 3 of Arms Rules, 2016. At present, the competent authority for granting and renewal for such category of weapon as per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

Accordingly, the case is being forwarded to your good office for issuance of PB arms license booklet and further renewals of said arms license at your end.

Yours sincerely,

(ACP/A&E)

For Joint Commissioner of Police
Licensing Unit: Delhi.

No. _____ /Jonit C.P./Lic.(Arms) dated Delhi, the 20....

Copy to: Sh. _____ S/o _____ R/o _____ holder of license No _____ for information and to pursue the matter with MHA.

OFFICE OF THE JOINT COMMISSIONER OF POLICE:LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....

To

Subject: - Regarding issuance of Restricted Fire Arms License booklet.

Sir/Madam,

This is to inform you that _____ bore _____ no. _____ is a Restricted Arm endorsed on your Arms License bearing No. _____ categorized as arms falling under the category of Restricted Arms as per Schedule I, Rule 3 of Arms Rules, 2016. At present, the competent authority for granting license for such category of weapon as per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

Your arms license has been renewed upto _____. You are directed to apply in this office for issuance of restricted category fire arms license booklet.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi

OFFICE OF THE JOINT COMMISSIONER OF POLICE:LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....

To

**Subject: - Regarding deposit of weapon and fresh application for
issuance of PB category firearms license.**

Sir/Madam,

This is to inform you that _____ bore _____ No. _____ (PB)
weapon is endorsed on your permissible fire Arms License bearing No.
_____ is categorized as PB Arms as per Schedule I, Rule 3 of Arms Rules,
2016. At present the competent authority for granting license for such category of
weapon as per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the
Ministry of Home Affairs.

You are therefore directed to deposit the aforesaid weapon in the nearest
police station or with an authorized arms dealer in Delhi within 15 days, under
intimation to this office, and advised to apply afresh in this office for issuance of PB fire
arms license.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi.

OFFICE OF THE JOINT COMMISSIONER OF POLICE:LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....

To

**Subject: - Regarding fresh application for issuance of Restricted
category of fire arms license.**

Sir/Madam,

This is to inform you that _____ bore _____ No. _____ (Restricted) weapon is endorsed on your permissible fire Arms License bearing No. _____ issued on _____ categorized as arms falling under the category of Restricted Arms as per Schedule1, Rule 3 of Arms Rules, 2016. At present the competent authority for granting license for such category of Arms per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

However, your said arms license is being renewed with the condition to apply in this office for issuance of Restricted category of fire arms license by MHA.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi.

ANNEXURE-XXXII

OFFICE OF THE JOINT COMMISSIONER OF POLICE: LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....
To

Subject: - Regarding deposit of weapon and apply afresh for Restricted category fire arms license.

Sir/Madam,

This is to inform you that _____ bore _____ No. _____ (Restricted) weapon is endorsed on your Permissible Arms License bearing No. _____ issued on _____ is categorized as arms falling under the category of Restricted Arms as per Schedule I, Rule 3 of Arms Rules, 2016. At present the competent authority for granting license for such category of arms as per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

You are therefore directed to deposit the aforesaid fire arms in nearest police station or with an authorized arms dealer in Delhi within 15 days, under intimation to this office and advised to apply afresh in this office for issuance of Restricted fire arms license by MHA.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi.

OFFICE OF THE JOINT COMMISSIONER OF POLICE:LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....
To

**Subject: - Regarding deposit of weapon and fresh application for
issuance of PB Arms License.**

Sir/Madam,

This is to inform you that _____ bore _____ No. _____ (PB) weapon is endorsed on your permissible arms license bearing No. _____ is categorized as arms falling under the category of PB Arms as per Schedule1, Rule 3 of Arms Rules, 2016. At present the competent authority for granting license for such category of arms as per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

Hence, your arms license for permissible category of weapon(s) has been renewed upto _____ with the direction to deposit the PB weapon in nearest police station or with an authorized arms dealer in Delhi within 15 days, under intimation to this office and advised to apply in this office for issuance of PB Arms License.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi

OFFICE OF THE JOINT COMMISSIONER OF POLICE:LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....

To

Subject: - Regarding apply afresh for restricted category of fire arm license

Sir/Madam,

This is to inform you that _____ bore _____ No. _____ are endorsed on your Permissible Arms License bearing No. _____ issued on _____. Fire arms No. _____ is categorized as arms falling under the category of Restricted Arms as per Schedule1, Rule 3 of Arms Rules, 2016. At present the competent authority for granting license for such category of arms as per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

However, your arms license has been renewed upto _____ with the condition to apply in this office for issuance of Restricted Arms License by MHA.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi

OFFICE OF THE JOINT COMMISSIONER OF POLICE:LICENSING
1ST FLOOR POLICE STATION DEFENCE COLONY: NEW DELHI

No. /Joint C.P./Lic.(Arms) dated Delhi, the 20.....

To

Subject: - Regarding fresh application for Restricted Arm License

Sir/Madam,

This is to inform you that _____ bore _____ No. _____ are endorsed on your permissible arms license bearing No. _____ issued on _____. Fire arms No. _____ is categorized as arms falling under the category of Restricted Arms as per Schedule I, Rule 3 of Arms Rules, 2016. At present the competent authority for granting license for such category of arms as per Schedule II, Rule 5 of the Arms Rules 2016 is the Central Govt. in the Ministry of Home Affairs.

Hence, your arms license for permissible category of fire arms has been renewed upto _____ with the direction to deposit the Restricted fire arms with concerned police station or with an authorized arm dealer in Delhi within 15 days, under intimation to this office. You are advised to apply in this office for issuance of Restricted Arms License by MHA.

Yours sincerely,

(ACP/A&E)
For Joint Commissioner of Police
Licensing Unit: Delhi

FORM A - 4**(for companies)**

Form of application for renewal of license(s) granted in Form II, III and V
(See rule 24)

IDENTITY OF THE LICENSEE				
1.	UIN (18 digit)			
2.	Name of the licensee company (see Note 1)			
3.	Constitution of the licensee company			
	P.A.N./C.I.N.			
4.	Name of the responsible person			
5.	Address of the licensee company			
	Telephone No. (office)			
	Mobile Number of the responsible Person			
	E-mail			
	*Nearest Police Station			
License particulars and weapon endorsements				
6.	License Number			
7.	Date of expiry	DD/MM/YYYY		
8.	Area Validity			
9.	Total Number of Weapons Endorsed			
10.	Details of Weapons	1	2	3
(a)	Type (Rifle/ Shot gun/ Handgun)			
(b)	Bore			
(c)	Weapon Number			

		<i>Separate list be attached for more than three weapons</i>		
11.	Ammunition allowed	Cartridges Gun Powder/ Percussion Caps		
OTHER PARTICULARS OF THE APPLICANT				
12	Whether the applicant or its office bearers or directors or responsible person since the issuance/last renewal have ever been –			
(a)	Convicted <i>(attach details in a separate sheet, if the answer is in affirmative)</i>	Y	N	<u><i>If yes, details thereof –</i></u> <i>Offence</i> <i>Sentence</i> <i>Date of sentence</i> <i>DD/MM/YYYY</i>
(c)	prohibited under the Arms Act, 1959, or any other law from having the arms or ammunition	Y	N	<u><i>If yes, details thereof –</i></u> <i>Date</i> <i>DD/MM/YYYY</i> <i>Period for which Prohibited</i>
13	Whether -			
(a)	the applicant's license since the issuance or last renewal was ever suspended or cancelled or revoked	Y	N	<u><i>If yes, details thereof –</i></u> <i>Name of the licensing authority</i> <i>Reasons</i>
(b)	the licensee has a safe place to keep the arms and ammunition	Y	N	<u><i>If yes, details thereof –</i></u>
(c)	the retainers appointed by the company have undergone training requirements as specified in rule 10 <i>(whenever made applicable by the Central Government)</i>	Y	N	<u><i>If yes, details thereof –</i></u>

Declaration:

I, _____, the responsible person (named in column4) of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

(Signature with stamp of the responsible person signing on behalf of the company)

Note: 1. Constitution of the company be mentioned –

Private Limited Company; Limited Company; Government undertaking; Society; Co-operative Society; Institute; University; Partnership Firm; Association of Persons (AOP) or any other body under any special act or otherwise etc.

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant company and the responsible person liable for punishment under Section 30 of the Arms Act, 1959.

Form B-2

Application for allied services related to licenses issued in Form II, III and IV

Endorsement of firearms on the license

(see rule 18)

PART-A

IDENTITY OF THE LICENSEE				
1.	Name of the licensee			
2.	Parent/Spouse Name			
3.	Present Address			
		District	State	
	Telephone Number	Office	Residence	
	Mobile Number			
	Nearest Police Station			
4.	UIN			
5.	License Number Date of Expiry	DD/MM/YYYY		
6.	Area validity of the license			
7.	Firearms endorsed on the license	Weapon 1	Weapon 2	Weapon 3
	Type (Rifle/Shot Gun/Hand Gun)			
	Bore/Caliber			
	Weapon Number			

PART-B

A	Acquisition of firearm	
(a)	Validity of permission to acquire	DD/MM/YYYY
(b)	Date of acquisition of firearm	DD/MM/YYYY
B	Acquisition from manufacturer or arms dealer	
(a)	Name of the vendor	
(b)	UIN of the vendor	
(c)	Invoice number	
(d)	Invoice date	DD/MM/YYYY
C	Acquisition from another licensee	
(a)	Name of the transferor licensee	
(b)	Parent/Spouse Name	
9	UIN	
10	License number	
11	Validity period of license	DD/MM/YYYY
12	Details of permission to sell obtained by transferor	DD/MM/YYYY
	Name of the licensing authority	
	Reference No.	
	Date	DD/MM/YYYY
	Expiry date (if any)	DD/MM/YYYY
D	Details to be furnished in case acquisition of firearm is made for many place not covered under the area validity of the license of the applicant	
13	Reference No. of NOC issued by the licensing authority under rule 98	
	Date of NOC	DD/MM/YYYY
	Validity of NOC	DD/MM/YYYY

14	Transport License Number Issued in Form XII	
	Name of the issuing authority of transport license	
	Date of transport license	DD/MM/YYYY
	Validity period of transport license	DD/MM/YYYY
E	Details of firearms to be endorsed	
15	Type of firearm (Hand Gun/ Shot Gun/ Rifle)	
	Make of firearm	
	Caliber/bore	
	Serial Number of firearm	

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other laws for the time being in force.

Signature /Thumb - impression of applicant

Place

Date

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

List of documents to be enclosed	
1	Original Invoice (refer Para B)
2	Sale confirmation from the transferor licensee (refer Para C)
3	No objection certificate and transport license (refer Para D)

4	Colored photograph of the firearm acquired showing the serial number of the firearm (refer Para E)
<i>Note: The licensing authority may require the licensee to get the physical inspection of the firearm before endorsement of the same on the license.</i>	

APPLICATION FOR DELETION OF WEAPON

PART 'A'

IDENTITY OF THE LICENSEE

S. No.	Particular	
1	Name of the licensee	
2	Parent/Spouse Name	
3	Present Address	
		District State
	Telephone Number	Office Residence
	Mobile Number	
	Nearest (jurisdictional) Police Station	
	E-mail ID	
4	UIN	
5	License Number	
	Date of Expiry	DD/MM/YYYY
6	Area validity of the license	
7	Firearms endorsed on the license	Weapon 1 Weapon 2 Weapon 3
	Type	
	(Rifle/Shot Gun/Hand Gun)	
	Bore/Caliber	
	Weapon Number	

PART-E

DELETION OF FIREARMS OR AMMUNITION FROM THE LICENSE

S. No.	Particulars
1.	Details of firearm sold or transferred
	Type of firearm (Rifle/Shot Gun/Hand Gun)
	Bore/Caliber
	Weapon Number
2.	Details of ammunition sold or transferred
	Bore/Caliber ammunition

	Quantity of ammunition	
3.	Details of permission to sell granted	
	Reference Number	
	Date	
4	Particulars of the purchaser or transferee	
	(a) In case sold to an arms dealer	
	Name and address of the arms and ammunition Dealer	
	UIN	
	Serial No. of certificate of acquisition	
	Date of the certificate of acquisition	DD/MM/YYYY
	(b) In case sold to another licensee	
	Name of the purchaser or transferee	
	UIN	
	License number	
	Validity of license	DD/MM/YYYY
	Validity of permission to acquire possessed by the transferee	DD/MM/YYYY

Form B-2**Application for allied services related to licenses issued in Form II, III and IV****Extension of time limit for acquisition of firearm
(see rule 18)****PART-A**

IDENTITY OF THE LICENSEE				
1.	Name of the licensee			
2.	Parent/Spouse Name			
3.	Present Address	District		State
	Telephone Number	Office	Residence	
	Mobile Number			
	Nearest Police Station			
4.	UIN			
5.	License Number Date of Expiry	DD/MM/YYYY		
6.	Area validity of the license			
7.	Firearms endorsed on the license	Weapon 1	Weapon 2	Weapon 3
	Type (Rifle/Shot Gun/Hand Gun)			
	Bore/Caliber			
	Weapon Number			

PART-B

8.	Date of grant of permission to acquire firearm	<i>DD/MM/YYYY</i>
9.	Date of expiry of permission to acquire firearm	<i>DD/MM/YYYY</i>
10.	Period of validity of the license	<i>DD/MM/YYYY</i>
11.	Reasons for not been able to acquire the firearm within the stipulated period	
12.	Details of the firearm to be acquired for which extension is being sought	
13.	Any claims for special consideration	

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other laws for the time being in force.

Signature /Thumb - impression of applicant

Place

Date

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

STANDARD OPERATING PROCEDURE

(SOP for issuance of Smart Card Arms License in lieu of old Arms License booklet.)

ORDER

Subject: Issuance of Smart Card Arms License In lieu of old Arms License Booklet:-

Keeping in tune with the overall e-initiatives of Government of India, Licensing Unit has started offering various services on the online platform. On the eve of 75th year of Delhi Police and Azadi Ka Amrit Mahotsav, in pursuance of Sec 2(ea) of Arms (Amendment) Act, 2019, Licensing Unit has replaced the old Arms License Booklet with a sophisticated & secured '**Smart Card Arms License**' from the year 2022. It has also extended the facilities of Smart Card details on e-Beat books through '**Shastra Mobile App**' for facilitating random verification of credentials of Arms License holder in day to day policing by the Beat officers.

The following guidelines/procedure shall be followed for issuance of the Smart Cards by the Licensing Unit:

1. A Smart Card shall compulsorily be issued during grant of the following services:

- Grant of new license
- Registration of license from other jurisdiction
- Renewal of license
- Endorsement of weapon(s) on the license
- Extension of area validity of the license
- Deletion of weapon(s)
- Change of address of the licensee
- Change in authorized ammunition quota
- Loss/damage/Duplicate card

2. In case of following services in which the information reflected in the visible zone of the card does not change, an official letter shall be issued after making necessary entries in the system to replace the endorsements which are currently made on the Arms License booklet:

- Time period for acquisition of weapon (s) at the time of new grant and subsequently during other services
- Permission to sell/transfer of weapon (s)
- Permission to deposit weapon(s)

3. The Smart Card Arms Licenses shall be printed from the dedicated Desks. The FPOs (File Processing Officer) deployed at the desk shall be trained on handling the Smart Card Printer.
4. The Smart Card Arms License shall initially be issued to all the licensees at the time of rendering various services. The other licensees who are currently not availing any service shall also be issued Smart Cards in a staggered manner. A detailed schedule for the same shall be issued separately.
5. **Procedure to be followed for printing & issuance of the Smart Cards at the time of delivery of various services duly approved by the Competent Authority on day to day basis:**
 - The applicant shall submit his/her details on the prescribed proforma available on the website of the Licensing Unit (**Annexure-1**) on the dedicated email ID (smartcard.license@delhipolice.gov.in). In case the applicant has not submitted the details on the email, same shall be got filled at the PRO Desk.
 - The FPO deployed at the email desk shall forward the details of the applicant received on the above email ID to the concerned FPO for further verification/updation of details of the licensee in LAN/Docket as per the enclosed check-list (**Annexure-2**)
 - FPO shall correct/update the information of the licensee if there is any mis-match vis a vis the information provided by the licensee (if required, necessary approval for correction/updation of information shall be sought from the competent authority).
 - In case the details of the licensee are corrected/updated in LAN, the same shall be communicated to EDP Section for further updation on ALIS.
 - Grant of service by the FPO and payment of fee by the licensee. An additional fee of Rs 100/- (one hundred only) (equivalent to fee for issuance of Arms License booklet) shall be charged for the Smart Card License. The FPO granting the service shall sign and put the relevant endorsement stamp on the printout of the note-sheet, sign the proforma submitted by the applicant (**Annexure-1**) and send the file in physical form duly forwarded by the Inspector/Arms & in electronic mode to the Smart Card Arms License Desk.
 - The FPO at the Smart Card Arms License Desk shall re-verify the details to be printed on the Smart Card in the print preview and print the Smart Card.
 - The FPO at the Smart Card Arms License Desk shall seize the Arms License booklet and obtain receipt of the Smart Card from the licensee on the prescribed format (**Annexure-1**). The FPO shall place the above documents and Arms license Booklet in the Folder/docket of the licensee.
 - During subsequent services after issuance of the Smart Card, the FPO at the Smart Card Desk while issuing new Smart Card (during grant of services as

mentioned at point number 1 above) shall seize the old Smart Card and place the same in the Docket/folder of the licensee.

- The FPO will generate daily statement of Smart Cards printed and issued. The statement will be sent to DCP/Licensing and Joint CP/Licensing through Insp./EDP & ACP/Arms.

6. Procedure to be followed for printing & issuance of the Smart Cards to the existing licensees not availing any service:

- The applicant shall submit his/her details on the prescribed proforma available on the website of the Licensing Unit (Annexure-1) on the dedicated email ID (smartcard.license@delhipolice.gov.in). No physical application for issuance of Smart Card shall be accepted.
- The FPO deployed at the email desk shall forward the details of the applicant received on the above email ID to designated FPO in Arms Section for further verification of details of the licensee in LAN/Docket as per the enclosed check-list (**Annexure-2**)
- FPO shall correct/update the information of the licensee if there is any mis-match vis a vis the information provided by the licensee (if required, necessary approval for correction/updation of information shall be sought from the competent authority).

In case the details of the licensee are corrected/updated in LAN, the same shall be communicated to EDP Section for further updation on ALIS.

- The FPO shall sign and seek approval of Inspector/Arms for issuance of the Smart Card on the prescribed proforma (Annexure-1) and forward the same to the Smart Card Arms License Desk and EDP Section.
- EDP Section will prepare a daily schedule for distribution of Smart Cards for all those cases in which the licensee has emailed the details mentioning date for collection of the Smart Card.
- A fee of Rs 100/- (one hundred only) (equivalent to fee for issuance of Arms License booklet) shall be charged for the Smart Card License.
- The FPO at the Smart Card Arms License Desk shall re-verify the details to be printed on the Smart Card in the print preview, confirm payment of requisite fee before printing the Smart Card.
- The FPO at the Smart Card Arms License Desk shall seize the Arms License booklet and obtain receipt of the Smart Card from the licensee on the prescribed format (Annexure-1). The FPO shall place the above documents and Arms license Booklet in the Folder/docket of the licensee.
- During subsequent services after issuance of the Smart Card, the FPO at the Smart Card Desk while issuing new Smart Card (during grant of services as mentioned at point number 1 above) shall seize the old Smart Card and place the same in the Docket/folder of the licensee.

- The charges for duplicate Smart Card will be Rs 100 and Rs 1000/- in case the Smart Card License is lost or accidentally destroyed. (as per Schedule IV and Rule 28 of the Arms Rules, 2016)
- The FPO will generate daily statement of Smart Cards printed and issued. The statement will be sent to DCP/Licensing and Joint CP/Licensing through Insp./EDP & ACP/Arms.
- 7. Inspector EDP will organize one day training programme for Smart Card where all the formalities & intricacies related are explained to the Processing officers. Practical demonstration of the entire workflow will also be explained in detail from beginning till the command of final print.
- 8. **Shastra Mobile App:-** This App has been developed by NeGD (National e-Governance Division) under Ministry of IT & Electronics. *This App is not available on Google Play Store.* Access to App has been given to the Beat officers on their registered mobile numbers through e-Beat Book only after proper authentication & verification of the mobile numbers. DCP/Crime (Hqrs.) will be the nodal Officer for extending the services of Shastra App on e-Beat Book to the Beat Officers. It will be extended to the Beat Officer after approval of DCP/Crime (Hqrs.). Access to this App will not be extended to any other Office/Unit without the prior approval of the Jt. CP/Licensing.

This issues with the approval of Commissioner of Police, Delhi.

-----Sd-----
(Dr. O.P. Mishra) IPS
 JOINT COMMISSIONER OF POLICE,
 LICENSING, DELHI.

No. 92-142 / EDP Section/Licensing Dated 22.02./2022

Copy to:

1. Spl. CP/ Licensing & Legal Division for information
2. Jt. CP/Cyber & Tech., Project Implementation & IFSO
3. DCP/Crime (Hqrs.)
4. DCP/Licensing
5. All ACsP/Licensing
6. All Inspectors/Licensing
7. All File processing Officers/Licensing Unit

--Sd--
(Dr. O.P. Mishra) IPS
 JOINT COMMISSIONER OF POLICE,
 LICENSING, DELHI.

ANNEXURE- XL (1)**OFFICE OF THE JOINT COMMISSIONER OF POLICE : LICENSING: DELHI**

1st Floor, Police Station Defence Colony Complex, Opp. Moolchand Metro Station,
New Delhi-110049, Tel:011-26261525, e-mail :addlcp.lic-dl@nic.in

(Information to be furnished by the Licensee for issuance of the Smart Card License)

License Number			UIN		
Category of Licensee	Individual	Institutional	Shooter	Arjuna Awardee	
Type of License	Prohibited	Restricted	Permissible		
Name					
Date of Birth					
Mobile number					
Alternate mobile number					
Email					
Alternate email					
Address					
	Police Station		District		
Area Validity					
Details of weapon (s) endorsed on the license	Weapon number	Bore/ Caliber	Type of weapon (Rifle/Gun/Pistol/Revolver)	Ammunition possession at one time/Purchasable during the year	

Dated

Signature of the Licensee

Note: The licensee must fill the above details and send the signed copy of the form to Licensing Unit on email ID smartcard.license@delhipolice.gov.in

(For official use only)

It is certified that the above details furnished by the licensee have been verified from the record and updated in the system. Smart Card License may be issued.

(Signature of the File Processing Officer with Stamp)

Name _____

Rank/No. _____

Inspector/Arms

Smart Card for Arms License number _____ issued on _____. Old Arms booklet placed in docket.

(Signature of the File Processing Officer with Stamp)

Name _____

Rank/No. _____

Received Arms License Smart Card for Arms License number _____

(Signature of the Licensee)

Name: _____

ANNEXURE- XL (2)**Check-list for data updation for issuance of Arms License Smart Card**

The following details of the licensee must be verified from LAN/Docket vis a vis the information provided by the Licensee in the prescribed proforma for issuance of Smart Card license:

Details	Verified (Yes/No)	Specify details, if updated
License Number		
UIN		
Category of Licensee (Individual/ Institutional/ hooter/ Arjuna Awardee)		
Type of License (Prohibited/ Restricted/ Permissible)		
Name		
Date of Birth		
Mobile number		
Alternate mobile number		
Email		
Alternate email ID		
Present Address		
Jurisdictional Police Station of the present address		
Jurisdictional District of the present address		
Area Validity		
Details of weapon (s) endorsed on the license viz. Weapon number, Bore/ Caliber, Type of weapon (Rifle/Gun/Pistol/ Revolver) , Ammunition possession at one time/Purchasable during the year		

(Signature)
(Name, Rank & No. of the File Processing Officer with stamp)

Form B-1**Application for registration with an outside licensing authority***(see rule 17)***Part - A**

IDENTITY OF THE APPLICANT		
1.	UIN	
2.	Name	
3.	Parent/Spouse Name	
4.	Place of birth (Nativity)	
5.	Date of birth in Christian era	
	in figures DD/MM/YYYY	
	In words	
6.	Present Address	
	Telephone (Office/Residence)	
	Mobile No.	
	E-mail	
	Nearest Police Station	
7.	Address as appearing on the license	
	Nearest Police Station	
8.	Occupation	
9.	Period of stay in the local Jurisdiction	

Part- B

Existing license particulars and weapon endorsements				
10.	License Number			
11.	Issuing Authority			
12.	Last Renewing Authority			
13.	Date of expiry			
14.	Area Validity			
15.	Weapons Endorsed	Weapon 1	Weapon 2	Weapon 3
	Type [Rifle/Shot Gun/Hand Gun (Rev/Pistol)]			
	Bore			
	Weapon Number			
16.	Ammunition allowed	Cartridges Gun Powder/ Percussion Caps		
17.	Mention restriction on sale of weapon, if any			
18.	Details of additional licensees under rule 20, if any			
	<u>Additional Licensee No.1</u>			
	Name			
	Father's/Spouse Name			
	License No.			
	<u>Additional Licensee No. 2</u>			
	Name			
	Father's /Spouse Name			
	License No.			

Part - C

OTHER PARTICULARS OF THE LICENSEE		
19.	Whether the licensee, since the last renewal/issuance of license has been –	
(a)	convicted – if so, the offence (s), the sentence and date of sentence	
(b)	ordered to execute a bond under Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) for keeping the peace or for good behavior - if so, – when and for what period	
(c)	prohibited under the Arms Act, 1959, or any other law from having the arms/ammunition	
20.	Whether -	
(a)	the applicant's license since last renewal/issuance was ever suspended	
	or cancelled / revoked - if so, when and by whom and on what account	
(b)	any other member of the applicant's family is in possession of any arms license, if so, particulars thereof <i>(other than additional licenses vide para 18)</i>	
(c)	the applicant has a safe place to keep the arms	

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and laws for the time being in force.

Signature /Thumb - impression of applicant

Place

Date

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Information/verification to be sought from the issuing/ last renewing authority

1.	License No.	
2.	UIN No.	
3.	Name of the applicant	
4.	Father/Spouse Name	
5.	Address of the applicant at the time of issuance/renewal/registration	
5 (a)	Nearest police station of the address	
5 (b)	Period of stay at the given address	
6.	Date of issue	
7.	Valid upto	
8.	The purpose for which license was issued.	
9.	Copies of the proof of identity and residence provided by the applicant at the time of issuance/ renewal/ registration.	
10.	Copy of the police verification report sought during issuance/renewal/registration of the license.	
11.	Area validity; whether area validity extended after initial issuance, if yes, the grounds thereof.	
12.	Period of area extension granted with order no. and date.	
13.	Whether transferred to any other Licensing Authority after issuance of the license. If yes, provide details of the last renewing/registering authority along-with the genuineness report.	
14.	Details of weapon(s) and ammunition endorsed	
15.	Reason for transfer of the License	
Comments/remarks		

MHA DIRECTIONS REGARDING ARMS LICENSES ISSUED FROM J & K

CONFIDENTIAL

**No. V-11026/98/2016-Arms
Government of India
Ministry of Home Affairs
(IS-1 Division/Arms Section)**

R. No. 94 B, North Block, New Delhi
Dated: April, 2020

To

The Chief Secretaries / Advisor to Administrators
All States/UTS

Sub: Alleged irregularities in the issuance of arms licenses on large scale in some parts of the country – regarding.

Sir,

I am directed to inform that there have been instances of large number of arms license issued by the licensing authorities in some parts of the country without proper verification, which may have serious implications inter-alia on the internal security of the country

2. Kind attention is drawn towards Rule-15 of the Arms Rules, 2016 which mandates the licensing authorities to enter the records of all the arms licenses in the NDAL-ALIS portal and the last date for such entries is 29.06.2020. Accordingly, all the licensing authorities may be advised to ensure uploading of all the legacy data in NDAL-ALIS portal for UIN generation by 29.06.2020 positively. A license without UIN will be invalid after 29.06.2020 and the holder of such licenses will be vulnerable for action under the Arms Act, 1959. It may be noted that, there will be no further extension of time in this regard. Extensive awareness generation may therefore be done amongst license holders regarding the requirement of UIN generation.

3. Further, the third licensed firearm is also required to be deposited by the licensees by 13th December, 2020 under the recently amended provision of section 3 of the Arms Act, 1959 by the Arms (Amendment) Act, 2019 Awareness generation may also be done in this regard.

4. All licensing authorities be advised to accept applications for new licenses or other allied services including endorsement of firearms only through NDAL-ALIS portal. Any laxity on this account may be viewed seriously as such issues may have serious implications on the internal security of the country.

5 All the licensing authorities may also be requested to carryout audit of all the cases wherein firearms have been transferred from J & K.

6. The Licensing Authorities should also carry out physical verification of the arms dealers for their compliance of the Arms Rules, 2016.

Yours faithfully,

--Sd---

30.04.2020

(Mukesh Mangal)

Director (Arms & Security)

Phone:23092132

ANNEXURE-XLIII

APPLICATION FORM FOR CHANGE IN ADDRESS OF THE LICENSEE

S. No.	Particular	
1	Name of the applicant	
2	Parent/spouse name	
3	New address of the applicant	
	Mobile no.	
	Jurisdictional police station	
	Email-ID	
4	Address as per License	
5.	Jurisdictional Police Station previous address	
6	License Number	
7.	UIN	
8.	Validity of Arms License	
9.	Reason for change in address	

**APPLICATION FORM FOR CHANGE IN NAME/ADDITION/REMOVING OF SURNAME
OR CORRECTION OF SPELLING, MISTAKES IN NAME/SURNAME**

IDENTITY OF THE LICENSEE				
1.	Name in the license			
2.	Parent/Spouse Name			
3.	Present Address			
		District	State	
	Telephone Number	Office	Residence	
	Mobile Number			
	Nearest Police Station			
4.	UIN			
5.	License Number Date of Expiry	DD/MM/YYYY		
6.	Area validity of the license			
7.	Firearms endorsed on the license	Weapon 1	Weapon 2	Weapon 3
	Type (Rifle/Shot Gun/Hand Gun)			
	Bore/Caliber			
	Weapon Number			
8.	Service which is required- (a) Change in name (New name) (b) Adding Surname (write Surname) (c) Removing Surname (write Surname) (d) Correction in name (correct name)			
9.	Reason for change name/Adding/removing surname			

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other laws for the time being in force.

Signature /Thumb - impression of applicant

Place

Date

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

List of documents to be enclosed	
1	Publication in Gazette Notification of India in case of name change and Addition/Removing Surname.
2	Publication in two Newspapers (Hindi and English addition each) in case of name change and Addition/Removing Surname.
3	Affidavit on Rs. 10 stamp paper in case of name change and Addition/Removing Surname.
4	Two Identity proofs of new name (Aadhar, Voter-I-Card, PAN, Driving License or Passport)
5	Copy of Arms License

ANNEXURE-XLV

**OFFICE OF THE JT.COMMISSIONER OF POLICE:LICENSING 1ST FLOOR POLICE
STATION DEFENCE COLONY: NEW DELHI**

No. /Jt.C.P/Lic(DA-17 Arms/Gen) dated Delhi, the /2019.

To,
The District Magistrate

Pin Code :-

Email:-

Subject: **Supply of Genuineness/NOC.**

Sir,

Please refer to your office letter No. _____ dated _____ with regard to issue of Genuineness/NOC in respect of Arm License No. _____ issued to Sh. _____. As per record available in Arm License Database and folder record the point wise details as asked vide above mentioned letter are given below:-

S.No	Items	Detail
1.	Arms License No	
2.	Name	
3.	Parentage	
4.	Address	
5.	Renewed upto	
6.	Weapon No	
7.	Condition	
8.	Area Validity	
9.	UIN/NDAL No	
10.	Remarks	

This office has no objection for registration and further renewal of the above said arms license.

Yours Sincerely

Insp./Arms
for Jt. Commissioner of Police
Licensing Unit: Delhi

APPLICATION FOR PERMISSION TO DEPOSIT THE FIREARM**(Deposit of firearm due to death of the licensee)**

S. No.	Particular			
1	Name of the applicant			
2	Parent/spouse name			
3	Present address of the applicant			
	Mobile no.			
	Jurisdictional police station			
	Email-ID			
4	Relationship with the licensee (deceased)			
5.	Name of the licensee (deceased)			
6	UIN			
7	License Number			
	Date of Expiry DD/MM/YYYY			
8	Area validity of the license			
9	Firearms endorsed on the license	Weapon 1	Weapon 2	Weapon 3
	Type			
	(Rifle/Shot Gun/Hand Gun)			
	Bore/Caliber			
	Weapon Number			

INDEMNITY BOND

Form A-18 (a)

(to be executed by the applicant (s) on non-judicial stamp paper of Rs.100/- duly attested by a Notary, in case the licensee firearm is being sold by the legal heir (s) after the death of the licensee)

1. This Indemnity Bond is executed at Delhi onDay of..... by Sh./Smt. _____ son/daughter/wife of late Sh. R/o in favour of the President of India /Commissioner of Police/Addl. Commissioner of Police, Licensing Delhi.
2. That Late Sh./Smt. _____ S/o D/o W/o _____ R/o _____ expired on _____, has left the following legal heirs behind:
 - (i) _____
 - (ii) _____
 - (iii) _____
3. That late Sh./Smt. _____ was holder of arms license No. _____ initially issued on _____ valid upto _____ for _____ (weapon/s).
4. That now I/we want to transfer the said weapon/s in the name of Sh. Smt. _____ son/daughter of Sh. _____ r/o _____ holder of arms license No. _____ for _____ valid upto _____ with purchase period valid upto _____.
5. That the other legal heirs have no objection if the said weapon is transferred/sold in the name of Sh./Smt. _____ against his valid arms license No. _____.
6. That, I/we _____ son/daughter/wife/husband of late Sh. /Smt. _____ do hereby bind myself/ourselves and execute this bond in favour of Commissioner of Police/Addl. Commissioner of Police, Licensing, Delhi that in case there is any other claimant to the said weapon, I undertake to indemnify the President of India/Commissioner of Police/Addl. Commissioner of

Police, Licensing, Delhi for any loss that may occur on account of the transfer of the said weapon in the name of Sh./Smt._____.

7. In witness thereof, I/we have signed this indemnity bond on _____ day of _____/20 in the presence of the following two witnesses:-

Executants/s

WITNESSES:- (with signature, full name & address)

1. _____

2. _____

Attested

(signature and official seal of the first class Magistrate)

Delhi that in case there is any other claimant to the said weapon, I undertake to indemnify the President of India/Commissioner of Police /Licensing Authority Delhi for any loss that may occur on account of the transfer of the said weapon in the name of Sh./Smt._____.

8. In witness thereof, I/we have signed this Indemnity bond on _____ day of _____/20 in the presence of the following two witnesses:-

Executants/s

WITNESSES:- (with signature, full name & address)

1. _____

2. _____